

## Section 1

- (1) This Act may be called the *Bharatiya Nyaya Sanhita, 2023*.
- (2) It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint, and different dates may be appointed for different provisions of this Sanhita
- (3) Every person shall be liable to punishment under this Sanhita and not otherwise for every act or omission contrary to the provisions thereof, of which he shall be guilty within India.
- (4) Any person liable, by any law for the time being in force in India, to be tried for an offence committed beyond India shall be dealt with according to the provisions of this Sanhita for any act committed beyond India in the same manner as if such act had been committed within India.
- (5) The provisions of this Sanhita shall also apply to any offence committed by—
  - (a) any citizen of India in any place without and beyond India;
  - (b) any person on any ship or aircraft registered in India wherever it may be;
  - (c) any person in any place without and beyond India committing offence targeting a computer resource located in India.

*Explanation:* In this section, the word “offence” includes every act committed outside India which, if committed in India, would be punishable under this Sanhita.

*Illustration.*

A, who is a citizen of India, commits a murder in any place without and beyond India. He can be tried and convicted of murder in any place in India in which he may be found.

(6) Nothing in this Sanhita shall affect the provisions of any Act for punishing mutiny and desertion of officers, soldiers, sailors or airmen in the service of the Government of India or the provisions of any special or local law.

**Simple Explanation:** Section 1 of the *Bharatiya Nyaya Sanhita, 2023* establishes the name, commencement, applicability, and jurisdiction of the law. The Act officially came into force on 1st July 2024, as notified by the Central Government, with different provisions enforceable at different times. It applies to all individuals within India, making them liable for any violations under its provisions. Additionally, the Sanhita extends its jurisdiction beyond India, allowing prosecution for offenses committed by Indian citizens abroad, crimes on Indian-registered ships and aircraft, and cyber offenses targeting resources located in India. An illustration clarifies that an Indian citizen committing murder in another country can still be tried and convicted in India. However, the Sanhita does not override existing laws related to mutiny, desertion, or any special or local laws.

## Section 2

- (1) "act" denotes as well a series of acts as a single act;
- (2) "animal" means any living creature, other than a human being;
- (3) "child" means any person below the age of eighteen years;
- (4) "counterfeit". - A person is said to "counterfeit" who causes one thing to resemble another thing, intending by means of that resemblance to practice deception, or knowing it to be likely that deception will thereby be practised.

*Explanation 1.* - It is not essential to counterfeiting that the imitation should be exact.

*Explanation 2.* - When a person causes one thing to resemble another thing, and the resemblance is such that a person might be deceived thereby, it shall be presumed, until the contrary is proved, that the person so causing the one thing to resemble the other thing intended by means of that resemblance to practise deception or knew it to be likely that deception would thereby be practised;

- (5) "Court" means a Judge who is empowered by law to act judicially alone, or a body of Judges which is empowered by law to act judicially as a body, when such Judge or body of Judges is acting judicially;
- (6) "death" means the death of a human being unless the contrary appears from the context;
- (7) "dishonestly" means doing anything with the intention of causing wrongful gain to one person or wrongful loss to another person;

(8) "document" means any matter expressed or described upon any substance by means of letters, figures or marks, or by more than one of those means, and includes electronic and digital record, intended to be used, or which may be used, as evidence of that matter.

*Explanation 1.* - It is immaterial by what means or upon what substance the letters, figures or marks are formed, or whether the evidence is intended for, or may be used in a Court or not.

*Illustrations.*

(a) A writing expressing the terms of a contract, which may be used as evidence of the contract, is a document.

(b) A cheque upon a banker is a document.

(c) A power-of-attorney is a document.

(d) A map or plan which is intended to be used or which may be used as evidence, is a document.

(e) A writing containing directions or instructions is a document.

*Explanation 2.* - Whatever is expressed by means of letters, figures or marks as explained by mercantile or other usage, shall be deemed to be expressed by such letters, figures or marks within the meaning of this section, although the same may not be actually expressed.

*Illustration.*

A writes his name on the back of a bill of exchange payable to his order. The meaning of the endorsement, as explained by mercantile usage, is that the bill is to be paid to the holder. The endorsement is a document, and shall be construed in the same manner as if the words "pay to the holder" or words to that effect had been written over the signature;

(9) "fraudulently" means doing anything with the intention to defraud but not otherwise;

(10) "gender". - The pronoun "he" and its derivatives are used of any person, whether male, female or transgender.

*Explanation.* - "transgender" shall have the meaning assigned to it in clause (k) of section 2 of the Transgender Persons (Protection of Rights) Act, 2019;

(11) "good faith". - Nothing is said to be done or believed in "good faith" which is done or believed without due care and attention;

(12) "Government" means the Central Government or a State Government;

(13) "harbour" includes supplying a person with shelter, food, drink, money, clothes, arms, ammunition or means of conveyance, or the assisting a person by any means, whether of the same kind as those enumerated in this clause or not, to evade apprehension;

(14) "injury" means any harm whatever illegally caused to any person, in body, mind, reputation or property;

(15) "illegal" and "legally bound to do". - The word "illegal" is applicable to everything which is an offence or which is prohibited by law, or which furnishes ground for a civil action; and a person is said to be "legally bound to do" whatever it is illegal in him to omit;

(16) "Judge" means a person who is officially designated as a Judge and includes a person,--

(i) who is empowered by law to give, in any legal proceeding, civil or criminal, a definitive judgment, or a judgment which, if not appealed against, would be definitive, or a judgment which, if confirmed by some other authority, would be definitive; or

(ii) who is one of a body or persons, which body of persons is empowered by law to give such a judgment.

*Illustration.*

A Magistrate exercising jurisdiction in respect of a charge on which he has power to sentence to fine or imprisonment, with or without appeal, is a Judge;

(17) "life" means the life of a human being, unless the contrary appears from the context;

(18) "local law" means a law applicable only to a particular part of India;

*(19) "man" means male human being of any age;*

*(20) "month" and "year": - Wherever the word "month" or the word "year" is used, it is to be understood that the month or the year is to be reckoned according to the Gregorian calendar;*

*(21) "movable property" includes property of every description, except land and things attached to the earth or permanently fastened to anything which is attached to the earth;*

*(22) "number": - Unless the contrary appears from the context, words importing the singular number include the plural number, and words importing the plural number include the singular number;*

*(23) "oath" includes a solemn affirmation substituted by law for an oath, and any declaration required or authorised by law to be made before a public servant or to be used for the purpose of proof, whether in a Court or not;*

*(24) "offence": - Except in the Chapters and sections mentioned in sub-clauses (a) and (b), the word "offence" means a thing made punishable by this Sanhita, but--*

*(a) in Chapter III and in the following sections, namely, sub-sections (2), (3), (4) and (5) of section 8, sections 9, 49, 50, 52, 54, 55, 56, 57, 58, 59, 60, 61, 119, 120, 123, sub-sections (7) and (8) of section 127, 222, 230, 231, 240, 248, 250, 251, 259, 260, 261, 262, 263, sub-sections (6) and (7) of section 308 and sub-section (2) of section 330, the word "offence" means a thing punishable under this Sanhita, or under any special law or local law; and*

*(b) in sub-section (1) of section 189, sections 211, 212, 238, 239, 249, 253 and sub-section (1) of section 329, the word "offence" shall have the same meaning when the act punishable under the special law or local law is punishable under such law with imprisonment for a term of six months or more, whether with or without fine; (25) "omission" denotes as well as a series of omissions as a single omission;*

*(26) "person" includes any company or association or body of persons, whether incorporated or not;*

*(27) "public" includes any class of the public or any community;*

*(28) "public servant" means a person falling under any of the descriptions, namely: -*

*(a) every commissioned officer in the Army, Navy or Air Force;*

*(b) every Judge including any person empowered by law to discharge, whether by himself or as a member of any body of persons, any adjudicatory functions;*

*(c) every officer of a Court including a liquidator, receiver or commissioner whose duty it is, as such officer, to investigate or report on any matter of law or fact, or to make, authenticate, or keep any document, or to take charge or dispose of any property, or to execute any judicial process, or to administer any oath, or to interpret, or to preserve order in the Court, and every person specially authorised by a Court to perform any of such duties;*

*(d) every assessor or member of a panchayat assisting a Court or public servant;*

*(e) every arbitrator or other person to whom any cause or matter has been referred for decision or report by any Court, or by any other competent public authority;*

*(f) every person who holds any office by virtue of which he is empowered to place or keep any person in confinement;*

*(g) every officer of the Government whose duty it is, as such officer, to prevent offences, to give information of offences, to bring offenders to justice, or to protect the public health, safety or convenience;*

*(h) every officer whose duty it is, as such officer, to take, receive, keep or expend any property on behalf of the Government, or to make any survey, assessment or contract on behalf of the Government, or to execute any revenue-process, or to investigate, or to report, on any matter affecting the pecuniary interests of the Government, or to make, authenticate or keep any document relating to the pecuniary interests of the Government, or to prevent the infraction of any law for the protection of the pecuniary interests of the Government;*

*(i) every officer whose duty it is, as such officer, to take, receive, keep or expend any property, to make any survey or assessment or to levy any rate or tax for any secular common purpose of any village, town or district, or to make, authenticate or keep any document for the ascertaining of the rights of the people of any village, town or district;*

*(j) every person who holds any office by virtue of which he is empowered to prepare, publish, maintain or revise an electoral roll or to conduct an election or part of an election;*

*(k) every person -*

*(i) in the service or pay of the Government or remunerated by fees or commission for the performance of any public duty by the Government;*

*(ii) in the service or pay of a local authority as defined in clause (31) of section 3 of the General Clauses Act, 1897, a corporation established by or under a Central or State Act or a Government company as defined in clause (45) of section 2 of the Companies Act, 2013.*

*Explanation. -*

*(a) persons falling under any of the descriptions made in this clause are public servants, whether appointed by the Government or not;*

*(b) every person who is in actual possession of the situation of a public servant, whatever legal defect there may be in his right to hold that situation is a public servant;*

*(c) "election" means an election for the purpose of selecting members of any legislative, municipal or other public authority, of whatever character, the method of selection to which is by, or under any law for the time being in force.*

*Illustration.*

*A Municipal Commissioner is a public servant;*

*(29) "reason to believe". - A person is said to have "reason to believe" a thing, if he has sufficient cause to believe that thing but not otherwise;*

*(30) "special law" means a law applicable to a particular subject;*

*(31) "valuable security" means a document which is, or purports to be, a document whereby any legal right is created, extended, transferred, restricted, extinguished or released, or whereby any person acknowledges that he lies under legal liability, or has not a certain legal right.*

*Illustration.*

*A writes his name on the back of a bill of exchange. As the effect of this endorsement is to transfer the right to the bill to any person who may become the lawful holder of it, the endorsement is a "valuable security";*

*(32) "vessel" means anything made for the conveyance by water of human beings or of property;*

*(33) "voluntarily". - A person is said to cause an effect "voluntarily" when he causes it by means whereby he intended to cause it, or by means which, at the time of employing those means, he knew or had reason to believe to be likely to cause it.*

*Illustration.*

*A sets fire, by night, to an inhabited house in a large town, for the purpose of facilitating a robbery and thus causes the death of a person. Here, A may not have intended to cause death; and may even be sorry that death has been caused by his act; yet, if he knew that he was likely to cause death, he has caused death voluntarily;*

*(34) "will" means any testamentary document;*

*(35) "woman" means a female human being of any age;*

*(36) "wrongful gain" means gain by unlawful means of property to which the person gaining is not legally entitled;*

*(37) "wrongful loss" means the loss by unlawful means of property to which the person losing it is legally entitled;*

*(38) "gaining wrongfully" and "losing wrongfully". - A person is said to gain wrongfully when such person retains wrongfully, as well as when such person acquires wrongfully. A person is said to lose wrongfully when such person is wrongfully kept out of any property, as well as when such person is wrongfully deprived of property; and*

*(39) words and expressions used but not defined in this Sanhita but defined in the Information Technology Act, 2000 and the Bharatiya Nagarik Suraksha Sanhita, 2023 shall have the meanings respectively assigned to them in that Act and Sanhita:*

**Simple Explanation:** This section of the Bharatiya Nyaya Sanhita (BNS) provides definitions of various terms that are crucial to understanding the law. Here's a breakdown of the key terms mentioned:

1. **“Act”:** Refers to a single action or a series of actions performed together.
2. **“Animal”:** Defines an animal as any living creature other than a human.
3. **“Child”:** A person under the age of 18.
4. **“Counterfeit”:** Refers to actions where one thing is made to resemble another with the intention to deceive or knowing it's likely to deceive.
5. **“Court”:** Refers to a judge or a body of judges acting in their judicial capacity.
6. **“Death”:** Refers to the death of a human unless stated otherwise.
7. **“Dishonestly”:** Refers to actions done with the intent to cause wrongful gain to one person or wrongful loss to another.
8. **“Document”:** Includes anything written, expressed in figures or marks (even digital/electronic records) intended as evidence.
9. **“Fraudulently”:** Refers to actions done with the intention of defrauding.
10. **“Gender”:** The pronoun "he" can refer to a person of any gender, including male, female, or transgender.
11. **“Good Faith”:** Refers to actions done with due care and attention, and not without it.
12. **“Government”:** Refers to the Central or State Government.
13. **“Harbour”:** Refers to providing someone with shelter or assistance to avoid arrest.
14. **“Injury”:** Refers to any illegal harm caused to a person, either physically or to their property, reputation, etc.
15. **“Illegal” and “Legally Bound To Do”:** "Illegal" refers to actions that are offenses or prohibited by law. "Legally bound to do" means a person must act in a way that's legally required and not omit it.
16. **“Judge”:** Refers to a person officially designated to give judgments in civil or criminal cases.
17. **“Life”:** Refers to the life of a human being unless context specifies otherwise.
18. **“Local Law”:** Refers to laws applicable to a specific area of India.
19. **“Man”:** Refers to any male human being.
20. **“Month” and “Year”:** These are defined based on the Gregorian calendar.
21. **“Movable Property”:** Includes property of every kind except land and things permanently attached to the earth.
22. **“Number”:** Refers to the fact that words in singular can imply plural and vice versa.
23. **“Oath”:** Refers to a formal declaration made by someone, including affirmations made instead of oaths.
24. **“Offence”:** An offense refers to something punishable by the Sanhita or any other applicable law.
25. **“Omission”:** Refers to the act of not doing something that should have been done.
26. **“Person”:** Includes individuals, companies, associations, or any body of persons.
27. **“Public”:** Refers to any class of people or community.
28. **“Public Servant”:** Includes government officers, judicial officers, and others who perform duties for the public good.
29. **“Reason to Believe”:** Refers to having sufficient cause to believe something.
30. **“Special Law”:** Refers to laws that apply to specific subjects.
31. **“Valuable Security”:** Refers to documents that create or transfer legal rights, or acknowledge legal liability.

32. **“Vessel”**: Refers to any means of transport used for conveying people or property by water.
33. **“Voluntarily”**: Refers to an act done with the intention or knowledge that it is likely to cause a particular effect.
34. **“Will”**: Refers to a testamentary document.
35. **“Woman”**: Refers to a female human being of any age.
36. **“Wrongful Gain”**: Refers to gaining property through unlawful means.
37. **“Wrongful Loss”**: Refers to the loss of property through unlawful means.
38. **“Gaining Wrongfully” and “Losing Wrongfully”**: Includes both acquiring and retaining property unlawfully.

### Section 3:

*(1) Throughout this Sanhita every definition of an offence, every penal provision, and every Illustration of every such definition or penal provision, shall be understood subject to the exceptions contained in the Chapter entitled "General Exceptions", though those exceptions are not repeated in such definition, penal provision, or Illustration.*

#### *Illustrations*

*(a) The sections in this Sanhita, which contain definitions of offences, do not express that a child under seven years of age cannot commit such offences; but the definitions are to be understood subject to the general exception which provides that nothing shall be an offence which is done by a child under seven years of age.*

*(b) A, a police officer, without warrant, apprehends Z, who has committed murder. Here A is not guilty of the offence of wrongful confinement; for he was bound by law to apprehend Z, and therefore the case falls within the general exception which provides that "nothing is an offence which is done by a person who is bound by law to do it".*

*(2) Every expression which is explained in any Part of this Sanhita, is used in every Part of this Sanhita in conformity with the explanation.*

*(3) When property is in the possession of a person's spouse, clerk or servant, on account of that person, it is in that person's possession within the meaning of this Sanhita.*

*Explanation. - A person employed temporarily or on a particular occasion in the capacity of a clerk or servant, is a clerk or servant within the meaning of this sub-section.*

*(4) In every Part of this Sanhita, except where a contrary intention appears from the context, words which refer to acts done extend also to illegal omissions.*

*(5) When a criminal act is done by several persons in furtherance of the common intention of all, each of such persons is liable for that act in the same manner as if it were done by him alone.*

*(6) Whenever an act, which is criminal only by reason of its being done with a criminal knowledge or intention, is done by several persons, each of such persons who joins in the act with such knowledge or intention is liable for the act in the same manner as if the act were done by him alone with that knowledge or intention.*

*(7) Wherever the causing of a certain effect, or an attempt to cause that effect, by an act or by an omission, is an offence, it is to be understood that the causing of that effect partly by an act and partly by an omission is the same offence.*

#### *Illustration*

*A intentionally causes Z's death, partly by illegally omitting to give Z food, and partly by beating Z. A has committed murder.*

*(8) When an offence is committed by means of several acts, whoever intentionally cooperates in the commission of that offence by doing any one of those acts, either singly or jointly with any other person, commits that offence.*

#### *Illustrations*

*(a) A and B agree to murder Z by severally and at different times giving him small doses of poison. A and B administer the poison according to the agreement with intent to murder Z. Z dies from the effects of the several doses of poison so*

*administered to him. Here A and B intentionally cooperate in the commission of murder and as each of them does an act by which the death is caused, they are both guilty of the offence though their acts are separate.*

*(b) A and B are joint jailors, and as such have the charge of Z, a prisoner, alternatively for six hours at a time. A and B, intending to cause Z's death, knowingly cooperate in causing that effect by illegally omitting, each during the time of his attendance, to furnish Z with food supplied to them for that purpose. Z dies of hunger. Both A and B are guilty of the murder of Z.*

*(c) A, a jailor, has the charge of Z, a prisoner. A, intending to cause Z's death, illegally omits to supply Z with food; in consequence of which Z is much reduced in strength, but the starvation is not sufficient to cause his death. A is dismissed from his office, and B succeeds him. B, without collusion or cooperation with A, illegally omits to supply Z with food, knowing that he is likely thereby to cause Z's death. Z dies of hunger. B is guilty of murder, but, as A did not cooperate with B, A is guilty only of an attempt to commit murder.*

*(9) Where several persons are engaged or concerned in the commission of a criminal act, they may be guilty of different offences by means of that act.*

#### *Illustration*

*A attacks Z under such circumstances of grave provocation that his killing of Z would be only culpable homicide not amounting to murder. B, having ill-will towards Z and intending to kill him, and not having been subject to the provocation, assists A in killing Z. Here, though A and B are both engaged in causing Z's death, B is guilty of murder, and A is guilty only of culpable homicide.*

#### **Simple Explanation:**

- 1. General Exceptions Apply:** Every offence, penal provision, or illustration in the Sanhita is subject to the general exceptions found in the Chapter "General Exceptions." For example, a child under seven years of age cannot commit an offence, and a police officer, while apprehending a person bound by law, is not guilty of wrongful confinement.
- 2. Consistency in Definitions:** Any expression explained in one part of the Sanhita is used consistently throughout the entire document.
- 3. Possession by Spouse, Clerk, or Servant:** Property in the possession of a spouse, clerk, or servant for someone else is considered that person's possession within the meaning of the law.
- 4. Acts and Omissions:** In the Sanhita, words referring to acts also extend to illegal omissions, unless the context suggests otherwise.
- 5. Common Intention:** When several people commit a criminal act together, each person is liable as if they committed the act alone.
- 6. Criminal Knowledge or Intention:** If an act is criminal due to the knowledge or intention behind it, those who commit the act with the same knowledge or intention are equally liable, even if they act separately.
- 7. Criminal Acts by Act and Omission:** If a criminal act is committed partly through an act and partly through an omission, it is treated as the same offence. For instance, causing someone's death by both beating and omission to feed them is murder.
- 8. Cooperation in Crime:** When multiple acts lead to an offence, anyone who cooperates in those acts, whether separately or jointly, is guilty of the offence. Examples include two people administering doses of poison to kill someone or jailors who jointly fail to provide food to a prisoner, leading to death.
- 9. Different Offences for Different Persons:** Multiple people involved in the same act may be guilty of different offences. For example, one person killing someone under grave provocation (culpable homicide) and another assisting with the intent to kill (murder).

#### *Section 4:*

*The punishments to which offenders are liable under the provisions of this Sanhita are:*

*(a) Death;*

*(b) Imprisonment for life;*

*(c) Imprisonment, which is of two descriptions, namely:*

*(1) Rigorous, that is, with hard labour;*

*(2) Simple;*

*(d) Forfeiture of property;*

*(e) Fine;*

*(f) Community Service.*

#### **Simple Explanation:**

- 1. Death: The most severe penalty, applicable in certain serious crimes.**
- 2. Imprisonment for Life: A sentence where the offender is confined to prison for the remainder of their life.**
- 3. Imprisonment (Two Types):**
  - **Rigorous: Imprisonment with hard labour.**
  - **Simple: Imprisonment without hard labour.**
- 4. Forfeiture of Property: Confiscation of an offender's property as part of the penalty.**
- 5. Fine: A monetary penalty that the offender must pay.**
- 6. Community Service: A form of punishment where the offender is required to perform community work as a penalty.**

#### **Section 5:**

*The appropriate Government may, without the consent of the offender, commute any punishment under this Sanhita to any other punishment in accordance with section 474 of the Bharatiya Nagarik Suraksha Sanhita, 2023.*

#### **Explanation**

*For the purposes of this section the expression "appropriate Government" means, --*

*(a) in cases where the sentence is a sentence of death or is for an offence against any law relating to a matter to which the executive power of the Union extends, the Central Government; and*

*(b) in cases where the sentence (whether of death or not) is for an offence against any law relating to a matter to which the executive power of the State extends, the Government of the State within which the offender is sentenced.*

**Simple Explanation: The appropriate Government has the authority to commute any punishment under the Bharatiya Nyaya Sanhita (BNS) to another punishment without requiring the offender's consent, in accordance with Section 474 of the Bharatiya Nagarik Suraksha Sanhita, 2023.**

#### **Explanation:**

- **Appropriate Government refers to:**
  - **Central Government: In cases where the sentence is death, or if the offence relates to a matter under the executive power of the Union.**
  - **State Government: In cases where the sentence is for an offence related to a matter under the executive power of the State, whether or not the sentence is death.**

**This provision grants the power to alter the punishment to the respective government authority based on the jurisdiction over the offence.**

#### **Section 6:**



*In calculating fractions of terms of punishment, imprisonment for life shall be reckoned as equivalent to imprisonment for twenty years unless otherwise provided.*

**Simple Explanation: If someone is sentenced to life imprisonment, it will be treated as if they were sentenced to 20 years in prison, unless the law says otherwise. This helps in calculating things like parole or remission.**

## Section 7

*In every case in which an offender is punishable with imprisonment which may be of either description, it shall be competent to the Court which sentences such offender to direct in the sentence that such imprisonment shall be wholly rigorous, or that such imprisonment shall be wholly simple, or that any part of such imprisonment shall be rigorous and the rest simple.*

**Simple Explanation:**

**In simple terms, when a person is sentenced to imprisonment, the court has the authority to decide the type of imprisonment. The court can choose to:**

- 1. Make the entire imprisonment rigorous (with hard labor),**
- 2. Make the entire imprisonment simple (without hard labor),**
- 3. Mix both: Some time will be rigorous (with hard labor) and the rest will be simple (without hard labor).**

## Section 8

*(1) Where no sum is expressed to which a fine may extend, the amount of fine to which the offender is liable is unlimited, but shall not be excessive.*

*(2) In every case of an offence--*

*(a) punishable with imprisonment as well as fine, in which the offender is sentenced to a fine, whether with or without imprisonment;*

*(b) punishable with imprisonment or fine, or with fine only, in which the offender is sentenced to a fine,*

*it shall be competent to the Court which sentences such offender to direct by the sentence that, in default of payment of the fine, the offender shall suffer imprisonment for a certain term, in which imprisonment shall be in excess of any other imprisonment to which he may have been sentenced or to which he may be liable under a commutation of a sentence.*

*(3) The term for which the Court directs the offender to be imprisoned in default of payment of a fine shall not exceed one-fourth of the term of imprisonment which is the maximum fixed for the offence, if the offence be punishable with imprisonment as well as fine.*

*(4) The imprisonment which the Court imposes in default of payment of a fine or in default of community service may be of any description to which the offender might have been sentenced for the offence.*

*(5) If the offence is punishable with fine or community service, the imprisonment which the Court imposes in default of payment of the fine or in default of community service shall be simple, and the term for which the Court directs the offender to be imprisoned, in default of payment of fine or in default of community service, shall not exceed, -*

*(a) two months when the amount of the fine does not exceed five thousand rupees;*

*(b) four months when the amount of the fine does not exceed ten thousand rupees; and*

*(c) one year in any other case.*

*(6)*

*(a) The imprisonment which is imposed in default of payment of a fine shall terminate whenever that fine is either paid or levied by process of law;*

*(b) If, before the expiration of the term of imprisonment fixed in default of payment, such a proportion of the fine be paid or levied that the term of imprisonment suffered in default of payment is not less than proportional to the part of the fine still unpaid, the imprisonment shall terminate.*

### **Illustration:**

*A is sentenced to a fine of one thousand rupees and to four months' imprisonment in default of payment. Here, if seven hundred and fifty rupees of the fine be paid or levied before the expiration of one month of the imprisonment, A will be discharged as soon as the first month has expired. If seven hundred and fifty rupees be paid or levied at the time of the expiration of the first month, or at any later time while A continues in imprisonment, A will be immediately discharged. If five hundred rupees of the fine be paid or levied before the expiration of two months of the imprisonment, A will be discharged as soon as the two months are completed. If five hundred rupees be paid or levied at the time of the expiration of those two months, or at any later time while A continues in imprisonment, A will be immediately discharged.*

*(7) The fine, or any part thereof which remains unpaid, may be levied at any time within six years after the passing of the sentence, and if, under the sentence, the offender be liable to imprisonment for a longer period than six years, then at any time previous to the expiration of that period; and the death of the offender does not discharge from the liability any property which would, after his death, be legally liable for his debts.*

### **Simple Explanation:**

#### **1. Fine Amount:**

- If the law doesn't mention a specific amount of fine, the fine can technically be unlimited. However, it can't be excessively high or unreasonable.

#### **2. Imprisonment if Fine is Not Paid:**

- If someone is sentenced to a fine and prison, the court can decide that if the offender doesn't pay the fine, they must serve extra time in prison.
- This extra prison time will only happen if the fine isn't paid and will be in addition to any other prison time the offender has been sentenced to.

#### **3. Maximum Prison Time for Non-Payment:**

- If the crime involves a fine and imprisonment, the prison time for not paying the fine will not exceed one-fourth of the maximum prison time for the crime.

#### **4. Different Types of Imprisonment for Non-Payment:**

- The prison time for not paying the fine could be any type of imprisonment the person could have gotten for the original crime.

#### **5. Imprisonment Duration Based on Fine Amount:**

- If the fine is up to ₹5,000, the imprisonment for not paying can be up to 2 months.
- If the fine is up to ₹10,000, the imprisonment for not paying can be up to 4 months.
- For larger fines, the imprisonment for not paying can be up to 1 year.

#### **6. Paying Part of the Fine:**

- If the person pays part of the fine while serving prison time, their prison sentence will reduce according to how much of the fine is paid.
- For example, if part of the fine is paid, the person may be released sooner.

#### **7. Collecting Unpaid Fines:**

- If the fine is not paid, it can be collected within 6 years from the time of the sentence.
- If the offender dies during the process, their property can still be used to pay the unpaid fine.

### **Section 9:**

*(1) Where anything which is an offence is made up of parts, any of which parts is itself an offence, the offender shall not be punished with the punishment of more than one of such his offences, unless it be so expressly provided.*

(2) Where -

*(a) anything is an offence falling within two or more separate definitions of any law in force for the time being by which offences are defined or punished; or*

*(b) several acts, of which one or more than one would by itself or themselves constitute an offence, constitute, when combined, a different offence,*

*the offender shall not be punished with a more severe punishment than the Court which tries him could award for any one of such offences.*

*Illustrations*

- *(a) A gives Z fifty strokes with a stick. Here A may have committed the offence of voluntarily causing hurt to Z by the whole beating, and also by each of the blows which make up the whole beating. If A were liable to punishment for every blow, he might be imprisoned for fifty years, one for each blow. But he is liable only to one punishment for the whole beating.*
- *(b) But, if, while A is beating Z, Y interferes, and A intentionally strikes Y, here, as the blow given to Y is no part of the act whereby A voluntarily causes hurt to Z, A is liable to one punishment for voluntarily causing hurt to Z, and to another for the blow given to Y.*

**Simple explanation:**

**1. Multiple Offences in Parts:**

- **If an offence is made up of several actions, each of which could be an offence on its own, the person can only be punished for one offence unless the law specifically says otherwise.**

**Example:**

- **If A gives Z 50 strokes with a stick, A might have committed the offence of "voluntarily causing hurt" for the entire beating, and also for each individual stroke. However, A will only be punished once for the entire act, not 50 separate times for each stroke.**

**2. Offences Falling Under Different Laws:**

- **If an action or set of actions falls under two or more different laws, the person cannot be punished more severely than what the court could have given for just one of the offences.**

**Example:**

- **If A is beating Z, and while doing that, A strikes Y as well, the act of striking Y is separate from hurting Z. So, A can be punished for both offences: one for hurting Z and one for striking Y.**

**Section 10:**

*In all cases in which judgment is given that a person is guilty of one of several offences specified in the judgment, but that it is doubtful of which of these offences he is guilty, the offender shall be punished for the offence for which the lowest punishment is provided if the same punishment is not provided for all.*

**Simple explanation:** If a person is found guilty of one of several offences, but it's unclear which exact offence they committed, they will be punished according to the offence that carries the least severe punishment (assuming the punishments aren't the same for all the offences).

**This ensures that the offender is not unfairly punished more severely when there's doubt about which specific offence they committed.**

**Section 11:**

*Whenever any person is convicted of an offence for which under this Sanhita the Court has power to sentence him to rigorous imprisonment, the Court may, by its sentence, order that the offender shall be kept in solitary confinement for any*

*portion or portions of the imprisonment to which he is sentenced, not exceeding three months in the whole, according to the following scale, namely:*

- (a) a time not exceeding one month if the term of imprisonment shall not exceed six months;*
- (b) a time not exceeding two months if the term of imprisonment shall exceed six months and shall not exceed one year;*
- (c) a time not exceeding three months if the term of imprisonment shall exceed one year*

**Simple Explanation:** In simple terms, when a person is convicted of an offence that could lead to rigorous imprisonment, the court has the authority to order that the offender be placed in solitary confinement for part of their sentence. The maximum time they can be kept in solitary confinement is three months in total.

**The duration of solitary confinement depends on the length of the sentence:**

- If the sentence is 6 months or less, solitary confinement can be for up to 1 month.
- If the sentence is between 6 months and 1 year, solitary confinement can be for up to 2 months.
- If the sentence is over 1 year, solitary confinement can be for up to 3 months.

**Solitary confinement** is a prison practice where an inmate is isolated from other prisoners and kept in a small cell for 22 to 24 hours a day. The purpose is to separate the individual from the general prison population, often as a form of punishment or to manage behavior. During solitary confinement, prisoners usually have limited or no interaction with others and may be deprived of certain privileges, such as communal meals or recreation.

#### *Section 12:*

*In executing a sentence of solitary confinement, such confinement shall in no case exceed fourteen days at a time, with intervals between the periods of solitary confinement of not less duration than such periods; and when the imprisonment awarded shall exceed three months, the solitary confinement shall not exceed seven days in any one month of the whole imprisonment awarded, with intervals between the periods of solitary confinement of not less duration than such periods.*

**Simple explanation:** This section sets limits on how solitary confinement can be imposed when executing a sentence. Here's a simplified explanation:

1. **Maximum duration per session:** Solitary confinement cannot last for more than 14 days at a time.
2. **Required intervals:** After each period of solitary confinement, there must be a break of at least the same duration as the period of confinement before it can be imposed again.
3. **For long-term imprisonment:** If the sentence of imprisonment exceeds three months, the total time spent in solitary confinement should not exceed 7 days in any given month of the imprisonment.
4. **Required intervals for longer sentences:** Similar to the previous point, after each period of solitary confinement, there must be a break of at least as long as the confinement itself.

**In short,** this provision limits the duration and frequency of solitary confinement to ensure it is not imposed too harshly or for excessive periods at a time.

#### *Section 13:*

*Whoever, having been convicted by a Court in India, of an offence punishable under Chapter X or Chapter XVII of this Sanhita with imprisonment of either description for a term of three years or upwards, shall be guilty of any offence punishable under either of those Chapters with like imprisonment for the like term, shall be subject for every such subsequent offence to imprisonment for life, or to imprisonment of either description for a term which may extend to ten years.*

**Simple Explanation:** This provision describes the punishment for individuals who commit repeated offenses punishable under Chapter X or Chapter XVII of the Sanhita (the criminal code).

1. **For the first conviction:** If someone is convicted of an offense under these chapters and sentenced to 3 years or more of imprisonment, they are subject to that punishment.
2. **For subsequent convictions:** If the person commits the same or similar offense again, they face a more severe punishment:
  - Imprisonment for life, or
  - Imprisonment for up to 10 years (depending on the severity of the offense).

#### Section 14:

*Nothing is an offence which is done by a person who is, or who by reason of a mistake of fact and not by reason of a mistake of law in good faith believes himself to be, bound by law to do it.*

#### Illustrations

*(a) A, a soldier, fires on a mob by the order of his superior officer, in conformity with the commands of the law. A has committed no offence.*

*(b) A, an officer of a Court, being ordered by that Court to arrest Y, and, after due enquiry, believing Z to be Y, arrests Z. A has committed no offence.*

**Simple Explanation:** This section talks about situations where a person may not be guilty of an offense if they were acting in good faith and believed, due to a mistake of fact (not a mistake of law), that they were required to do something by law.

**Here's a simplified explanation:**

If a person does something thinking they are following the law, and their belief is based on a mistake of fact (not knowing the truth about the situation), they might not be guilty of a crime, as long as they genuinely believed they were doing the right thing.

#### Examples:

1. **Soldier firing on a mob:**  
A soldier, following an order from his superior officer, fires on a crowd in accordance with the law. Even though this action might seem harsh, the soldier is not guilty of an offense because he was following legal orders and acting in good faith.
2. **Court officer arresting someone:**  
A court officer is instructed to arrest a person, and after an inquiry, he mistakenly believes he has arrested the right person. If he truly believed that the person he arrested was the one ordered by the court, he has committed no offense, even though it turns out he made a mistake.

In both examples, the individuals acted in good faith, believing they were doing their duty according to the law, so they are not considered guilty of an offense.

#### Section 15:

*Nothing is an offence which is done by a Judge when acting judicially in the exercise of any power which is, or which in good faith he believes to be, given to him by law.*

**Simple Explanation:** If a judge is making a decision or taking an action as part of their judicial duties and believes, in good faith, that they have the legal authority to do so, they are not considered to have committed a crime. Even if it later turns out that the judge did not have the power to act in that way, they won't be punished for it, as long as they honestly believed they were acting within their legal rights.

#### Section 16:

*Nothing which is done in pursuance of, or which is warranted by the judgment or order of, a Court; if done whilst such judgment or order remains in force, is an offence, notwithstanding the Court may have had no jurisdiction to pass such judgment or order, provided the person doing the act in good faith believes that the Court had such jurisdiction.*

**Simple Explanation:** If you act based on a court's order or judgment, it is not considered a crime, even if the court did not have the jurisdiction to pass such an order. However, for this protection to apply, you must genuinely believe that the court had the authority to make the decision at the time you acted. This provision ensures that individuals who follow court orders in good faith are not criminally liable for actions they took based on what they believed to be a valid legal directive.

#### Section 17:

*Nothing is an offence which is done by any person who is justified by law, or who by reason of a mistake of fact and not by reason of a mistake of law in good faith, believes himself to be justified by law, in doing it.*

#### Illustration

*A sees Z commit what appears to A to be a murder. A, in the exercise, to the best of his judgment exerted in good faith, of the power which the law gives to all persons of apprehending murderers in the fact, seizes Z, in order to bring Z before the proper authorities. A has committed no offence, though it may turn out that Z was acting in self-defence.*

**Simple Explanation:** If a person does something because they believe it is allowed or required by law, and they are acting in good faith, they are not guilty of a crime, even if it turns out later that their belief was mistaken (as long as it was a mistake of fact, not law).

#### Example:

A person, A, sees someone (Z) who looks like they're committing murder. Believing that they are allowed to intervene, A acts in good faith, thinking that the law allows anyone to stop a murderer, and A seizes Z to bring them before the authorities. Even if it turns out Z was actually acting in self-defense and not committing murder, A has committed no offense.

This is because A was acting based on their honest belief that they were exercising the legal right to apprehend a person committing a crime, even though it later turned out that Z's actions were justified.

#### Section 18:

*Nothing is an offence which is done by accident or misfortune, and without any criminal intention or knowledge in the doing of a lawful act in a lawful manner by lawful means and with proper care and caution.*

#### Illustration

*A is at work with a hatchet; the head flies off and kills a man who is standing by. Here, if there was no want of proper caution on the part of A, his act is excusable and not an offence.*

**Simple Explanation:** If a person does something lawful (such as working with a tool or performing a task), and an accident happens without any criminal intention or negligence, the person is not guilty of a crime, as long as they were acting carefully and properly.

#### Example:

A is working with a hatchet (a kind of axe). While working, the head of the hatchet suddenly flies off and accidentally hits and kills a person who is standing nearby.

In this case, as long as A was using the hatchet carefully and there was no negligence or criminal intent, their action is not considered a crime. The death occurred by accident and misfortune, and A did not act recklessly, so they are not guilty of any offense.

#### Section 19:

*Nothing is an offence merely by reason of its being done with the knowledge that it is likely to cause harm, if it be done without any criminal intention to cause harm, and in good faith for the purpose of preventing or avoiding other harm to person or property.*

*Explanation. - It is a question of fact in such a case whether the harm to be prevented or avoided was of such a nature and so imminent as to justify or excuse the risk of doing the act with the knowledge that it was likely to cause harm.*

#### *Illustrations*

*(a) A, the captain of a vessel, suddenly and without any fault or negligence on his part, finds himself in such a position that, before he can stop his vessel, he must inevitably run down a boat B, with twenty or thirty passengers on board, unless he changes the course of his vessel, and that, by changing his course, he must incur risk of running down a boat C with only two passengers on board, which he may possibly clear. Here, if A alters his course without any intention to run down the boat C and in good faith for the purpose of avoiding the danger to the passengers in the boat B, he is not guilty of an offence, though he may run down the boat C by doing an act which he knew was likely to cause that effect, if it be found as a matter of fact that the danger which he intended to avoid was such as to excuse him in incurring the risk of running down the boat C.*

*(b) A, in a great fire, pulls down houses in order to prevent the conflagration from spreading. He does this with the intention in good faith of saving human life or property. Here, if it be found that the harm to be prevented was of such a nature and so imminent as to excuse A's act, A is not guilty of the offence.*

#### **Simple Explanation**

**If a person does something that they know could cause harm, but their intentions were not criminal (they didn't mean to cause harm) and they were trying to prevent a greater harm, they are not guilty of an offence, as long as the situation was serious enough to justify their actions.**

**However, whether their actions are justified depends on the facts of the case, especially how imminent and serious the harm they were trying to prevent was.**

#### **Examples:**

##### **1. Captain of a vessel:**

- **A, the captain of a ship, faces a situation where, in order to avoid running over a boat (boat B) with many passengers, he must change the ship's course. But by doing so, he risks hitting another boat (boat C) with only two passengers.**
- **A changes the ship's course, knowing it could cause harm to boat C, but his intention is to avoid the greater harm to the passengers on boat B.**
- **If it is found that the danger to boat B was real and urgent enough to justify the risk to boat C, A is not guilty of any offence, even though he caused harm to boat C.**

##### **2. Firefighter pulling down houses:**

- **A is fighting a major fire and decides to pull down houses to stop the fire from spreading and causing even more damage. A's goal is to save lives or property.**
- **If it is determined that the fire was so dangerous and imminent that pulling down the houses was the only option to prevent even worse harm, A is not guilty of any offence, even though pulling down houses caused some harm.**

#### *Section 20:*

*Nothing is an offence which is done by a child under seven years of age.*

**Simple Explanation:** If a child is under seven years old, they cannot be held responsible for committing a crime. This is because, at this age, it is assumed that the child does not have the understanding or mental capacity to know what is right or wrong.

*Section 21:*

*Nothing is an offence which is done by a child above seven years of age and under twelve years of age, who has not attained sufficient maturity of understanding to judge of the nature and consequences of his conduct on that occasion.*

**Simple Explanation:** A child between the ages of seven and twelve years cannot be held criminally responsible for their actions if they have not developed enough maturity to understand the nature and consequences of what they have done. This means that even if the child commits an act that would normally be considered an offense, they will not be punished under the law unless it can be shown that they had the capacity to comprehend that their behavior was wrong and could lead to harmful outcomes. This provision protects young children who lack the mental development to fully grasp the impact of their actions.

*Section 22:*

*Nothing is an offence which is done by a person who, at the time of doing it, by reason of unsoundness of mind, is incapable of knowing the nature of the act, or that he is doing what is either wrong or contrary to law.*

**Simple Explanation:** An act committed by a person suffering from unsoundness of mind is not considered an offense if, at the time of the act, they were incapable of understanding its nature or realizing that it was wrong or against the law. This legal principle acknowledges that individuals with severe mental disorders may lack the cognitive ability to distinguish between right and wrong, and therefore, they cannot be held criminally responsible for their actions. This provision ensures that justice takes into account the mental condition of the accused while determining liability.

*Section 23:*

*Nothing is an offence which is done by a person who, at the time of doing it, is, by reason of intoxication, incapable of knowing the nature of the act, or that he is doing what is either wrong, or contrary to law; provided that the thing which intoxicated him was administered to him without his knowledge or against his will.*

**Simple Explanation:** An act committed by a person under intoxication is not considered an offense if, at the time of the act, they were incapable of understanding its nature or knowing that it was wrong or unlawful, provided that the intoxication was involuntary—meaning the substance was administered to them without their knowledge or against their will. This principle ensures that a person who is unknowingly or forcibly intoxicated is not held criminally responsible for actions they could not control. However, if the intoxication was voluntary, this defense does not apply.

*Section 24:*

*In cases where an act done is not an offence unless done with a particular knowledge or intent, a person who does the act in a state of intoxication shall be liable to be dealt with as if he had the same knowledge as he would have had if he had not been intoxicated, unless the thing which intoxicated him was administered to him without his knowledge or against his will.*

**Simple Explanation:** If an act is considered an offense only when done with a specific knowledge or intent, a person who commits it while intoxicated will be presumed to have the same knowledge as they would have had if they were sober. However, this rule does not apply if the intoxication was involuntary, meaning the substance was administered to them without their knowledge or against their will. This provision ensures that voluntary intoxication does not serve as an excuse to escape liability for crimes requiring intent or knowledge.

*Section 25:*

*Nothing which is not intended to cause death, or grievous hurt, and which is not known by the doer to be likely to cause death or grievous hurt, is an offence by reason of any harm which it may cause, or be intended by the doer to cause, to any person, above eighteen years of age, who has given consent, whether express or implied, to suffer that harm; or by reason*



*of any harm which it may be known by the doer to be likely to cause to any such person who has consented to take the risk of that harm.*

*Illustration*

*A and Z agree to fence with each other for amusement. This agreement implies the consent of each to suffer any harm which, in the course of such fencing, may be caused without foul play; and if A, while playing fairly, hurts Z, A commits no offence.*

**Simple Explanation:** This provision establishes that an act is not an offence if it is not intended to cause death or grievous hurt and if the person performing it does not know it is likely to cause such harm. It applies when the affected person, who is above eighteen years of age, has given express or implied consent to endure the harm or has accepted the risk involved. For example, if two individuals agree to fence for amusement, they implicitly consent to any minor injuries that may occur without foul play. In such cases, any harm caused during fair play does not constitute an offence.

*Section 26:*

*Nothing, which is not intended to cause death, is an offence by reason of any harm which it may cause, or be intended by the doer to cause, or be known by the doer to be likely to cause, to any person for whose benefit it is done in good faith, and who has given a consent, whether express or implied, to suffer that harm, or to take the risk of that harm.*

*Illustration*

*A, a surgeon, knowing that a particular operation is likely to cause the death of Z, who suffers under the painful complaint, but not intending to cause Z's death, and intending, in good faith, Z's benefit, performs that operation on Z, with Z's consent. A has committed no offence*

**Simple Explanation:** If someone does something that could cause harm to another person, but the action is done for the person's benefit and with their consent, it is not considered a crime—provided that the harm was not meant to cause death. For example, if a surgeon performs a risky surgery to help a patient, even if it carries a risk of death, as long as the surgeon doesn't intend to cause death and the patient agrees to the surgery, it's not a crime. The key here is that the action is done in good faith, with the goal of helping the person and with their consent.

*Section 27:*

*Nothing which is done in good faith for the benefit of a person under twelve years of age, or person of unsound mind, by or by consent, either express or implied, of the guardian or other person having lawful charge of that person, is an offence by reason of any harm which it may cause, or be intended by the doer to cause or be known by the doer to be likely to cause to that person:*

*Provided that this exception shall not extend to--*

- (a) the intentional causing of death, or to the attempting to cause death;*
- (b) the doing of anything which the person doing it knows to be likely to cause death, for any purpose other than the preventing of death or grievous hurt, or the curing of any grievous disease or infirmity;*
- (c) the voluntary causing of grievous hurt, or to the attempting to cause grievous hurt, unless it be for the purpose of preventing death or grievous hurt, or the curing of any grievous disease or infirmity;*
- (d) the abetment of any offence, to the committing of which offence it would not extend.*

*Illustration*

*A, in good faith, for his child's benefit without his child's consent, has his child cut for the stone by a surgeon knowing it to be likely that the operation will cause the child's death, but not intending to cause the child's death. A is within the exception, in as much as his object was the cure of the child.*

**Simple Explanation:** Nothing done in good faith for the benefit of a person under twelve years of age or a person of unsound mind, with the consent of their guardian or person in charge, is considered an offence due to the harm caused, as long as the action is meant to benefit the person. However, this exception does not apply if the action

intentionally causes death, attempts to cause death, or does something likely to cause death for any reason other than preventing death or serious harm or curing a serious illness. It also doesn't apply if grievous hurt is caused or attempted unless it's for the same reasons. Additionally, it doesn't cover encouraging someone to commit an offence. For example, a parent who, in good faith, has their child undergo a risky surgery to treat a stone, knowing it could result in the child's death but intending to cure them, would not be committing an offence.

*Section 28:*

*A consent is not such a consent as is intended by any section of this Sanhita, --*

*(a) if the consent is given by a person under fear of injury, or under a misconception of fact, and if the person doing the act knows, or has reason to believe, that the consent was given in consequence of such fear or misconception; or*

*(b) if the consent is given by a person who, from unsoundness of mind, or intoxication, is unable to understand the nature and consequence of that to which he gives his consent; or*

*(c) unless the contrary appears from the context, if the consent is given by a person who is under twelve years of age.*

**Simple Explanation:** Consent is not valid under this Sanhita in the following situations: (a) when it is given under fear of harm or due to a misunderstanding of facts, and the person doing the act knows or has reason to believe the consent was influenced by such fear or misconception; (b) when the person giving consent is unable to understand the nature and consequences of their actions due to unsoundness of mind or intoxication; or (c) if the person giving consent is under twelve years of age, unless the context suggests otherwise.

*Section 29:*

*The exceptions in sections 25, 26 and 27 do not extend to acts which are offences independently of any harm which they may cause, or be intended to cause, or be known to be likely to cause, to the person giving the consent, or on whose behalf the consent is given.*

*Illustration*

*Causing miscarriage (unless caused in good faith for the purpose of saving the life of the woman) is an offence independently of any harm which it may cause or be intended to cause to the woman. Therefore, it is not an offence "by reason of such harm"; and the consent of the woman or of her guardian to the causing of such miscarriage does not justify the act.*

**Simple Explanation:** The exceptions mentioned in sections 25, 26, and 27 do not apply to acts that are considered offences on their own, regardless of any harm they may cause or be intended to cause to the person giving consent or on whose behalf the consent is given. For example, causing a miscarriage, unless it is done in good faith to save the woman's life, is an offence regardless of the harm caused to the woman. Therefore, the consent of the woman or her guardian does not make the act lawful in such cases.

*Section 30:*

*Nothing is an offence by reason of any harm which it may cause to a person for whose benefit it is done in good faith, even without that person's consent, if the circumstances are such that it is impossible for that person to signify consent, or if that person is incapable of giving consent, and has no guardian or other person in lawful charge of him from whom it is possible to obtain consent in time for the thing to be done with benefit:*

*Provided that this exception shall not extend to--*

*(a) the intentional causing of death, or the attempting to cause death;*

*(b) the doing of anything which the person doing it knows to be likely to cause death, for any purpose other than the preventing of death or grievous hurt, or the curing of any grievous disease or infirmity;*

*(c) the voluntary causing of hurt, or the attempting to cause hurt, for any purpose other than the preventing of death or hurt;*

*(d) the abetment of any offence, to the committing of which offence it would not extend.*

#### **Illustrations**

*(1) Z is thrown from his horse, and is insensible. A, a surgeon, finds that Z requires to be trepanned. A, not intending Z's death, but in good faith, for Z's benefit, performs the trepan before Z recovers his power of judging for himself. A has committed no offence.*

*(2) Z is carried off by a tiger. A fires at the tiger knowing it to be likely that the shot may kill Z, but not intending to kill Z, and in good faith intending Z's benefit. A's bullet gives Z a mortal wound. A has committed no offence.*

*(3) A, a surgeon, sees a child suffer an accident which is likely to prove fatal unless an operation be immediately performed. There is no time to apply to the child's guardian. A performs the operation in spite of the entreaties of the child, intending, in good faith, the child's benefit. A has committed no offence.*

*(4) A is in a house which is on fire, with Z, a child. People below hold out a blanket. A drops the child from the house top, knowing it to be likely that the fall may kill the child, but not intending to kill the child, and intending, in good faith, the child's benefit. Here, even if the child is killed by the fall, A has committed no offence.*

*Explanation: Mere pecuniary benefit is not benefit within the meaning of sections 26, 27 and this section.*

**Simple Explanation:** An act is not considered an offence, even if it causes harm to a person, as long as it is done in good faith for that person's benefit, without their consent, and in circumstances where it is impossible for the person to give consent, or they are unable to do so. This exception applies when the person has no guardian or other lawful authority to give consent on their behalf in time. However, this exception does not apply in cases involving intentional death or attempting to cause death, actions likely to cause death unless for saving a life or preventing serious harm, or voluntarily causing harm without a valid purpose like preventing death or injury. For example, a surgeon may perform an emergency surgery on an unconscious person without their consent, intending to save their life, and this would not be an offence. Similarly, if a person is thrown from a horse and knocked unconscious, a surgeon performing surgery to save their life, even without their consent, would not be committing an offence. However, acts such as causing harm for financial gain are not covered by this exception.

#### **Section 31:**

*No communication made in good faith is an offence by reason of any harm to the person to whom it is made, if it is made for the benefit of that person.*

#### **Illustration**

*A, a surgeon, in good faith, communicates to a patient his opinion that he cannot live. The patient dies in consequence of the shock. A has committed no offence, though he knew it to be likely that the communication might cause the patient's death.*

**Simple Explanation:** A communication made in good faith, even if it causes harm to the person it is directed at, is not considered an offence if it is intended for that person's benefit. For example, if a surgeon tells a patient that their condition is critical, even though the patient might be shocked and harmed by the news, the surgeon would not be committing an offence. This is true as long as the communication was made with good intentions and for the benefit of the patient, even if the outcome was unintended harm, such as the patient's death.

#### **Section 32:**

*Except murder, and offences against the State punishable with death, nothing is an offence which is done by a person who is compelled to do it by threats, which, at the time of doing it, reasonably cause the apprehension that instant death to that person will otherwise be the consequence:*

*Provided that the person doing the act did not of his own accord, or from a reasonable apprehension of harm to himself short of instant death, place himself in the situation by which he became subject to such constraint.*

#### **Explanation 1**

*A person who, of his own accord, or by reason of a threat of being beaten, joins a gang of dacoits, knowing their character, is not entitled to the benefit of this exception, on the ground of his having been compelled by his associates to do anything that is an offence by law.*

### **Explanation 2**

*A person seized by a gang of dacoits, and forced, by threat of instant death, to do a thing which is an offence by law; for example, a smith compelled to take his tools and to force the door of a house for the dacoits to enter and plunder it, is entitled to the benefit of this exception.*

**Simple Explanation:** This section states that, except for murder and offences against the State that are punishable by death, a person who commits an offence under the threat of immediate death is not considered guilty, as long as the threat was reasonable at the time and caused genuine fear of instant death. However, this exception doesn't apply if the person voluntarily put themselves in a situation where they could be threatened, such as joining a gang of criminals knowing the risks. For example, if someone knowingly joins a gang of dacoits (robbers) and is later forced to commit a crime under threat of being beaten, they cannot claim they were compelled to do it. On the other hand, if a person is forcibly taken by dacoits, and under threat of death, they are forced to do something illegal, like helping break into a house, they may be excused from liability because they were acting under duress.

### **Section 33:**

*Nothing is an offence by reason that it causes, or that it is intended to cause, or that it is known to be likely to cause, any harm, if that harm is so slight that no person of ordinary sense and temper would complain of such harm.*

**Simple Explanation:** This section explains that an act is not considered an offence simply because it causes harm, or is intended to cause harm, or is likely to cause harm, if the harm is very minor. If the harm is so small that an average person would not be upset or complain about it, then the act is not treated as an offence. For example, a small accidental bump on the shoulder in a crowded place may cause some discomfort, but it would not be considered an offence because it is too insignificant for anyone to complain about.

### **Section 34 :**

*Nothing is an offence which is done in the exercise of the right of private defence.*

**Simple Explanation:** This means that if a person acts in self-defence or to protect someone else from harm, the act is not considered an offence. The law allows individuals to protect themselves or others from immediate danger, and such actions, even if they cause harm, are justified as long as they are necessary and reasonable in the circumstances.

### **Section 35:**

*Every person has a right, subject to the restrictions contained in section 37, to defend:*

- (a) his own body, and the body of any other person, against any offence affecting the human body;*
- (b) the property, whether movable or immovable, of himself or of any other person, against any act which is an offence falling under the definition of theft, robbery, mischief or criminal trespass, or which is an attempt to commit theft, robbery, mischief or criminal trespass.*

**Simple Explanation:** This provision gives every person the right to defend:

- 1. Their own body and the body of others:** If someone is attacked or harmed, they can protect themselves or others from such offences, like assault or any act that harms the human body.
- 2. Their property or the property of others:** A person can defend their property (whether movable, like items, or immovable, like land or houses) from acts like theft, robbery, mischief, or criminal trespass, or even attempts to commit such crimes.

However, this right to self-defence has certain restrictions, like using only necessary force in the given situation. If the force used exceeds what is reasonable to stop the harm or protect the property, it may be considered excessive and could lead to legal consequences.

Section 36:

*When an act, which would otherwise be a certain offence, is not that offence, by reason of the youth, the want of maturity of understanding, the unsoundness of mind or the intoxication of the person doing that act, or by reason of any misconception on the part of that person, every person has the same right of private defence against that act which he would have if the act were that offence.*

**Illustrations**

*(a) Z, a person of unsound mind, attempts to kill A; Z is guilty of no offence. But A has the same right of private defence which he would have if Z were sane.*

*(b) A enters by night a house which he is legally entitled to enter. Z, in good faith, taking A for a house-breaker, attacks A. Here Z, by attacking A under this misconception, commits no offence. But A has the same right of private defence against Z, which he would have if Z were not acting under that misconception.*

**Simple Explanation:** This provision means that even if the person committing an act is not legally responsible for it due to factors like youth, lack of understanding, mental unsoundness, intoxication, or a misunderstanding of the situation, the person affected by that act still has the right to defend themselves as if the act were a real offence.

**Illustrations:**

1. **Mental Unsoundness:** If Z, who is mentally unsound, tries to kill A, Z is not guilty of any offence. However, A still has the right to defend himself against Z, as if Z were mentally sound and intentionally trying to harm him.
2. **Misunderstanding:** If A enters his own house at night, but Z mistakenly thinks A is a burglar and attacks him, Z is not committing an offence due to this misunderstanding. However, A has the same right to defend himself as if Z knew A wasn't a burglar.

In these cases, even though the person committing the act may not be legally responsible, the person who is being attacked can still defend themselves in the same way they would if the attack was committed by someone fully responsible.

Section 37:

*(1) There is no right of private defence, --*

*(a) against an act which does not reasonably cause the apprehension of death or of grievous hurt, if done, or attempted to be done, by a public servant acting in good faith under colour of his office, though that act may not be strictly justifiable by law;*

*(b) against an act which does not reasonably cause the apprehension of death or of grievous hurt, if done, or attempted to be done, by the direction of a public servant acting in good faith under colour of his office, though that direction may not be strictly justifiable by law;*

*(c) in cases in which there is time to have recourse to the protection of the public authorities.*

*(2) The right of private defence in no case extends to the inflicting of more harm than it is necessary to inflict for the purpose of defence.*

**Explanation 1**

A person is not deprived of the right of private defence against an act done, or attempted to be done, by a public servant, as such, unless he knows or has reason to believe, that the person doing the act is such public servant.

**Explanation 2**

*A person is not deprived of the right of private defence against an act done, or attempted to be done, by the direction of a public servant, unless he knows, or has reason to believe, that the person doing the act is acting by such direction, or unless such person states the authority under which he acts, or if he has authority in writing, unless he produces such authority, if demanded.*

#### **Simple Explanation:**

The right of private defense does not apply in the following situations:

1. **Acts by Public Servants:** If a public servant, acting in good faith within their official role, performs an action that doesn't reasonably cause fear of death or serious harm, private defense is not allowed.
2. **Time to Seek Protection:** If there's enough time to seek help from authorities (like police), private defense is not applicable.
3. **Limit on Harm:** You can only defend yourself by inflicting the minimum harm necessary, no more.

**Explanations:** Even if the attacker is a public servant or acting on their orders, the right to self-defense is valid if the person is unaware of their role or authority.

#### *Section 38:*

*The right of private defence of the body extends, under the restrictions specified in section 37, to the voluntary causing of death or of any other harm to the assailant, if the offence which occasions the exercise of the right be of any of the descriptions hereinafter enumerated, namely:*

- (a) such an assault as may reasonably cause the apprehension that death will otherwise be the consequence of such assault;*
- (b) such an assault as may reasonably cause the apprehension that grievous hurt will otherwise be the consequence of such assault;*
- (c) an assault with the intention of committing rape;*
- (d) an assault with the intention of gratifying unnatural lust;*
- (e) an assault with the intention of kidnapping or abducting;*
- (f) an assault with the intention of wrongfully confining a person, under circumstances which may reasonably cause him to apprehend that he will be unable to have recourse to the public authorities for his release;*
- (g) an act of throwing or administering acid or an attempt to throw or administer acid which may reasonably cause the apprehension that grievous hurt will otherwise be the consequence of such act.*

**Simple Explanation:** The right to defend oneself, including causing death or harm to the attacker, applies in the following situations:

1. **Reasonable Fear of Death or Serious Harm:** If the attack could lead to death or grievous harm.
2. **Sexual Offenses:** If the assault is meant for rape or unnatural lust.
3. **Kidnapping or Abduction:** If the assault is meant to kidnap or abduct someone.
4. **Wrongful Confinement:** If the attacker intends to wrongfully imprison someone, causing them to fear they can't get help.
5. **Acid Attack:** If someone is throwing or attempting to throw acid, causing a reasonable fear of serious harm.

**This defense must be within the limits set by section 37, which restricts excessive retaliation.**

#### *Section 39:*

*If the offence be not of any of the descriptions specified in section 38, the right of private defence of the body does not extend to the voluntary causing of death to the assailant, but does extend, under the restrictions specified in section 37, to the voluntary causing to the assailant of any harm other than death.*

**Simple Explanation:** If the offense does not fall under the situations described in section 38, the right of private defense does not allow causing death to the assailant. However, it still permits causing harm (other than death) to the assailant, as long as it is within the restrictions specified in section 37.

#### Section 40:

*The right of private defence of the body commences as soon as a reasonable apprehension of danger to the body arises from an attempt or threat to commit the offence though the offence may not have been committed; and it continues as long as such apprehension of danger to the body continues.*

**Simple Explanation:** This means that the right to defend yourself starts as soon as you feel there is a real threat or danger to your body, even if the person hasn't yet committed the offense. For example, if someone threatens to attack you, you have the right to defend yourself. Your right to defend yourself lasts as long as you still feel threatened. If the threat is over, the right to defend yourself also ends.

#### Section 41:

*The right of private defence of property extends, under the restrictions specified in section 37, to the voluntary causing of death or of any other harm to the wrong-doer, if the offence, the committing of which, or the attempting to commit which, occasions the exercise of the right, be an offence of any of the descriptions hereinafter enumerated, namely:*

*(a) robbery;*

*(b) house-breaking after sunset and before sunrise;*

*(c) mischief by fire or any explosive substance committed on any building, tent or vessel, which building, tent or vessel is used as a human dwelling, or as a place for the custody of property;*

*(d) theft, mischief, or house-trespass, under such circumstances as may reasonably cause apprehension that death or grievous hurt will be the consequence, if such right of private defence is not exercised.*

**Simple Explanation:** The right to defend your property allows you to use force, even causing harm or death to the wrongdoer, under certain circumstances. This right applies if:

- **Robbery is being committed.**
- **House-breaking happens between sunset and sunrise.**
- **Mischief by fire or explosives is committed on a building, tent, or vessel that is used as a home or for storing property.**
- **Theft, mischief, or trespassing occurs in situations where there's a reasonable fear that death or serious injury could happen if you don't defend your property.**

**In such cases, you can use force to protect your property, even if it leads to serious harm, as long as the situation justifies it.**

#### Section 42:

*If the offence, the committing of which, or the attempting to commit which occasions the exercise of the right of private defence, be theft, mischief, or criminal trespass, not of any of the descriptions specified in section 41, that right does not extend to the voluntary causing of death, but does extend, subject to the restrictions specified in section 37, to the voluntary causing to the wrong-doer of any harm other than death.*

**Simple Explanation:** If the crime being committed is theft, mischief, or criminal trespass (but not one of the more serious types mentioned in section 41), the right to defend your property does not allow causing death. However,

**you can still defend your property by using force that causes harm to the wrongdoer, except death, as long as the force used is necessary and reasonable under the circumstances. This is subject to the restrictions in section 37, which ensures that the defense is proportional and not excessive.**

*Section 43:*

- (a) commences when a reasonable apprehension of danger to the property commences;*
- (b) against theft continues till the offender has effected his retreat with the property or either the assistance of the public authorities is obtained, or the property has been recovered;*
- (c) against robbery continues as long as the offender causes or attempts to cause to any person death or hurt or wrongful restraint or as long as the fear of instant death or of instant hurt or of instant personal restraint continues;*
- (d) against criminal trespass or mischief continues as long as the offender continues in the commission of criminal trespass or mischief;*
- (e) against house-breaking after sunset and before sunrise continues as long as the house-trespass which has been begun by such house-breaking continues.*

**Simple Explanation: The right of private defense of property works as follows:**

- 1. It starts when you have a reasonable fear of danger to your property.**
- 2. Against theft: The right continues until the thief has escaped with the property or until the authorities are called or the property is recovered.**
- 3. Against robbery: The right continues as long as the robber is causing harm (like death or injury) or threatening harm, or until the fear of such harm ends.**
- 4. Against criminal trespass or mischief: The right continues as long as the person is still committing the trespass or damage.**
- 5. Against house-breaking (after sunset and before sunrise): The right continues as long as the break-in or trespass is ongoing.**

**In essence, the right of defense lasts as long as the immediate danger to your property continues.**

*Section 44:*

*If in the exercise of the right of private defence against an assault which reasonably causes the apprehension of death, the defender be so situated that he cannot effectually exercise that right without risk of harm to an innocent person, his right of private defence extends to the running of that risk.*

*Illustration*

*A is attacked by a mob who attempt to murder him. He cannot effectually exercise his right of private defence without firing on the mob, and he cannot fire without risk of harming young children who are mingled with the mob. A commits no offence if by so firing he harms any of the children.*

**Simple Explanation: The right of private defense allows you to protect yourself even if it might unintentionally harm innocent people, as long as the harm is a consequence of defending yourself from a serious threat like death.**

**In the given example:**

- A is attacked by a mob trying to kill him.**
- A cannot defend himself without the risk of hurting innocent children who are in the mob.**
- A is not considered to have committed an offense if, in defending himself, he harms the children.**

**This means that if you must defend yourself and it risks harming innocent people, you're still protected by the law, as long as the harm is a result of protecting yourself from death or serious injury.**



#### Section 45:

*A person abets the doing of a thing, who -*

*(a) instigates any person to do that thing; or*

*(b) engages with one or more other person or persons in any conspiracy for the doing of that thing, if an act or illegal omission takes place in pursuance of that conspiracy, and in order to the doing of that thing; or*

*(c) intentionally aids, by any act or illegal omission, the doing of that thing.*

#### **Explanation 1**

*A person who, by wilful misrepresentation, or by wilful concealment of a material fact which he is bound to disclose, voluntarily causes or procures, or attempts to cause or procure, a thing to be done, is said to instigate the doing of that thing.*

#### *Illustration*

*A, a public officer, is authorised by a warrant from a Court to apprehend Z. B, knowing that fact and also that C is not Z, wilfully represents to A that C is Z, and thereby intentionally causes A to apprehend C. Here B abets by instigation the apprehension of C.*

#### *Explanation 2*

*Whoever, either prior to or at the time of the commission of an act, does anything in order to facilitate the commission of that act, and thereby facilitates the commission thereof, is said to aid the doing of that act.*

**Simple Explanation: Abetment refers to encouraging, assisting, or conspiring to help someone commit a crime.**

**There are three ways a person can abet a crime:**

- 1. Instigation: When someone encourages or urges another person to commit a crime.**
- 2. Conspiracy: When two or more people plan to commit a crime, and an illegal act happens as a result of that plan.**
- 3. Aiding: When someone helps or assists in committing a crime through actions or omissions (i.e., not doing something they should have).**

**Explanation 1: If a person deliberately hides or lies about important facts to get someone to commit a crime, it counts as instigation.**

#### **Example:**

- **A public officer is ordered by the court to arrest Z.**
- **B knows that C is not Z but lies to A, saying C is Z.**
- **This causes A to arrest C instead of Z. Here, B has instigated the wrongful act by making A apprehend the wrong person.**

**Explanation 2: If a person takes any action that helps facilitate a crime, even if they don't directly commit it, they are considered to have aided in the crime.**

#### Section 46:

*A person abets an offence, who abets either the commission of an offence, or the commission of an act which would be an offence, if committed by a person capable by law of committing an offence with the same intention or knowledge as that of the abettor.*

#### **Explanation 1**

*The abetment of the illegal omission of an act may amount to an offence although the abettor may not himself be bound to do that act.*

## **Explanation 2**

*To constitute the offence of abetment it is not necessary that the act abetted should be committed, or that the effect requisite to constitute the offence should be caused.*

### **Illustrations**

*(a) A instigates B to murder C. B refuses to do so. A is guilty of abetting B to commit murder.*

*(b) A instigates B to murder D. B in pursuance of the instigation stabs D. D recovers from the wound. A is guilty of instigating B to commit murder.*

## **Explanation 3**

*It is not necessary that the person abetted should be capable by law of committing an offence, or that he should have the same guilty intention or knowledge as that of the abettor, or any guilty intention or knowledge.*

### **Illustrations**

*(a) A, with a guilty intention, abets a child or a person of unsound mind to commit an act which would be an offence, if committed by a person capable by law of committing an offence, and having the same intention as A. Here A, whether the act be committed or not, is guilty of abetting an offence.*

*(b) A, with the intention of murdering Z, instigates B, a child under seven years of age, to do an act which causes Z's death. B, in consequence of the abetment, does the act in the absence of A and thereby causes Z's death. Here, though B was not capable by law of committing an offence, A is liable to be punished in the same manner as if B had been capable by law of committing an offence, and had committed murder, and he is therefore subject to the punishment of death.*

*(c) A instigates B to set fire to a dwelling-house. B, in consequence of his unsoundness of mind, being incapable of knowing the nature of the act, or that he is doing what is wrong or contrary to law, sets fire to the house in consequence of A's instigation. B has committed no offence, but A is guilty of abetting the offence of setting fire to a dwelling-house, and is liable to the punishment provided for that offence.*

*(d) A, intending to cause a theft to be committed, instigates B to take property belonging to Z out of Z's possession. A induces B to believe that the property belongs to A. B takes the property out of Z's possession, in good faith, believing it to be A's property. B, acting under this misconception, does not take dishonestly, and therefore does not commit theft. But A is guilty of abetting theft, and is liable to the same punishment as if B had committed theft.*

## **Explanation 4**

*The abetment of an offence being an offence, the abetment of such an abetment is also an offence.*

### **Illustration**

*A instigates B to instigate C to murder Z. B accordingly instigates C to murder Z, and C commits that offence in consequence of B's instigation. B is liable to be punished for his offence with the punishment for murder; and, as A instigated B to commit the offence, A is also liable to the same punishment.*

## **Explanation 5**

*It is not necessary to the commission of the offence of abetment by conspiracy that the abettor should concert the offence with the person who commits it. It is sufficient if he engages in the conspiracy in pursuance of which the offence is committed.*

### **Illustration**

*A conspires with B a plan for poisoning Z. It is agreed that A shall administer the poison. B then explains the plan to C mentioning that a third person is to administer the poison, but without mentioning A's name. C agrees to procure the poison, and procures and delivers it to B for the purpose of its being used in the manner explained. A administers the poison; Z dies in consequence. Here, though A and C have not conspired together, yet C has been engaged in the conspiracy in pursuance of which Z has been murdered. C has therefore committed the offence defined in this section and is liable to the punishment for murder*

**Simple Explanation:** In simpler terms, abetment refers to encouraging or assisting in committing an offence. A person abets an offence if they help or encourage someone else to commit an act that would be an offence if done by a person who is legally capable of committing it with the same intent or knowledge.

**Key points explained:**

1. **Abetting an act that would be a crime:** If a person encourages or assists someone else to do something that would be a crime if done by a person capable of committing the offence, that person is guilty of abetment.

**Example:** A tells B to commit murder. Even if B refuses, A is still guilty of attempting to get B to commit murder.

2. **Abetment of illegal omissions:** A person can be guilty of abetment even if the action they encourage isn't directly carried out by them. This applies to both actions and omissions (failure to act).
3. **Abetment without the act being committed:** It's not necessary for the actual crime to occur for the abettor to be guilty. If they instigate or aid in the commission of the crime, they are liable for abetment regardless of whether the crime happens.

**Example:** A tells B to murder someone, and B stabs the person, but the person survives. A is still guilty of abetting a murder, even though the victim didn't die.

4. **Abetment by aiding someone incapable of committing the offence:** A person can still be guilty of abetment even if the person they're encouraging or assisting is incapable of committing the offence (e.g., a child or someone mentally ill).

**Example 1:** A tells a child to commit murder, even though the child can't be held responsible by law. A is still guilty of abetment.

**Example 2:** A convinces a mentally ill person to commit a crime, and the person doesn't understand the act is wrong. A is still guilty of abetment.

5. **Abetment of an abetment:** If a person encourages someone to encourage another person to commit a crime, they too are guilty of abetment.

**Example:** A tells B to convince C to murder someone. B convinces C to do it, and C murders the person. A is also guilty of abetting the murder.

6. **Conspiracy:** A person can be guilty of abetment even if they are not directly involved in the crime. If they are part of a conspiracy, or plan, and the crime happens because of that conspiracy, they are guilty of abetment.

**Example:** A and B plan to poison Z. C helps by getting the poison for them. Even though A and C never directly work together, C is guilty of abetting the crime.

*Section 47:*

*A person abets an offence within the meaning of this Sanhita who, in India, abets the commission of any act without and beyond India which would constitute an offence if committed in India.*

*Illustration*

*A, in India, instigates B, a foreigner in country X, to commit a murder in that country, A is guilty of abetting murder.*

**Simple Explanation:** If a person in India encourages, assists, or conspires with someone in another country to commit a crime, that person in India can still be guilty of abetment as if the crime had been committed within India.

**Example:**

- A is in India and tells B, who is in country X, to commit murder.
- Even though the murder happens in country X, A in India is still guilty of abetting the murder, because the act of murder would be considered a crime if it had happened in India.

*Section 48: A person abets an offence within the meaning of this Sanhita who, without and beyond India, abets the commission of any act in India which would constitute an offence if committed in India.*

#### **Illustration**

*A, in country X, instigates B, to commit a murder in India, A is guilty of abetting murder.*

**Simple Explanation:** If someone is in another country (outside India) and encourages or helps someone in India to commit a crime, that person is guilty of abetment, just as if they were in India.

**Example:**

- A is in country X and tells B, who is in India, to commit murder.
- B then carries out the murder in India.
- A in country X is guilty of abetting murder in India, even though the act of encouragement or assistance took place outside India.

*Section 49:*

*Whoever abets any offence shall, if the act abetted is committed in consequence of the abetment, and no express provision is made by this Sanhita for the punishment of such abetment, be punished with the punishment provided for the offence.*

**Explanation.** - An act or offence is said to be committed in consequence of abetment, when it is committed in consequence of the instigation, or in pursuance of the conspiracy, or with the aid which constitutes the abetment.

#### **Illustrations**

*(a) A instigates B to give false evidence. B, in consequence of the instigation, commits that offence. A is guilty of abetting that offence, and is liable to the same punishment as B.*

*(b) A and B conspire to poison Z. A, in pursuance of the conspiracy, procures the poison and delivers it to B in order that he may administer it to Z. B, in pursuance of the conspiracy, administers the poison to Z in A's absence and thereby causes Z's death. Here B is guilty of murder. A is guilty of abetting that offence by conspiracy, and is liable to the punishment for murder.*

**Simple Explanation:** This section explains that if someone abets a crime, meaning they encourage, assist, or conspire to help commit it, they will be punished the same way as the person who actually carries out the crime, unless there is a specific law that provides a different punishment for abetment.

- If the person committing the crime does so because of the instigation, conspiracy, or aid given by the abettor, the abettor will be punished as if they committed the crime themselves.
- This punishment applies if no specific law already provides for a separate punishment for the act of abetment.

**Example:**

**(a) A tells B to give false evidence. B follows through and gives false evidence. A will be punished as if A themselves gave false evidence, even though A did not do it.**

**(b) A and B plan to poison Z. A provides B with the poison, and B administers it, causing Z's death. A is guilty of murder, just like B, because A was part of the conspiracy and helped carry out the crime.**

*Section 50:*

*Whoever abets the commission of an offence shall, if the person abetted does the act with a different intention or knowledge from that of the abettor, be punished with the punishment provided for the offence which would have been committed if the act had been done with the intention or knowledge of the abettor and with no other.*

**Simple Explanation:** This section means that if someone abets a crime, but the person committing it does so with a different intention or knowledge than what the abettor intended, the abettor will still be punished as if the crime had been committed with their original intention or knowledge.

#### Section 51:

*When an act is abetted and a different act is done, the abettor is liable for the act done, in the same manner and to the same extent as if he had directly abetted it:*

*Provided that the act done was a probable consequence of the abetment, and was committed under the influence of the instigation, or with the aid or in pursuance of the conspiracy which constituted the abetment.*

#### **Illustrations**

*(a) A instigates a child to put poison into the food of Z, and gives him poison for that purpose. The child, in consequence of the instigation, by mistake puts the poison into the food of Y, which is by the side of that of Z. Here, if the child was acting under the influence of A's instigation, and the act done was under the circumstances a probable consequence of the abetment, A is liable in the same manner and to the same extent as if he had instigated the child to put the poison into the food of Y.*

*(b) A instigates B to burn Z's house, B sets fire to the house and at the same time commits theft of property there. A, though guilty of abetting the burning of the house, is not guilty of abetting the theft; for the theft was a distinct act, and not a probable consequence of the burning.*

*(c) A instigates B and C to break into an inhabited house at midnight for the purpose of robbery, and provides them with arms for that purpose. B and C break into the house, and being resisted by Z, one of the inmates, murder Z. Here, if that murder was the probable consequence of the abetment, A is liable to the punishment provided for murder.*

**Simple Explanation:** This section states that if a person abets an act but a different act is committed as a probable consequence, the abettor is still held liable as if they had directly abetted the act. The liability arises if the act was committed under the influence of the abettor's instigation, aid, or conspiracy. For example, if A instigates a child to poison Z's food, but the child mistakenly poisons Y's food instead, A is still responsible for poisoning Y. Similarly, if A instigates B and C to commit robbery and provides them with weapons, and during the robbery, they kill an inmate resisting them, A is liable for murder since it was a foreseeable consequence. However, if A abets B to burn a house, and B also commits theft independently, A is not liable for theft, as it was not a probable consequence of the abetment. This provision ensures that abettors are held accountable for the natural consequences of their actions, even if the act committed differs from the original intention.

#### Section 52:

*If the act for which the abettor is liable under section 51 is committed in addition to the act abetted, and constitutes a distinct offence, the abettor is liable to punishment for each of the offences.*

#### **Illustration**

*A instigates B to resist by force a distress made by a public servant. B, in consequence, resists that distress. In offering the resistance, B voluntarily causes grievous hurt to the officer executing the distress. As B has committed both the offence of resisting the distress, and the offence of voluntarily causing grievous hurt, B is liable to punishment for both these offences; and, if A knew that B was likely voluntarily to cause grievous hurt in resisting the distress, A will also be liable to punishment for each of the offences.*

**Simple Explanation:** This section explains that if someone (the abettor) helps or encourages another person to commit a crime, and in doing so, an additional crime is committed, the abettor will be punished for both crimes separately. For example, if A tells B to use force against a government officer trying to take legal action (like seizing property for unpaid dues), and B does so, that's one crime. But if B also injures the officer badly in the process, that's a second crime. Since A encouraged B's actions, A will also be punished for both crimes—resisting legal action and causing grievous hurt—if A knew that such harm was likely to happen. This ensures that people who incite crimes are held fully responsible for the consequences.

#### Section 53:

*When an act is abetted with the intention on the part of the abettor of causing a particular effect, and an act for which the abettor is liable in consequence of the abetment, causes a different effect from that intended by the abettor, the abettor is*

*liable for the effect caused, in the same manner and to the same extent as if he had abetted the act with the intention of causing that effect, provided he knew that the act abetted was likely to cause that effect.*

### **Illustration**

*A instigates B to cause grievous hurt to Z. B, in consequence of the instigation, causes grievous hurt to Z. Z dies in consequence. Here, if A knew that the grievous hurt abetted was likely to cause death, A is liable to be punished with the punishment provided for murder.*

**Simple Explanation:** This section states that if a person (the abettor) encourages or helps someone commit an act with a specific intention, but the act results in a different or more severe consequence, the abettor will still be held responsible for the actual outcome—provided they knew that such a result was possible. For example, if A tells B to injure Z badly, and B does so, but Z dies from the injuries, A will be punished for murder if A was aware that grievous hurt could lead to death. This law ensures that people who incite crimes cannot escape responsibility just because the final result was worse than what they originally intended.

### **Section 54:**

*Whenever any person, who is absent would be liable to be punished as an abettor, is present when the act or offence for which he would be punishable in consequence of the abetment is committed, he shall be deemed to have committed such act or offence.*

**Simple Explanation:** If a person encourages someone to commit a crime and is also present at the scene when it happens, they cannot escape liability by saying they were "just watching." The law considers them just as guilty as the person actually committing the crime. This ensures that people who actively support criminal acts, even by their presence, are held fully accountable.

### **Section 55:**

*Whoever abets the commission of an offence punishable with death or imprisonment for life, shall, if that offence be not committed in consequence of the abetment, and no express provision is made under this Sanhita for the punishment of such abetment, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine; and if any act for which the abettor is liable in consequence of the abetment, and which causes hurt to any person, is done, the abettor shall be liable to imprisonment of either description for a term which may extend to fourteen years, and shall also be liable to fine.*

### **Illustration**

*A instigates B to murder Z. The offence is not committed. If B had murdered Z, he would have been subject to the punishment of death or imprisonment for life. Therefore, A is liable to imprisonment for a term which may extend to seven years and also to a fine; and if any hurt be done to Z in consequence of the abetment, he will be liable to imprisonment for a term which may extend to fourteen years, and to fine.*

**Simple Explanation:** If a person instigates or supports such a crime but it is not carried out, they can still be punished with imprisonment for up to seven years and a fine. However, if any harm is caused to someone due to the abetment (even if the crime itself was not fully committed), the punishment increases to fourteen years of imprisonment along with a fine. For example, if A tells B to murder Z, but B does not go through with it, A can still be jailed for up to seven years. But if B, due to A's instigation, injures Z in the process, A's punishment can go up to fourteen years. This law ensures that people who encourage serious crimes face strict consequences, even if the crime is not fully carried out.

### **Section 56:**

*Whoever abets an offence punishable with imprisonment shall, if that offence be not committed in consequence of the abetment, and no express provision is made under this Sanhita for the punishment of such abetment, be punished with imprisonment of any description provided for that offence for a term which may extend to one-fourth part of the longest term provided for that offence; or with such fine as is provided for that offence, or with both; and if the abettor or the person abetted is a public servant, whose duty it is to prevent the commission of such offence, the abettor shall be punished with*

*imprisonment of any description provided for that offence, for a term which may extend to one-half of the longest term provided for that offence, or with such fine as is provided for the offence, or with both.*

#### *Illustrations*

*(a) A instigates B to give false evidence. Here, if B does not give false evidence, A has nevertheless committed the offence defined in this section, and is punishable accordingly.*

*(b) A, a police officer, whose duty it is to prevent robbery, abets the commission of robbery. Here, though the robbery be not committed, A is liable to one-half of the longest term of imprisonment provided for that offence, and also to fine.*

*(c) B abets the commission of a robbery by A, a police officer, whose duty it is to prevent that offence. Here, though the robbery be not committed, B is liable to one-half of the longest term of imprisonment provided for the offence of robbery, and also to fine.*

**Simple Explanation:** If someone encourages or helps commit such an offence but it is not carried out, they can still be punished with imprisonment for up to one-fourth of the maximum sentence prescribed for that crime or with a fine, or both. However, if the abettor or the person being abetted is a public servant (like a police officer) whose duty is to prevent the crime, the punishment increases to one-half of the maximum sentence for that crime, along with a fine.

**For example:**

- If A tells B to give false evidence in court but B does not do it, A is still guilty and will be punished.
- If a police officer (A) is supposed to prevent robbery but instead abets someone to commit it, even if the robbery does not happen, A will face half of the maximum punishment for robbery.
- If someone (B) encourages a police officer (A) to commit robbery, even if it does not happen, B will also be punished with up to half of the maximum term for robbery.

**This law ensures that even unsuccessful attempts at abetting a crime are punished, especially when people in positions of authority betray their duty.**

#### *Section 57:*

*Whoever abets the commission of an offence by the public generally or by any number or class of persons exceeding ten, shall be punished with imprisonment of either description for a term which may extend to seven years and with fine.*

#### **Illustration**

*A affixes in a public place a placard instigating a sect consisting of more than ten members to meet at a certain time and place, for the purpose of attacking the members of an adverse sect, while engaged in a procession. A has committed the offence defined in this section.*

**Simple Explanation:** This section states that if someone encourages or provokes a large group of people (more than ten) to commit a crime, they can be punished with imprisonment for up to seven years and a fine. For example, if a person puts up a poster in a public place, urging a group of more than ten people from a particular sect to attack another sect during a procession, that person has committed an offense under this section.

#### *Section 58:*

*Whoever intending to facilitate or knowing it to be likely that he will thereby facilitate the commission of an offence punishable with death or imprisonment for life, voluntarily conceals by any act or omission, or by the use of encryption or any other information hiding tool, the existence of a design to commit such offence or makes any representation which he knows to be false respecting such design shall,--*

*(a) if that offence be committed, be punished with imprisonment of either description for a term which may extend to seven years; or*

*(b) if the offence be not committed, with imprisonment of either description, for a term which may extend to three years,*

and shall also be liable to fine.

### **Illustration**

*A, knowing that dacoity is about to be committed at B, falsely informs the Magistrate that a dacoity is about to be committed at C, a place in an opposite direction, and thereby misleads the Magistrate with intent to facilitate the commission of the offence. The dacoity is committed at B in pursuance of the design. A is punishable under this section.*

**Simple Explanation:** This section punishes anyone who intentionally hides or helps in hiding plans to commit a serious crime, such as one punishable by death or life imprisonment. This can be done by concealing information, using encryption, or providing false information to mislead authorities.

- If the crime actually happens, the person hiding the information can face up to seven years in prison and a fine.
- If the crime does not happen, they can be jailed for up to three years along with a fine.

**Example:** Suppose A knows that a group is planning a dacoity (robbery) at place B. To mislead the police, A falsely informs the Magistrate that the crime will happen at place C (a different location). Because of this false information, the police are diverted, and the dacoity successfully happens at B. A is guilty under this section and will be punished.

### **Section 59:**

*Whoever, being a public servant, intending to facilitate or knowing it to be likely that he will thereby facilitate the commission of an offence which it is his duty as such public servant to prevent, voluntarily conceals, by any act or omission or by the use of encryption or any other information hiding tool, the existence of a design to commit such offence, or makes any representation which he knows to be false respecting such design shall,--*

*(a) if the offence be committed, be punished with imprisonment of any description provided for the offence, for a term which may extend to one-half of the longest term of such imprisonment, or with such fine as is provided for that offence, or with both; or*

*(b) if the offence be punishable with death or imprisonment for life, with imprisonment of either description for a term which may extend to ten years; or*

*(c) if the offence be not committed, shall be punished with imprisonment of any description provided for the offence for a term which may extend to one-fourth part of the longest term of such imprisonment or with such fine as is provided for the offence, or with both.*

### **Illustration**

*A, an officer of police, being legally bound to give information of all designs to commit robbery which may come to his knowledge, and knowing that B designs to commit robbery, omits to give such information, with intent to so facilitate the commission of that offence.*

*Here A has by an illegal omission concealed the existence of B's design, and is liable to punishment according to the provision of this section.*

**Simple Explanation:** This section applies to public servants (such as police officers) who knowingly hide or fail to report plans for a crime that they are duty-bound to prevent. If they use encryption or any information-hiding tools or provide false information to mislead others about the crime, they will be punished as follows:

- If the crime happens, they will face up to half of the maximum punishment for that crime, or a fine, or both.
- If the crime is punishable by death or life imprisonment, they can be jailed for up to ten years.
- If the crime does not happen, they can be jailed for up to one-fourth of the maximum punishment for that crime, or fined, or both.

**Example:** If a police officer learns that a person is planning a robbery but deliberately chooses not to report it, allowing the crime to occur, he is guilty under this section and will be punished accordingly.



#### Section 60:

*Whoever, intending to facilitate or knowing it to be likely that he will thereby facilitate the commission of an offence punishable with imprisonment, voluntarily conceals, by any act or illegal omission, the existence of a design to commit such offence, or makes any representation which he knows to be false respecting such design shall,--*

*(a) if the offence be committed, be punished with imprisonment of the description provided for the offence, for a term which may extend to one-fourth ; and*

*(b) if the offence be not committed, to one-eighth, of the longest term of such imprisonment, or with such fine as is provided for the offence, or with both.*

**Simple Explanation:** This section punishes anyone who intentionally hides or fails to disclose plans for a crime punishable with imprisonment. If someone misleads others by providing false information about the crime, they will be held responsible.

- If the crime happens, they can be jailed for up to one-fourth of the maximum punishment for that crime.
- If the crime does not happen, they can be jailed for up to one-eighth of the maximum punishment, or fined, or both.

**In simple terms,** if someone knows about a planned crime but chooses to remain silent or misguides others instead of reporting it, they will face punishment based on the severity of the offense.

#### Section 61:

##### *Criminal Conspiracy*

*(1) When two or more persons agree with the common object to do, or cause to be done--*

*(a) an illegal act; or*

*(b) an act which is not illegal by illegal means, such an agreement is designated a criminal conspiracy:*

*Provided that no agreement except an agreement to commit an offence shall amount to a criminal conspiracy unless some act besides the agreement is done by one or more parties to such agreement in pursuance thereof.*

*Explanation: It is immaterial whether the illegal act is the ultimate object of such agreement, or is merely incidental to that object.*

*(2) Whoever is a party to a criminal conspiracy,--*

*(a) to commit an offence punishable with death, imprisonment for life or rigorous imprisonment for a term of two years or upwards, shall, where no express provision is made in this Sanhita for the punishment of such a conspiracy, be punished in the same manner as if he had abetted such offence;*

*(b) other than a criminal conspiracy to commit an offence punishable as aforesaid shall be punished with imprisonment of either description for a term not exceeding six months, or with fine or with both.*

**Simple Explanation:** Criminal conspiracy happens when two or more people agree to commit an illegal act or a legal act through illegal means. Simply agreeing to commit a crime is enough to be considered conspiracy, but if the act itself is not a crime, at least one person must take some action toward executing the plan. It doesn't matter if the illegal act is the main goal or just a step toward another objective.

**Anyone involved in a criminal conspiracy to commit a serious crime (punishable by death, life imprisonment, or at least two years in prison) will be punished as if they had directly helped commit the crime. If the conspiracy is for a lesser offense, the punishment can be up to six months in jail, a fine, or both.**

#### Section 62:

*Whoever attempts to commit an offence punishable by this Sanhita with imprisonment for life or imprisonment, or to cause such an offence to be committed, and in such attempt does any act towards the commission of the offence, shall, where no express provision is made by this Sanhita for the punishment of such attempt, be punished with imprisonment of*

any description provided for the offence, for a term which may extend to one-half of the imprisonment for life or, as the case may be, one-half of the longest term of imprisonment provided for that offence, or with such fine as is provided for the offence, or with both.

### **Illustrations**

- (a) A makes an attempt to steal some jewels by breaking open a box, and finds after so opening the box, that there is no jewel in it. He has done an act towards the commission of theft, and therefore is guilty under this section.
- (b) A makes an attempt to pick the pocket of Z by thrusting his hand into Z's pocket. A fails in the attempt in consequence of Z's having nothing in his pocket. A is guilty under this section.

**Simple Explanation:** This section states that if someone attempts to commit a crime that is punishable by life imprisonment or any other imprisonment, and takes any action towards committing it, they will be punished—even if they fail to complete the crime. If no specific punishment for the attempt is mentioned in the law, they can be punished with up to half of the maximum imprisonment prescribed for that crime, a fine, or both. For example, if A tries to steal jewels by breaking open a box but finds nothing inside, or if A tries to pickpocket Z but Z's pocket is empty, A is still guilty because they attempted to commit a crime and took action toward it.

Section 63:

A man is said to commit "**rape**" if he -

- (a) penetrates his penis, to any extent, into the vagina, mouth, urethra or anus of a woman or makes her to do so with him or any other person; or
- (b) inserts, to any extent, any object or a part of the body, not being the penis, into the vagina, the urethra or anus of a woman or makes her to do so with him or any other person; or
- (c) manipulates any part of the body of a woman so as to cause penetration into the vagina, urethra, anus or any part of body of such woman or makes her to do so with him or any other person; or
- (d) applies his mouth to the vagina, anus, urethra of a woman or makes her to do so with him or any other person,

under the circumstances falling under any of the following seven descriptions: -

- (i) against her will;
- (ii) without her consent;
- (iii) with her consent, when her consent has been obtained by putting her or any person in whom she is interested, in fear of death or of hurt;
- (iv) with her consent, when the man knows that he is not her husband and that her consent is given because she believes that he is another man to whom she is or believes herself to be lawfully married;
- (v) with her consent when, at the time of giving such consent, by reason of unsoundness of mind or intoxication or the administration by him personally or through another of any stupefying or unwholesome substance, she is unable to understand the nature and consequences of that to which she gives consent;
- (vi) with or without her consent, when she is under eighteen years of age;
- (vii) when she is unable to communicate consent.

**Explanation 1.** - For the purposes of this section, "vagina" shall also include labia majora.

**Explanation 2.** - Consent means an unequivocal voluntary agreement when the woman by words, gestures or any form of verbal or non-verbal communication, communicates willingness to participate in the specific sexual act:

Provided that a woman who does not physically resist to the act of penetration shall not by the reason only of that fact, be regarded as consenting to the sexual activity.

**Exception 1.** - A medical procedure or intervention shall not constitute rape.

**Exception 2.** - Sexual intercourse or sexual acts by a man with his own wife, the wife not being under eighteen years of age, is not rape.

**Simple Explanation:** This section defines rape as any form of non-consensual sexual act involving penetration, manipulation, or forced oral contact with a woman. It covers various forms of sexual assault, including penetration by the penis, objects, or body parts, as well as forced oral contact.

**A man commits rape if the act is done under any of these conditions:**

1. Against her will
2. Without her consent
3. With consent obtained through fear of death or harm
4. With consent obtained by deceiving her into believing he is her husband
5. With consent when she is unable to understand due to intoxication, drugs, or mental illness
6. With or without consent if she is under 18 years old
7. When she is unable to communicate consent

**Key Points on Consent:**

- Consent must be clear, voluntary, and communicated through words or actions.
- Not resisting physically does not mean consent.

**Exceptions:**

- Medical procedures are not rape.
- Sexual acts between a husband and wife (if she is 18 or older) are not considered rape.

*Section 64:*

*(1) Whoever, except in the cases provided for in sub-section (2), commits rape, shall be punished with rigorous imprisonment of either description for a term which shall not be less than ten years, but which may extend to imprisonment for life, and shall also be liable to fine.*

*(2) Whoever,*

*(a) being a police officer, commits rape,*

*(i) within the limits of the police station to which such police officer is appointed; or*

*(ii) in the premises of any station house; or*

*(iii) on a woman in such police officer's custody or in the custody of a police officer subordinate to such police officer;*

*(b) being a public servant, commits rape on a woman in such public servant's custody or in the custody of a public servant subordinate to such public servant; or*

*(c) being a member of the armed forces deployed in an area by the Central Government or a State Government commits rape in such area; or*

*(d) being on the management or on the staff of a jail, remand home or other place of custody established by or under any law for the time being in force or of a women's or children's institution, commits rape on any inmate of such jail, remand home, place or institution; or*

*(e) being on the management or on the staff of a hospital, commits rape on a woman in that hospital; or*

*(f) being a relative, guardian or teacher of, or a person in a position of trust or authority towards the woman, commits rape on such woman; or*

*(g) commits rape during communal or sectarian violence; or*

- (h) commits rape on a woman knowing her to be pregnant; or*
- (i) commits rape on a woman incapable of giving consent; or*
- (j) being in a position of control or dominance over a woman, commits rape on such woman; or*
- (k) commits rape on a woman suffering from mental or physical disability; or*
- (l) while committing rape causes grievous bodily harm or maims or disfigures or endangers the life of a woman; or*
- (m) commits rape repeatedly on the same woman,*

*shall be punished with rigorous imprisonment for a term which shall not be less than ten years, but which may extend to imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, and shall also be liable to fine.*

*Explanation : For the purposes of this sub-section,*

- (a) "armed forces" means the naval, army and air forces and includes any member of the Armed Forces constituted under any law for the time being in force, including the paramilitary forces and any auxiliary forces that are under the control of the Central Government or the State Government;*
- (b) "hospital" means the precincts of the hospital and includes the precincts of any institution for the reception and treatment of persons during convalescence or of persons requiring medical attention or rehabilitation;*
- (c) "police officer" shall have the same meaning as assigned to the expression "police" under the Police Act, 1861;*
- (d) "women's or children's institution" means an institution, whether called an orphanage or a home for neglected women or children or a widow's home or an institution called by any other name, which is established and maintained for the reception and care of women or children.*

#### **Simple Explanation:**

##### **(1) General Punishment for Rape**

- **Minimum Punishment: 10 years rigorous imprisonment.**
- **Maximum Punishment: Life imprisonment (which may extend for the remainder of natural life).**
- **Fine: Mandatory (amount not specified).**

##### **(2) Aggravated Rape Cases (Stricter Punishment)**

**If the offender falls under any of the following categories, the punishment is the same as above but with a stronger likelihood of life imprisonment for the remainder of natural life:**

- 1. Police Officer**
  - **Commits rape within their jurisdiction.**
  - **Commits rape inside a police station.**
  - **Commits rape on a woman in police custody.**
- 2. Public Servant: Commits rape on a woman in official custody.**
- 3. Armed Forces Member: Commits rape in a deployment area.**
- 4. Jail/Remand Home Staff: Commits rape on an inmate of such an institution.**
- 5. Hospital Staff/Management: Commits rape on a woman in a hospital.**
- 6. Relatives, Guardians, Teachers, or Persons in Authority: Commits rape on a woman under their care/trust.**
- 7. During Communal or Sectarian Violence**
- 8. On a Pregnant Woman: When the offender knows the woman is pregnant.**
- 9. On a Woman Incapable of Giving Consent: Due to mental/physical condition.**

10. **By a Person in a Position of Control or Dominance:** Uses influence or power to commit rape.
11. **On a Woman with a Mental or Physical Disability**
12. **Causing Grievous Harm, Disfigurement, or Endangering Life:** Serious injuries caused during the act.
13. **Repeated Rape of the Same Woman**

#### **Definitions & Clarifications**

- **Armed Forces:** Includes army, navy, air force, paramilitary, and auxiliary forces.
- **Hospital:** Includes medical and rehabilitation centers.
- **Police Officer:** As defined under the Police Act, 1861.
- **Women's or Children's Institution:** Includes orphanages, homes for neglected women/children, and widow homes.

**This section ensures harsher punishment for rape cases involving abuse of power, authority, or vulnerable victims.**

#### *Section 65:*

*(1) Whoever, commits rape on a woman under sixteen years of age shall be punished with rigorous imprisonment for a term which shall not be less than twenty years, but which may extend to imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, and shall also be liable to fine:*

- *Provided that such fine shall be just and reasonable to meet the medical expenses and rehabilitation of the victim:*
- *Provided further that any fine imposed under this sub-section shall be paid to the victim.*

*(2) Whoever, commits rape on a woman under twelve years of age shall be punished with rigorous imprisonment for a term which shall not be less than twenty years, but which may extend to imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, and with fine or with death:*

- *Provided that such fine shall be just and reasonable to meet the medical expenses and rehabilitation of the victim:*
- *Provided further that any fine imposed under this sub-section shall be paid to the victim.*

**Simple Explanation: This section deals with stricter punishments for rape of minor girls under 16 years and 12 years.**

- **Stronger Punishment for Child Rape:**
  - **Below 16 years → Minimum 20 years imprisonment.**
  - **Below 12 years → Minimum 20 years, up to life or death penalty.**
- **Victim-Centric Approach:**
  - **Fine is compulsory and must directly support the victim's recovery.**

**This provision ensures strict penalties for sexual crimes against minors and prioritizes the rehabilitation and well-being of victims.**

#### *Section 66:*

*Whoever, commits an offence punishable under sub-section (1) or sub-section (2) of section 64 and in the course of such commission inflicts an injury which causes the death of the woman or causes the woman to be in a persistent vegetative state, shall be punished with rigorous imprisonment for a term which shall not be less than twenty years, but which may extend to imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, or with death.*

**Simple Explanation: If someone commits rape under Section 64(1) or 64(2) and, in the process, causes the victim's death or leaves her in a persistent vegetative state, the punishment becomes much harsher. In such cases, the offender will face at least 20 years of rigorous imprisonment, but the sentence can extend to life imprisonment (till**

natural death) or even the death penalty. This provision ensures that the most heinous cases of sexual violence, where the victim either loses her life or suffers irreversible brain damage, are met with the strictest possible punishment.

Section 67:

*Whoever has sexual intercourse with his own wife, who is living separately, whether under a decree of separation or otherwise, without her consent, shall be punished with imprisonment of either description for a term which shall not be less than two years but which may extend to seven years, and shall also be liable to fine.*

*Explanation. - In this section, "sexual intercourse" shall mean any of the acts mentioned in clauses (a) to (d) of section 63.*

**Simple Explanation: This provision states that if a man has sexual intercourse with his wife without her consent while they are living separately (either due to a legal decree or any other reason), he can be punished with imprisonment between two to seven years and may also have to pay a fine.**

Section 68:

*Whoever, being -*

- *(a) in a position of authority or in a fiduciary relationship; or*
- *(b) a public servant; or*
- *(c) superintendent or manager of a jail, remand home or other place of custody established by or under any law for the time being in force, or a women's or children's institution; or*
- *(d) on the management of a hospital or being on the staff of a hospital,*

*abuses such position or fiduciary relationship to induce or seduce any woman either in his custody or under his charge or present in the premises to have sexual intercourse with him, such sexual intercourse not amounting to the offence of rape, shall be punished with rigorous imprisonment of either description for a term which shall not be less than five years, but which may extend to ten years, and shall also be liable to fine.*

*Explanation 1: In this section, "sexual intercourse" shall mean any of the acts mentioned in clauses (a) to (d) of section 63.*

*Explanation 2: For the purposes of this section, Explanation 1 to section 63 shall also be applicable.*

*Explanation 3: "Superintendent", in relation to a jail, remand home or other place of custody or a women's or children's institution, includes a person holding any other office in such jail, remand home, place or institution by virtue of which such person can exercise any authority or control over its inmates.*

*Explanation 4: The expressions "hospital" and "women's or children's institution" shall respectively have the same meanings as in clauses (b) and (d) of the Explanation to sub-section (2) of section 64.*

**Simple Explanation: This section states that if a person in a position of authority or trust (such as a public servant, jail superintendent, hospital staff, or someone managing a women's or children's institution) misuses their position to seduce or induce a woman under their charge into sexual intercourse, and the act does not amount to rape, they shall be punished with rigorous imprisonment of 5 to 10 years and a fine.**

**Key Points:**

- **The offender must hold a position of power or trust over the woman.**
- **The act must involve coercion, abuse of authority, or influence rather than force.**
- **It is not classified as rape, but still carries strict punishment.**
- **Definitions of "sexual intercourse" and relevant terms are linked to Section 63 and Section 64(2).**

Section 69:

*Whoever, by deceitful means or by making promise to marry to a woman without any intention of fulfilling the same, has sexual intercourse with her, such sexual intercourse not amounting to the offence of rape, shall be punished with imprisonment of either description for a term which may extend to ten years and shall also be liable to fine.*

**Explanation.** - "deceitful means" shall include inducement for, or false promise of employment or promotion, or marrying by suppressing identity.

**Simple Explanation:** This section states that if a person deceives a woman into having sexual intercourse by:

- **Making a false promise of marriage without intending to fulfill it, or**
- **Using deceitful means like false promises of employment, promotion, or hiding their true identity, and the act does not amount to rape, they shall be punished with imprisonment of up to 10 years and a fine.**

**Section 70:**

*(1) Where a woman is raped by one or more persons constituting a group or acting in furtherance of a common intention, each of those persons shall be deemed to have committed the offence of rape and shall be punished with rigorous imprisonment for a term which shall not be less than twenty years, but which may extend to imprisonment for life which shall mean imprisonment for the remainder of that person's natural life, and with fine:*

- *Provided that such fine shall be just and reasonable to meet the medical expenses and rehabilitation of the victim:*
- *Provided further that any fine imposed under this sub-section shall be paid to the victim.*

*(2) Where a woman under eighteen years of age is raped by one or more persons constituting a group or acting in furtherance of a common intention, each of those persons shall be deemed to have committed the offence of rape and shall be punished with imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, and with fine, or with death:*

- *Provided that such fine shall be just and reasonable to meet the medical expenses and rehabilitation of the victim:*
- *Provided further that any fine imposed under this sub-section shall be paid to the victim.*

**Simple Explanation:** If a woman is raped by multiple individuals acting together with a common intention, each of them is considered equally guilty of the crime. In such cases, the punishment is a minimum of 20 years of rigorous imprisonment, which may extend to life imprisonment for the remainder of the convict's natural life, along with a fine that is directed towards the victim's medical expenses and rehabilitation. If the victim is under 18 years of age, the punishment is more severe, with the offenders facing either life imprisonment for the remainder of their natural lives or the death penalty. Additionally, any fine imposed must be reasonable and used exclusively for the victim's medical treatment and rehabilitation. This provision ensures strict punishment for collective sexual violence, emphasizing accountability for all involved and providing necessary support for the victim.

**Section 71:**

*Whoever has been previously convicted of an offence punishable under section 64 or section 65 or section 66 or section 70 and is subsequently convicted of an offence punishable under any of the said sections shall be punished with imprisonment for life which shall mean imprisonment for the remainder of that person's natural life, or with death.*

**Simple Explanation:** If a person has been previously convicted under sections 64, 65, 66, or 70 and is later convicted again under any of these sections, they will face either life imprisonment for the remainder of their natural life or the death penalty. This provision ensures stricter punishment for repeat offenders, reinforcing the seriousness of such crimes and acting as a strong deterrent against committing them again.

**Section 72:**

*(1) Whoever prints or publishes the name or any matter which may make known the identity of any person against whom an offence under section 64 or section 65 or section 66 or section 67 or section 68 or section 69 or section 70 or section 71 is alleged or found to have been committed (hereafter in this section referred to as the victim) shall be punished with imprisonment of either description for a term which may extend to two years and shall also be liable to fine.*

*(2) Nothing in sub-section (1) extends to any printing or publication of the name or any matter which may make known the identity of the victim if such printing or publication is -*

*(a) by or under the order in writing of the officer-in-charge of the police station or the police officer making the investigation into such offence acting in good faith for the purposes of such investigation; or*

*(b) by, or with the authorisation in writing of, the victim; or*

*(c) where the victim is dead or a child or of unsound mind, by, or with the authorisation in writing of, the next of kin of the victim:*

*Provided that no such authorisation shall be given by the next of kin to anybody other than the chairman or the secretary, by whatever name called, of any recognised welfare institution or organisation.*

*Explanation: For the purposes of this sub-section, "recognised welfare institution or organisation" means a social welfare institution or organisation recognised in this behalf by the Central Government or the State Government.*

**Simple Explanation: Anyone who prints or publishes information that could reveal the identity of a victim of offences under sections 64 to 71 will face imprisonment of up to two years and a fine. However, exceptions exist where such publication is permitted, including when done by a police officer in good faith for investigation, with the written consent of the victim, or with the authorization of the victim's next of kin if the victim is deceased, a minor, or mentally unsound. In such cases, authorization can only be granted to the chairman or secretary of a recognized welfare institution, as defined by the Central or State Government. This provision aims to protect the privacy and dignity of victims while allowing controlled disclosure in specific circumstances.**

#### *Section 73:*

*Whoever prints or publishes any matter in relation to any proceeding before a Court with respect to an offence referred to in section 72 without the previous permission of such Court shall be punished with imprisonment of either description for a term which may extend to two years and shall also be liable to fine.*

*Explanation. - The printing or publication of the judgment of any High Court or the Supreme Court does not amount to an offence within the meaning of this section.*

**Simple Explanation: Anyone who prints or publishes any material related to court proceedings concerning an offence under section 72 without prior permission from the court may face imprisonment of up to two years and a fine. However, this restriction does not apply to the publication of judgments from the High Court or the Supreme Court. This provision ensures that sensitive legal matters are not disclosed improperly while maintaining transparency in higher court rulings.**

#### *Section 74:*

*Whoever assaults or uses criminal force to any woman, intending to outrage or knowing it to be likely that he will thereby outrage her modesty, shall be punished with imprisonment of either description for a term which shall not be less than one year but which may extend to five years, and shall also be liable to fine.*

**Simple Explanation: Anyone who assaults or applies criminal force to a woman with the intention of outraging her modesty, or knowing that such an act is likely to do so, shall face imprisonment for a minimum of one year, which may extend up to five years, along with a fine. This provision aims to protect women's dignity and ensure strict punishment for such offenses.**

#### *Section 75:*

*(1) A man committing any of the following acts:*

*(i) physical contact and advances involving unwelcome and explicit sexual overtures; or*

*(ii) a demand or request for sexual favours; or*

*(iii) showing pornography against the will of a woman; or*



*(iv) making sexually coloured remarks,*

*shall be guilty of the offence of sexual harassment.*

*(2) Any man who commits the offence specified in clause (i) or clause (ii) or clause (iii) of sub-section (1) shall be punished with rigorous imprisonment for a term which may extend to three years, or with fine, or with both.*

*(3) Any man who commits the offence specified in clause (iv) of sub-section (1) shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.*

**Simple Explanation:** Any man who engages in unwelcome physical contact with explicit sexual intent, demands sexual favors, forces a woman to watch pornography, or makes sexually suggestive remarks is guilty of sexual harassment. If the offense involves physical advances, sexual demands, or showing pornography, the punishment can extend to three years of rigorous imprisonment, a fine, or both. If the offense involves sexually colored remarks, the punishment may be up to one year of imprisonment, a fine, or both. This provision aims to deter sexual harassment and protect women's dignity.

#### Section 76:

*Whoever assaults or uses criminal force to any woman or abets such act with the intention of disrobing or compelling her to be naked, shall be punished with imprisonment of either description for a term which shall not be less than three years but which may extend to seven years, and shall also be liable to fine.*

**Simple Explanation:** Anyone who assaults or uses criminal force against a woman, or encourages such an act, with the intention of disrobing or forcing her to be naked, shall face imprisonment for a minimum of three years, which may extend to seven years, along with a fine. This law aims to protect women's dignity and prevent acts of humiliation and violence against them.

#### Section 77:

*Whoever watches, or captures the image of a woman engaging in a private act in circumstances where she would usually have the expectation of not being observed either by the perpetrator or by any other person at the behest of the perpetrator or disseminates such image shall be punished on first conviction with imprisonment of either description for a term which shall not be less than one year, but which may extend to three years, and shall also be liable to fine, and be punished on a second or subsequent conviction, with imprisonment of either description for a term which shall not be less than three years, but which may extend to seven years, and shall also be liable to fine.*

#### Explanation 1

*For the purposes of this section, "private act" includes an act of watching carried out in a place which, in the circumstances, would reasonably be expected to provide privacy and where the victim's genitals, posterior or breasts are exposed or covered only in underwear; or the victim is using a lavatory; or the victim is doing a sexual act that is not of a kind ordinarily done in public.*

#### Explanation 2

*Where the victim consents to the capture of the images or any act, but not to their dissemination to third persons and where such image or act is disseminated, such dissemination shall be considered an offence under this section.*

**Simple Explanation:** Anyone who secretly watches, records, or shares images of a woman engaged in a private act, where she expects privacy, shall face strict punishment. On the first conviction, the offender may receive imprisonment between one to three years along with a fine. For repeat offenses, the punishment increases to a minimum of three years, extendable up to seven years, along with a fine. A private act includes situations where the victim is in a place ensuring privacy, such as using a washroom, being partially or fully undressed, or engaging in a sexual act not meant for public view. Even if a woman consents to being recorded but not to the distribution of such images, sharing them without her permission is still a punishable offense under this law.

#### Section 78:

(1) Any man who -

*(i) follows a woman and contacts, or attempts to contact such woman to foster personal interaction repeatedly despite a clear indication of disinterest by such woman; or*

*(ii) monitors the use by a woman of the internet, e-mail or any other form of electronic communication,*

*commits the offence of stalking:*

*Provided that such conduct shall not amount to stalking if the man who pursued it proves that -*

*(i) it was pursued for the purpose of preventing or detecting crime and the man accused of stalking had been entrusted with the responsibility of prevention and detection of crime by the State; or*

*(ii) it was pursued under any law or to comply with any condition or requirement imposed by any person under any law; or*

*(iii) in the particular circumstances such conduct was reasonable and justified.*

*(2) Whoever commits the offence of stalking shall be punished on first conviction with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine; and be punished on a second or subsequent conviction, with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.*

**Simple Explanation: Stalking is a punishable offense where a man persistently follows or attempts to contact a woman despite her clear disinterest or monitors her online activities. However, exceptions exist if the act was for crime prevention, conducted under legal obligations, or justified by specific circumstances. On the first conviction, the offender may face imprisonment of up to three years along with a fine. For repeat offenses, the punishment increases to a maximum of five years, along with a fine.**

Section 79:

*Whoever, intending to insult the modesty of any woman, utters any words, makes any sound or gesture, or exhibits any object in any form, intending that such word or sound shall be heard, or that such gesture or object shall be seen, by such woman, or intrudes upon the privacy of such woman, shall be punished with simple imprisonment for a term which may extend to three years, and also with fine.*

**Simple Explanation: Any person who intends to insult a woman's modesty by uttering words, making sounds or gestures, displaying objects, or intruding on her privacy shall be punished with simple imprisonment for up to three years and a fine. The law aims to protect women from verbal, visual, or physical actions that violate their dignity and privacy.**

Section 80:

*(1) Where the death of a woman is caused by any burns or bodily injury or occurs otherwise than under normal circumstances within seven years of her marriage and it is shown that soon before her death she was subjected to cruelty or harassment by her husband or any relative of her husband for, or in connection with, any demand for dowry, such death shall be called "dowry death"; and such husband or relative shall be deemed to have caused her death.*

*Explanation. - For the purposes of this sub-section, "dowry" shall have the same meaning as in section 2 of the Dowry Prohibition Act, 1961.*

*(2) Whoever commits dowry death shall be punished with imprisonment for a term which shall not be less than seven years but which may extend to imprisonment for life.*

**Simple Explanation: A "dowry death" occurs when a woman dies due to burns, bodily injury, or unnatural circumstances within seven years of marriage, and it is proven that she was subjected to cruelty or harassment by her husband or his relatives in connection with dowry demands. The law holds the husband or relatives responsible for her death. The punishment for dowry death is imprisonment for a minimum of seven years, which may extend to life imprisonment.**

#### Section 81:

*Every man who by deceit causes any woman who is not lawfully married to him to believe that she is lawfully married to him and to cohabit or have sexual intercourse with him in that belief, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation:** Any man who, through deceit, convinces a woman who is not legally married to him that she is his lawful wife and induces her to cohabit or engage in sexual intercourse under this false belief shall be punished with imprisonment for up to ten years and shall also be liable to a fine.

#### Section 82:

*(1) Whoever, having a husband or wife living, marries in any case in which such marriage is void by reason of its taking place during the life of such husband or wife, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

##### *Exception*

*This sub-section does not extend to any person whose marriage with such husband or wife has been declared void by a Court of competent jurisdiction, nor to any person who contracts a marriage during the life of a former husband or wife, if such husband or wife, at the time of the subsequent marriage, shall have been continually absent from such person for the space of seven years, and shall not have been heard of by such person as being alive within that time provided the person contracting such subsequent marriage shall, before such marriage takes place, inform the person with whom such marriage is contracted of the real state of facts so far as the same are within his or her knowledge.*

*(2) Whoever commits the offence under sub-section (1) having concealed from the person with whom the subsequent marriage is contracted, the fact of the former marriage, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation:** Whoever, while having a living spouse, marries again in a situation where such marriage is legally void shall be punished with imprisonment for up to seven years and a fine. However, this does not apply if the first marriage has been declared void by a court or if the former spouse has been absent and unheard of for seven years, provided the new spouse is informed of this fact. If the person conceals the existence of the first marriage from their new spouse, the punishment increases to imprisonment for up to ten years along with a fine.

#### Section 83:

*Whoever, dishonestly or with a fraudulent intention, goes through the ceremony of being married, knowing that he is not thereby lawfully married, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

**Simple Explanation:** Whoever, with dishonest or fraudulent intent, undergoes a marriage ceremony while knowing that such a marriage is not legally valid shall be punished with imprisonment of up to seven years and shall also be liable to a fine.

#### Section 84:

*Whoever takes or entices away any woman who is and whom he knows or has reason to believe to be the wife of any other man, with intent that she may have illicit intercourse with any person, or conceals or detains with that intent any such woman, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation:** Whoever takes or entices away a woman, knowing or having reason to believe that she is the wife of another man, with the intent that she may have illicit intercourse with any person, or conceals or detains her with such intent, shall be punished with imprisonment of up to two years, or with a fine, or both.

#### Section 85:

*Whoever, being the husband or the relative of the husband of a woman, subjects such woman to cruelty shall be punished with imprisonment for a term which may extend to three years and shall also be liable to fine.*

**Simple Explanation: Whoever, being the husband or a relative of the husband of a woman, subjects her to cruelty shall be punished with imprisonment for a term of up to three years and shall also be liable to a fine.**

Section 86:

*For the purposes of section 85, "cruelty" means -*

*(a) any wilful conduct which is of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health (whether mental or physical) of the woman; or*

*(b) harassment of the woman where such harassment is with a view to coercing her or any person related to her to meet any unlawful demand for any property or valuable security or is on account of failure by her or any person related to her to meet such demand.*

**Simple Explanation: For the purposes of Section 85, "cruelty" includes:**

**(a) Any willful conduct likely to drive a woman to commit suicide or cause grave injury or danger to her life, limb, or physical/mental health.**

**(b) Harassment with the intent to coerce the woman or her relatives to fulfill an unlawful demand for property or valuable security, or due to failure to meet such a demand.**

Section 87:

*Whoever kidnaps or abducts any woman with intent that she may be compelled, or knowing it to be likely that she will be compelled, to marry any person against her will, or in order that she may be forced or seduced to illicit intercourse, or knowing it to be likely that she will be forced or seduced to illicit intercourse, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine; and whoever, by means of criminal intimidation as defined in this Sanhita or of abuse of authority or any other method of compulsion, induces any woman to go from any place with intent that she may be, or knowing that it is likely that she will be, forced or seduced to illicit intercourse with another person shall also be punishable as aforesaid.*

**Simple Explanation: Whoever kidnaps or abducts a woman with the intent to compel her to marry against her will or to force or seduce her into illicit intercourse shall be punished with imprisonment of up to ten years and shall also be liable to a fine.**

**Additionally, anyone who, through criminal intimidation, abuse of authority, or any other form of compulsion, induces a woman to leave a place with the intent or knowledge that she may be forced or seduced into illicit intercourse with another person shall be punished similarly.**

Section 88:

*Whoever voluntarily causes a woman with child to miscarry, shall, if such miscarriage be not caused in good faith for the purpose of saving the life of the woman, be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both; and, if the woman be quick with child, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

*Explanation: A woman who causes herself to miscarry, is within the meaning of this section.*

**Simple Explanation: Whoever voluntarily causes a pregnant woman to miscarry, except in good faith to save her life, shall be punished with imprisonment of up to three years, or with a fine, or both.**

**If the woman is "quick with child" (i.e., the fetus has reached a stage where movement is felt), the punishment extends to imprisonment of up to seven years and a fine.**

**Explanation: A woman who causes her own miscarriage also falls under this provision.**

Section 89:

*Whoever commits the offence under section 88 without the consent of the woman, whether the woman is quick with child or not, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation:** Whoever commits the offence of causing a woman to miscarry, as defined under Section 88, without her consent, shall be punished with imprisonment for life or with imprisonment for a term that may extend to ten years, and shall also be liable to a fine, regardless of whether the woman is "quick with child" or not.

Section 90:

*(1) Whoever, with intent to cause the miscarriage of a woman with child, does any act which causes the death of such woman, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

*(2) Where the act referred to in sub-section (1) is done without the consent of the woman, shall be punishable either with imprisonment for life, or with the punishment specified in said sub-section.*

*Explanation. - It is not essential to this offence that the offender should know that the act is likely to cause death.*

**Simple Explanation:** *Whoever, with the intent to cause the miscarriage of a pregnant woman, commits any act that results in her death shall be punished with imprisonment of up to ten years and shall also be liable to a fine. If the act is done without the woman's consent, the offender shall be punished with either imprisonment for life or the punishment specified in the first provision. It is not necessary for the offender to be aware that the act is likely to cause death for this offence to be established.*

Section 91:

*Whoever before the birth of any child does any act with the intention of thereby preventing that child from being born alive or causing it to die after its birth, and does by such act prevent that child from being born alive, or causes it to die after its birth, shall, if such act be not caused in good faith for the purpose of saving the life of the mother, be punished with imprisonment of either description for a term which may extend to ten years, or with fine, or with both.*

**Simple Explanation:** Whoever, before the birth of a child, commits any act intending to prevent the child from being born alive or to cause its death after birth and succeeds in doing so shall be punished with imprisonment of up to ten years, or with a fine, or both, unless the act was done in good faith to save the life of the mother.

Section 92:

*Whoever does any act under such circumstances, that if he thereby caused death he would be guilty of culpable homicide, and does by such act cause the death of a quick unborn child, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Illustration**

*A, knowing that he is likely to cause the death of a pregnant woman, does an act which, if it caused the death of the woman, would amount to culpable homicide. The woman is injured, but does not die; but the death of an unborn quick child with which she is pregnant is thereby caused. A is guilty of the offence defined in this section.*

**Simple Explanation:** Whoever commits an act that, if it resulted in death, would be considered culpable homicide and, by that act, causes the death of a quick unborn child, shall be punished with imprisonment of up to ten years and shall also be liable to a fine. For instance, if a person knowingly engages in an act likely to cause the death of a pregnant woman, but instead of her death, it results in the death of the unborn child, the person is guilty under this section.

Section 93:

*Whoever being the father or mother of a child under the age of twelve years, or having the care of such child, shall expose or leave such child in any place with the intention of wholly abandoning such child, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.*

*Explanation. - This section is not intended to prevent the trial of the offender for murder or culpable homicide, as the case may be, if the child die in consequence of the exposure.*

**Simple Explanation: Whoever, being the father, mother, or caretaker of a child under twelve years, abandons or exposes the child with the intention of completely forsaking them shall be punished with imprisonment of up to seven years, or with a fine, or both. If the child dies as a result of such abandonment, this provision does not prevent the offender from being tried for murder or culpable homicide, as applicable.**

#### Section 94:

*Whoever, by secretly burying or otherwise disposing of the dead body of a child whether such child die before or after or during its birth, intentionally conceals or endeavours to conceal the birth of such child, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation: Whoever secretly buries or otherwise disposes of the dead body of a child, whether the child dies before, during, or after birth, with the intention of concealing or attempting to conceal the birth, shall be punished with imprisonment of up to two years, or with a fine, or both.**

#### Section 95:

*Whoever hires, employs or engages any child to commit an offence shall be punished with imprisonment of either description which shall not be less than three years but which may extend to ten years, and with fine; and if the offence be committed shall also be punished with the punishment provided for that offence as if the offence has been committed by such person himself.*

*Explanation. - Hiring, employing, engaging or using a child for sexual exploitation or pornography is covered within the meaning of this section.*

**Simple Explanation: Whoever hires, employs, or engages a child to commit an offence shall be punished with imprisonment of not less than three years, which may extend to ten years, along with a fine. If the offence is committed, the person shall also be punished as if they had committed the offence themselves. The provision explicitly includes hiring, employing, engaging, or using a child for sexual exploitation or pornography within its scope.**

#### Section 96:

*Whoever, by any means whatsoever, induces any child to go from any place or to do any act with intent that such child may be, or knowing that it is likely that such child will be, forced or seduced to illicit intercourse with another person shall be punishable with imprisonment which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation: Whoever, by any means, induces a child to leave any place or perform any act with the intent that the child may be, or knowing it is likely that the child will be, forced or seduced into illicit intercourse with another person, shall be punished with imprisonment of up to ten years and shall also be liable to a fine.**

#### Section 97:

*Whoever kidnaps or abducts any child under the age of ten years with the intention of taking dishonestly any movable property from the person of such child, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

**Simple Explanation: Whoever kidnaps or abducts a child under the age of ten years with the intent to dishonestly take any movable property from the child shall be punished with imprisonment of up to seven years and shall also be liable to a fine.**

Section 98:

*Whoever sells, lets to hire, or otherwise disposes of any child with intent that such child shall at any age be employed or used for the purpose of prostitution or illicit intercourse with any person or for any unlawful and immoral purpose, or knowing it to be likely that such child will at any age be employed or used for any such purpose, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Explanation 1**

*When a female under the age of eighteen years is sold, let for hire, or otherwise disposed of to a prostitute or to any person who keeps or manages a brothel, the person so disposing of such female shall, until the contrary is proved, be presumed to have disposed of her with the intent that she shall be used for the purpose of prostitution.*

**Explanation 2**

*For the purposes of this section "illicit intercourse" means sexual intercourse between persons not united by marriage or by any union or tie which, though not amounting to a marriage, is recognised by the personal law or custom of the community to which they belong or, where they belong to different communities, of both such communities, as constituting between them a quasi-marital relation.*

**Simple Explanation:** Whoever sells, leases, or otherwise disposes of a child with the intent that the child be used for prostitution, illicit intercourse, or any unlawful and immoral purpose, or knowing it to be likely that the child will be used for such purposes, shall be punished with imprisonment of up to ten years and shall also be liable to a fine.

**Explanation 1:** If a female under eighteen years of age is sold, hired, or otherwise transferred to a prostitute or to a person managing a brothel, it shall be presumed—unless proven otherwise—that the transfer was made with the intent that she be used for prostitution.

**Explanation 2:** "Illicit intercourse" refers to sexual relations between persons not legally married or not recognized by personal or customary laws as having a quasi-marital relationship.

Section 99:

*Whoever buys, hires or otherwise obtains possession of any child with intent that such child shall at any age be employed or used for the purpose of prostitution or illicit intercourse with any person or for any unlawful and immoral purpose, or knowing it to be likely that such child will at any age be employed or used for any such purpose, shall be punished with imprisonment of either description for a term which shall not be less than seven years but which may extend to fourteen years, and shall also be liable to fine.*

**Explanation 1**

*Any prostitute or any person keeping or managing a brothel, who buys, hires or otherwise obtains possession of a female under the age of eighteen years shall, until the contrary is proved, be presumed to have obtained possession of such female with the intent that she shall be used for the purpose of prostitution.*

**Explanation 2**

*"Illicit intercourse" has the same meaning as in section 98.*

**Simple Explanation:** Whoever buys, hires, or otherwise obtains possession of a child with the intent that the child be used for prostitution, illicit intercourse, or any unlawful and immoral purpose, or knowing it to be likely that the child will be used for such purposes, shall be punished with imprisonment of not less than seven years, which may extend to fourteen years, and shall also be liable to a fine.

**Explanation 1:** Any prostitute or person managing a brothel who buys, hires, or otherwise obtains possession of a female under eighteen years of age shall, unless proven otherwise, be presumed to have obtained possession of her with the intent of using her for prostitution.

**Explanation 2:** "Illicit intercourse" has the same meaning as defined in Section 98.

## Section 100:

*Whoever causes death by doing an act with the intention of causing death, or with the intention of causing such bodily injury as is likely to cause death, or with the knowledge that he is likely by such act to cause death, commits the offence of culpable homicide.*

### **Illustrations**

*(a) A lays sticks and turf over a pit, with the intention of thereby causing death, or with the knowledge that death is likely to be thereby caused. Z, believing the ground to be firm, treads on it, falls in and is killed. A has committed the offence of culpable homicide.*

*(b) A knows Z to be behind a bush. B does not know it. A, intending to cause, or knowing it to be likely to cause Z's death, induces B to fire at the bush. B fires and kills Z. Here B may be guilty of no offence; but A has committed the offence of culpable homicide.*

*(c) A, by shooting at a fowl with intent to kill and steal it, kills B, who is behind a bush; A not knowing that he was there. Here, although A was doing an unlawful act, he was not guilty of culpable homicide, as he did not intend to kill B, or to cause death by doing an act that he knew was likely to cause death.*

### **Explanation 1**

*A person who causes bodily injury to another who is labouring under a disorder, disease or bodily infirmity, and thereby accelerates the death of that other, shall be deemed to have caused his death.*

### **Explanation 2**

*Where death is caused by bodily injury, the person who causes such bodily injury shall be deemed to have caused the death, although by resorting to proper remedies and skilful treatment the death might have been prevented.*

### **Explanation 3**

*The causing of the death of a child in the mother's womb is not homicide. But it may amount to culpable homicide to cause the death of a living child, if any part of that child has been brought forth, though the child may not have breathed or been completely born.*

**Simple Explanation:** Culpable homicide is committed when a person causes death by performing an act with the intention of causing death, causing bodily injury likely to result in death, or with the knowledge that such an act is likely to cause death. The section provides illustrations to clarify this concept. For instance, if a person sets a trap knowing it could lead to someone's death, they are guilty of culpable homicide. Similarly, if someone manipulates another person into unintentionally killing a third party, the manipulator is guilty of the offence. However, if a person kills someone while committing an unlawful act without the intent or knowledge that death would result, it is not culpable homicide. The explanations further define culpable homicide, stating that accelerating the death of a person with a pre-existing condition still amounts to causing death. Additionally, even if death could have been prevented with medical treatment, the person who caused the injury is still held responsible. Lastly, killing a child in the womb is not considered homicide, but if any part of the child has emerged, even if it has not yet breathed, causing its death may amount to culpable homicide.

## Section 101:

*Except in the cases hereinafter excepted, culpable homicide is murder,--*

*(a) if the act by which the death is caused is done with the intention of causing death; or*

*(b) if the act by which the death is caused is done with the intention of causing such bodily injury as the offender knows to be likely to cause the death of the person to whom the harm is caused; or*

*(c) if the act by which the death is caused is done with the intention of causing bodily injury to any person and the bodily injury intended to be inflicted is sufficient in the ordinary course of nature to cause death; or*

*(d) if the person committing the act by which the death is caused, knows that it is so imminently dangerous that it must, in all probability, cause death, or such bodily injury as is likely to cause death, and commits such act without any excuse for incurring the risk of causing death or such injury as aforesaid.*



## *Illustrations*

*(a) A shoots Z with the intention of killing him. Z dies in consequence. A commits murder.*

*(b) A, knowing that Z is labouring under such a disease that a blow is likely to cause his death, strikes him with the intention of causing bodily injury. Z dies in consequence of the blow. A is guilty of murder, although the blow might not have been sufficient in the ordinary course of nature to cause the death of a person in a sound state of health. But if A, not knowing that Z is labouring under any disease, gives him such a blow as would not in the ordinary course of nature kill a person in a sound state of health, here A, although he may intend to cause bodily injury, is not guilty of murder, if he did not intend to cause death, or such bodily injury as in the ordinary course of nature would cause death.*

*(c) A intentionally gives Z a sword-cut or club-wound sufficient to cause the death of a man in the ordinary course of nature. Z dies in consequence. Here A is guilty of murder, although he may not have intended to cause Z's death.*

*(d) A without any excuse fires a loaded cannon into a crowd of persons and kills one of them. A is guilty of murder, although he may not have had a premeditated design to kill any particular individual.*

*Exception 1: Culpable homicide is not murder if the offender, whilst deprived of the power of self-control by grave and sudden provocation, causes the death of the person who gave the provocation or causes the death of any other person by mistake or accident:*

*Provided that the provocation is not,--*

*(a) sought or voluntarily provoked by the offender as an excuse for killing or doing harm to any person;*

*(b) given by anything done in obedience to the law, or by a public servant in the lawful exercise of the powers of such public servant;*

*(c) given by anything done in the lawful exercise of the right of private defence.*

*Explanation - Whether the provocation was grave and sudden enough to prevent the offence from amounting to murder is a question of fact.*

## *Illustrations*

*(a) A, under the influence of passion excited by a provocation given by Z, intentionally kills Y, Z's child. This is murder, in as much as the provocation was not given by the child, and the death of the child was not caused by accident or misfortune in doing an act caused by the provocation.*

*(b) Y gives grave and sudden provocation to A. A, on this provocation, fires a pistol at Y, neither intending nor knowing himself to be likely to kill Z, who is near him, but out of sight. A kills Z. Here A has not committed murder, but merely culpable homicide.*

*(c) A is lawfully arrested by Z, a bailiff. A is excited to sudden and violent passion by the arrest, and kills Z. This is murder, in as much as the provocation was given by a thing done by a public servant in the exercise of his powers.*

*(d) A appears as a witness before Z, a Magistrate. Z says that he does not believe a word of A's deposition, and that A has perjured himself. A is moved to sudden passion by these words, and kills Z. This is murder.*

*(e) A attempts to pull Z's nose. Z, in the exercise of the right of private defence, lays hold of A to prevent him from doing so. A is moved to sudden and violent passion in consequence, and kills Z. This is murder, in as much as the provocation was given by a thing done in the exercise of the right of private defence.*

*(f) Z strikes B. B is by this provocation excited to violent rage. A, a bystander, intending to take advantage of B's rage, and to cause him to kill Z, puts a knife into B's hand for that purpose. B kills Z with the knife. Here B may have committed only culpable homicide, but A is guilty of murder.*

*Exception 2: Culpable homicide is not murder if the offender in the exercise in good faith of the right of private defence of person or property, exceeds the power given to him by law and causes the death of the person against whom he is exercising such right of defence without premeditation, and without any intention of doing more harm than is necessary for the purpose of such defence.*

*Illustration: Z attempts to horsewhip A, not in such a manner as to cause grievous hurt to A. A draws out a pistol. Z persists in the assault. A believing in good faith that he can by no other means prevent himself from being horsewhipped, shoots Z dead. A has not committed murder, but only culpable homicide.*

*Exception 3: Culpable homicide is not murder if the offender, being a public servant or aiding a public servant acting for the advancement of public justice, exceeds the powers given to him by law, and causes death by doing an act which he, in good faith, believes to be lawful and necessary for the due discharge of his duty as such public servant and without ill-will towards the person whose death is caused.*

*Exception 4: Culpable homicide is not murder if it is committed without premeditation in a sudden fight in the heat of passion upon a sudden quarrel and without the offender's having taken undue advantage or acted in a cruel or unusual manner.*

*Explanation - It is immaterial in such cases which party offers the provocation or commits the first assault.*

*Exception 5: Culpable homicide is not murder when the person whose death is caused, being above the age of eighteen years, suffers death or takes the risk of death with his own consent.*

*Illustration: A, by instigation, voluntarily causes Z, a child to commit suicide. Here, on account of Z's youth, he was incapable of giving consent to his own death; A has therefore abetted murder.*

**Simple Explanation: Culpable homicide becomes murder when the act causing death is done with the intention of causing death, causing bodily injury known to be likely to cause death, causing bodily injury sufficient in the ordinary course of nature to result in death, or when the act is so imminently dangerous that it will likely cause death or serious injury, and the offender acts without justification. However, there are exceptions where culpable homicide is not considered murder: (1) when committed under grave and sudden provocation, unless provoked deliberately, by lawful acts, or in self-defense; (2) when exceeding the right of private defense in good faith without premeditation; (3) when a public servant, acting in good faith for justice, exceeds legal powers without ill intent; (4) when death occurs in a sudden fight or quarrel without cruelty or undue advantage; and (5) when the deceased, being over 18, consents to the risk of death.**

#### **Section 102:**

*If a person, by doing anything which he intends or knows to be likely to cause death, commits culpable homicide by causing the death of any person, whose death he neither intends nor knows himself to be likely to cause, the culpable homicide committed by the offender is of the description of which it would have been if he had caused the death of the person whose death he intended or knew himself to be likely to cause.*

**Simple Explanation: This means that if a person commits an act intending or knowing it is likely to cause death and ends up causing the death of someone they did not intend or expect to kill, the offence is still classified based on the original intent or knowledge regarding the likely victim. In other words, the legal classification of culpable homicide (whether it amounts to murder or not) remains the same as if the intended or expected person had died.**

#### **Section 103:**

*(1) Whoever commits murder shall be punished with death or imprisonment for life, and shall also be liable to fine.*

*(2) When a group of five or more persons acting in concert commits murder on the ground of race, caste or community, sex, place of birth, language, personal belief or any other similar ground, each member of such group shall be punished with death or with imprisonment for life, and shall also be liable to fine.*

**Simple Explanation: This provision establishes the punishment for murder. Under subsection (1), any person who commits murder shall face either the death penalty or life imprisonment, along with a fine. Subsection (2) introduces stricter punishment for hate crimes involving murder—if five or more individuals act together to commit murder based on discrimination related to race, caste, community, sex, place of birth, language, personal belief, or similar grounds, each member of the group shall be sentenced to either death or life imprisonment, along with a fine.**

#### **Section 104:**

*Whoever, being under sentence of imprisonment for life, commits murder, shall be punished with death or with imprisonment for life, which shall mean the remainder of that person's natural life.*

**Simple Explanation:** This provision states that if a person who is already serving a life sentence commits murder, they shall be punished with either the death penalty or life imprisonment for the remainder of their natural life, without the possibility of release.

*Section 105:*

*Whoever commits culpable homicide not amounting to murder, shall be punished with imprisonment for life, or imprisonment of either description for a term which shall not be less than five years but which may extend to ten years, and shall also be liable to fine, if the act by which the death is caused is done with the intention of causing death, or of causing such bodily injury as is likely to cause death; or with imprisonment of either description for a term which may extend to ten years and with fine, if the act is done with the knowledge that it is likely to cause death, but without any intention to cause death, or to cause such bodily injury as is likely to cause death.*

**Simple Explanation:** This provision differentiates between two degrees of culpable homicide not amounting to murder. If the act causing death is committed with the intention of causing death or such bodily injury likely to cause death, the offender shall face either life imprisonment or a minimum of five years' imprisonment, extendable up to ten years, along with a fine. However, if the act is done with mere knowledge that it is likely to cause death, but without intention, the punishment may extend to ten years of imprisonment along with a fine.

*Section 106:*

*(1) Whoever causes death of any person by doing any rash or negligent act not amounting to culpable homicide, shall be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.*

*(2) Whoever causes death of any person by rash and negligent driving of vehicle not amounting to culpable homicide, and escapes without reporting it to a police officer or a Magistrate soon after the incident, shall be punished with imprisonment of either description of a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation:** This provision deals with causing death by rash or negligent acts that do not amount to culpable homicide. In general cases, if a person causes death due to negligence or recklessness, they may face imprisonment for up to five years along with a fine. However, if the death is caused specifically by rash and negligent driving, and the offender flees without reporting the incident to the police or a Magistrate, the punishment increases to a maximum of ten years of imprisonment along with a fine.

*Section 107:*

*If any child, any person of unsound mind, any delirious person or any person in a state of intoxication, commits suicide, whoever abets the commission of such suicide, shall be punished with death or imprisonment for life, or imprisonment for a term not exceeding ten years, and shall also be liable to fine.*

**Simple Explanation:** This provision states that if a child, a person of unsound mind, a delirious person, or an intoxicated person commits suicide, anyone who abets or encourages the act shall face severe punishment. The offender may be sentenced to death, life imprisonment, or imprisonment for up to ten years, along with a fine. This highlights the seriousness of abetting suicide in cases where the victim is particularly vulnerable and incapable of making rational decisions.

*Section 108:*

*If any person commits suicide, whoever abets the commission of such suicide, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation:** This provision states that if a person commits suicide, anyone who abets or encourages the act shall be punished with imprisonment for up to ten years and shall also be liable to a fine. It criminalizes aiding or instigating suicide, emphasizing legal consequences for those who push or provoke someone into taking their own life.

#### Section 109:

*(1) Whoever does any act with such intention or knowledge, and under such circumstances that, if he by that act caused death, he would be guilty of murder, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine; and if hurt is caused to any person by such act, the offender shall be liable either to imprisonment for life, or to such punishment as is hereinbefore mentioned.*

*(2) When any person offending under sub-section (1) is under sentence of imprisonment for life, he may, if hurt is caused, be punished with death or with imprisonment for life, which shall mean the remainder of that person's natural life.*

#### *Illustrations*

*(a) A shoots at Z with intention to kill him, under such circumstances that, if death ensued, A would be guilty of murder. A is liable to punishment under this section.*

*(b) A, with the intention of causing the death of a child of tender years, exposes it in a desert place. A has committed the offence defined by this section, though the death of the child does not ensue.*

*(c) A, intending to murder Z, buys a gun and loads it. A has not yet committed the offence. A fires the gun at Z. He has committed the offence defined in this section, and, if by such firing he wounds Z, he is liable to the punishment provided by the latter part of sub-section (1).*

*(d) A, intending to murder Z by poison, purchases poison and mixes the same with food which remains in A's keeping; A has not yet committed the offence defined in this section. A places the food on Z's table or delivers it to Z's servants to place it on Z's table. A has committed the offence defined in this section.*

**Simple Explanation: This provision deals with attempt to murder, stating that:**

- 1. If a person does an act with the intention or knowledge that, if death were caused, it would be murder, they shall be punished with imprisonment up to 10 years and a fine. If hurt is caused by the act, the punishment may extend to life imprisonment.**
- 2. If the offender is already serving life imprisonment, and their act causes hurt, they may be sentenced to death or life imprisonment for the remainder of their natural life.**

**The illustrations clarify when an act constitutes an attempt to murder, such as shooting at someone with intent to kill, exposing a child in a desert with intent to kill, or poisoning someone's food. However, merely preparing (like buying poison or loading a gun) does not amount to an attempt until the act is carried out.**

#### Section 110:

*Whoever does any act with such intention or knowledge and under such circumstances that, if he by that act caused death, he would be guilty of culpable homicide not amounting to murder, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both; and, if hurt is caused to any person by such act, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.*

#### *Illustration*

*A, on grave and sudden provocation, fires a pistol at Z, under such circumstances that if he thereby caused death, he would be guilty of culpable homicide not amounting to murder. A has committed the offence defined in this section.*

**Simple Explanation: This provision deals with attempt to commit culpable homicide not amounting to murder. It states that if a person performs an act with the intention or knowledge that, if death were caused, it would amount to culpable homicide not amounting to murder, they shall be punished with imprisonment of up to three years, or with a fine, or both. If the act results in hurt, the punishment may extend to seven years along with a fine. The illustration clarifies that if a person, under grave and sudden provocation, fires a pistol at another person in circumstances where causing death would amount to culpable homicide not murder, they are guilty of the offence under this section.**

#### Section 111:

(1) Any continuing unlawful activity including kidnapping, robbery, vehicle theft, extortion, land grabbing, contract killing, economic offence, cyber-crimes, trafficking of persons, drugs, weapons or illicit goods or services, human trafficking for prostitution or ransom, by any person or a group of persons acting in concert, singly or jointly, either as a member of an organised crime syndicate or on behalf of such syndicate, by use of violence, threat of violence, intimidation, coercion, or by any other unlawful means to obtain direct or indirect material benefit including a financial benefit, shall constitute organised crime.

**Explanation. - For the purposes of this sub-section,--**

(i) "organised crime syndicate" means a group of two or more persons who, acting either singly or jointly, as a syndicate or gang indulge in any continuing unlawful activity ;

(ii) "continuing unlawful activity" means an activity prohibited by law which is a cognizable offence punishable with imprisonment of three years or more, undertaken by any person, either singly or jointly, as a member of an organised crime syndicate or on behalf of such syndicate in respect of which more than one charge-sheets have been filed before a competent Court within the preceding period of ten years and that Court has taken cognizance of such offence, and includes economic offence ;

(iii) "economic offence" includes criminal breach of trust, forgery, counterfeiting of currency-notes, bank-notes and Government stamps, hawala transaction, mass-marketing fraud or running any scheme to defraud several persons or doing any act in any manner with a view to defraud any bank or financial institution or any other institution or organisation for obtaining monetary benefits in any form.

(2) Whoever commits organised crime shall, -

(a) if such offence has resulted in the death of any person, be punished with death or imprisonment for life, and shall also be liable to fine which shall not be less than ten lakh rupees ;

(b) in any other case, be punished with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life, and shall also be liable to fine which shall not be less than five lakh rupees.

(3) Whoever abets, attempts, conspires or knowingly facilitates the commission of an organised crime, or otherwise engages in any act preparatory to an organised crime, shall be punished with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life, and shall also be liable to fine which shall not be less than five lakh rupees.

(4) Any person who is a member of an organised crime syndicate shall be punished with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life, and shall also be liable to fine which shall not be less than five lakh rupees.

(5) Whoever, intentionally, harbours or conceals any person who has committed the offence of an organised crime shall be punished with imprisonment for a term which shall not be less than three years but which may extend to imprisonment for life, and shall also be liable to fine which shall not be less than five lakh rupees :

Provided that this sub-section shall not apply to any case in which the harbour or concealment is by the spouse of the offender.

(6) Whoever possesses any property derived or obtained from the commission of an organised crime or proceeds of any organised crime or which has been acquired through the organised crime, shall be punishable with imprisonment for a term which shall not be less than three years but which may extend to imprisonment for life and shall also be liable to fine which shall not be less than two lakh rupees.

(7) If any person on behalf of a member of an organised crime syndicate is, or at any time has been in possession of movable or immovable property which he can not satisfactorily account for, shall be punishable with imprisonment for a term which shall not be less than three years but which may extend to imprisonment for ten years and shall also be liable to fine which shall not be less than one lakh rupees.

**Simple Explanation:** This provision defines and penalizes organised crime. It states that any continuing unlawful activity—such as kidnapping, robbery, extortion, economic offences, cybercrimes, drug trafficking, contract killing, or human trafficking—committed by individuals or groups as part of an organised crime syndicate, using violence, threats, or unlawful means for material or financial gain, shall constitute organised crime. The explanation clarifies key terms, including "organised crime syndicate", "continuing unlawful activity", and "economic offence" (which includes fraud, counterfeiting, and financial crimes).

## **Punishments for organised crime are severe:**

- **If it results in death, the offender faces death penalty or life imprisonment, along with a fine of at least ₹10 lakh.**
- **For other cases, the punishment is imprisonment of at least 5 years, extendable to life, with a minimum fine of ₹5 lakh.**
- **Abetment, conspiracy, or facilitation of organised crime attracts 5 years to life imprisonment and a fine of at least ₹5 lakh.**
- **Membership in an organised crime syndicate carries 5 years to life imprisonment with a fine of at least ₹5 lakh.**
- **Harbouring or concealing an offender results in 3 years to life imprisonment and a fine of at least ₹5 lakh (except when done by a spouse).**
- **Possessing property derived from organised crime is punishable with 3 years to life imprisonment and a minimum fine of ₹2 lakh.**
- **Unaccounted possession of property on behalf of a syndicate member results in 3 to 10 years of imprisonment and a fine of at least ₹1 lakh.**

### *Section 112:*

*(1) Whoever, being a member of a group or gang, either singly or jointly, commits any act of theft, snatching, cheating, unauthorised selling of tickets, unauthorised betting or gambling, selling of public examination question papers or any other similar criminal act, is said to commit petty organised crime.*

*Explanation: For the purposes of this sub-section "theft" includes trick theft, theft from vehicle, dwelling house or business premises, cargo theft, pick pocketing, theft through card skimming, shoplifting and theft of Automated Teller Machine.*

*(2) Whoever commits any petty organised crime shall be punished with imprisonment for a term which shall not be less than one year but which may extend to seven years, and shall also be liable to fine.*

**Simple Explanation:** This provision defines and penalizes petty organised crime. It states that if a person, as a member of a group or gang, either alone or with others, engages in theft, snatching, cheating, unauthorized ticket selling, illegal betting or gambling, leaking public examination papers, or similar crimes, they commit petty organised crime. The explanation expands the definition of theft to include various forms such as trick theft, pickpocketing, shoplifting, card skimming, cargo theft, ATM theft, and more.

**Punishment for committing petty organised crime includes imprisonment of at least one year, extendable up to seven years, along with a fine.**

### *Section 113:*

*(1) Whoever does any act with the intent to threaten or likely to threaten the unity, integrity, sovereignty, security, or economic security of India or with the intent to strike terror or likely to strike terror in the people or any section of the people in India or in any foreign country, --*

*(a) by using bombs, dynamite or other explosive substance or inflammable substance or firearms or other lethal weapons or poisonous or noxious gases or other chemicals or by any other substance (whether biological, radioactive, nuclear or otherwise) of a hazardous nature or by any other means of whatever nature to cause or likely to cause, -*

*(i) death of, or injury to, any person or persons ; or*

*(ii) loss of, or damage to, or destruction of, property ; or*

*(iii) disruption of any supplies or services essential to the life of the community in India or in any foreign country ; or*

(iv) damage to, the monetary stability of India by way of production or smuggling or circulation of counterfeit Indian paper currency, coin or of any other material ; or

(v) damage or destruction of any property in India or in a foreign country used or intended to be used for the defence of India or in connection with any other purposes of the Government of India, any State Government or any of their agencies ; or

(b) overawes by means of criminal force or the show of criminal force or attempts to do so or causes death of any public functionary or attempts to cause death of any public functionary ; or

(c) detains, kidnaps or abducts any person and threatening to kill or injure such person or does any other act in order to compel the Government of India, any State Government or the Government of a foreign country or an international or inter-governmental organisation or any other person to do or abstain from doing any act, commit a terrorist act.

*Explanation. - For the purpose of this sub-section, -*

(a) "public functionary" means the constitutional authorities or any other functionary notified in the Official Gazette by the Central Government as public functionary ;

(b) "counterfeit Indian currency" means the counterfeit currency as may be declared after examination by an authorised or notified forensic authority that such currency imitates or compromises with the key security features of Indian currency.

**(2) Whoever commits a terrorist act shall, -**

(a) if such offence has resulted in the death of any person, be punished with death or imprisonment for life, and shall also be liable to fine ;

(b) in any other case, be punished with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life, and shall also be liable to fine.

**(3) Whoever conspires or attempts to commit, or advocates, abets, advises or incites, directly or knowingly facilitates the commission of a terrorist act or any act preparatory to the commission of a terrorist act, shall be punished with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life, and shall also be liable to fine.**

**(4) Whoever organises or causes to be organised any camp or camps for imparting training in terrorist act, or recruits or causes to be recruited any person or persons for commission of a terrorist act, shall be punished with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life, and shall also be liable to fine.**

**(5) Any person who is a member of an organisation which is involved in terrorist act, shall be punished with imprisonment for a term which may extend to imprisonment for life, and shall also be liable to fine.**

**(6) Whoever voluntarily harbours or conceals, or attempts to harbour or conceal any person knowing that such person has committed a terrorist act shall be punished with imprisonment for a term which shall not be less than three years but which may extend to imprisonment for life, and shall also be liable to fine :**

*Provided that this sub-section shall not apply to any case in which the harbour or concealment is by the spouse of the offender.*

**(7) Whoever knowingly possesses any property derived or obtained from commission of any terrorist act or acquired through the commission of any terrorist act shall be punished with imprisonment for a term which may extend to imprisonment for life, and shall also be liable to fine.**

*Explanation. - For the removal of doubts, it is hereby declared that the officer not below the rank of Superintendent of Police shall decide whether to register the case under this section or under the Unlawful Activities (Prevention) Act, 1967.*

**Simple Explanation: This provision defines and penalizes terrorist acts and related activities.**

**A terrorist act is committed when a person, with the intent to threaten or likely to threaten the unity, integrity, sovereignty, security, or economic security of India or to strike terror in the public, does any of the following:**

**1. Uses hazardous means (bombs, explosives, firearms, poisonous gases, biological, nuclear, or radioactive substances, etc.) to cause:**

- **Death or injury to individuals**

- Loss or destruction of property
  - Disruption of essential supplies or services
  - Harm to India's monetary stability (e.g., producing or circulating counterfeit currency)
  - Damage to defense or government property
2. Overawes a public functionary using criminal force, causing or attempting to cause their death.
  3. Kidnaps or abducts someone to force the government or any organization to act in a certain way.

#### **Punishments for Terrorist Acts:**

1. If the act results in death → Death penalty or life imprisonment, plus a fine.
2. In any other case → Minimum 5 years imprisonment (extendable to life imprisonment), plus a fine.
3. Conspiring, attempting, abetting, advocating, or facilitating terrorism → 5 years to life imprisonment, plus a fine.
4. Organizing terror training camps or recruiting terrorists → 5 years to life imprisonment, plus a fine.
5. Being a member of a terrorist organization → Up to life imprisonment, plus a fine.
6. Harboring or concealing a terrorist → 3 years to life imprisonment, plus a fine. *(Exception: If done by the offender's spouse)*
7. Possessing property obtained through terrorism → Up to life imprisonment, plus a fine.

#### **Clarifications:**

- The term "public functionary" includes constitutional authorities and officials notified by the Central Government.
- Counterfeit currency refers to fake notes that imitate or compromise key security features.
- The Superintendent of Police (SP) or higher officer decides whether to register a case under this law or the Unlawful Activities (Prevention) Act, 1967 (UAPA).

#### *Section 114:*

*Whoever causes bodily pain, disease or infirmity to any person is said to cause hurt.*

**Simple Explanation:** This provision defines hurt as causing bodily pain, disease, or infirmity to another person.

#### **Key Elements of Hurt:**

1. **Bodily Pain** – Any physical pain inflicted on a person.
2. **Disease** – Infecting someone with a disease intentionally.
3. **Infirmity** – Causing weakness or inability to function normally (temporary or permanent).

#### *Section 115:*

*(1) Whoever does any act with the intention of thereby causing hurt to any person, or with the knowledge that he is likely thereby to cause hurt to any person, and does thereby cause hurt to any person, is said "voluntarily to cause hurt".*

*(2) Whoever, except in the case provided for by sub-section (1) of section 122 voluntarily causes hurt, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to ten thousand rupees, or with both.*

**Simple Explanation:** Whoever intentionally causes hurt to any person or acts with the knowledge that such an act is likely to cause hurt and does cause hurt is said to "voluntarily cause hurt." Except in cases covered under sub-section (1) of section 122, anyone who voluntarily causes hurt shall be punished with imprisonment for up to one year, or with a fine of up to ten thousand rupees, or both.



#### Section 116:

*The following kinds of hurt only are designated as "grievous", namely:*

- (a) Emasculation;*
- (b) Permanent privation of the sight of either eye;*
- (c) Permanent privation of the hearing of either ear;*
- (d) Privation of any member or joint;*
- (e) Destruction or permanent impairing of the powers of any member or joint;*
- (f) Permanent disfiguration of the head or face;*
- (g) Fracture or dislocation of a bone or tooth;*
- (h) Any hurt which endangers life or which causes the sufferer to be during the space of fifteen days in severe bodily pain, or unable to follow his ordinary pursuits.*

**Simple Explanation:** The following types of hurt are classified as "grievous": (a) emasculation, (b) permanent loss of sight in either eye, (c) permanent loss of hearing in either ear, (d) loss of any limb or joint, (e) destruction or permanent impairment of the function of any limb or joint, (f) permanent disfigurement of the head or face, (g) fracture or dislocation of a bone or tooth, and (h) any injury that endangers life or causes the victim to suffer severe bodily pain or inability to perform daily activities for at least fifteen days.

#### Section 117:

##### **Section on Voluntarily Causing Grievous Hurt**

*(1) Whoever voluntarily causes hurt, if the hurt which he intends to cause or knows himself to be likely to cause is grievous hurt, and if the hurt which he causes is grievous hurt, is said "voluntarily to cause grievous hurt".*

*Explanation:* A person is not said voluntarily to cause grievous hurt except when he both causes grievous hurt and intends or knows himself to be likely to cause grievous hurt. But he is said voluntarily to cause grievous hurt, if intending or knowing himself to be likely to cause grievous hurt of one kind, he actually causes grievous hurt of another kind.

##### *Illustration*

*A, intending or knowing himself to be likely permanently to disfigure Z's face, gives Z a blow which does not permanently disfigure Z's face, but which causes Z to suffer severe bodily pain for the space of fifteen days. A has voluntarily caused grievous hurt.*

*(2) Whoever, except in the case provided for by sub-section (2) of section 122, voluntarily causes grievous hurt, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

*(3) Whoever commits an offence under sub-section (1) and in the course of such commission causes any hurt to a person which causes that person to be in permanent disability or in persistent vegetative state, shall be punished with rigorous imprisonment for a term which shall not be less than ten years but which may extend to imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life.*

*(4) When a group of five or more persons acting in concert, causes grievous hurt to a person on the ground of his race, caste or community, sex, place of birth, language, personal belief or any other similar ground, each member of such group shall be guilty of the offence of causing grievous hurt, and shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

**Simple Explanation:** The section on Voluntarily Causing Grievous Hurt states that whoever voluntarily causes hurt, knowing or intending that the hurt is grievous, and actually causes grievous hurt, is said to "voluntarily cause grievous hurt." A person is not considered to have voluntarily caused grievous hurt unless both the act and intent or knowledge of causing grievous hurt are present. However, if someone intends to cause one kind of grievous hurt but ends up causing another kind, it still amounts to voluntarily causing grievous hurt.

For example, if A intends to permanently disfigure Z's face but instead causes severe bodily pain for fifteen days, A has voluntarily caused grievous hurt.

The punishment for this offence, except in cases covered under Section 122(2), is imprisonment of up to seven years and a fine. However, if the act results in permanent disability or a persistent vegetative state, the punishment is rigorous imprisonment for a minimum of ten years, which may extend to life imprisonment.

Additionally, if five or more persons act together to cause grievous hurt based on race, caste, community, sex, language, or personal belief, each person in the group shall be punished with imprisonment of up to seven years and a fine.

#### Section 118:

*(1) Whoever, except in the case provided for by sub-section (1) of section 122, voluntarily causes hurt by means of any instrument for shooting, stabbing or cutting, or any instrument which, used as a weapon of offence, is likely to cause death, or by means of fire or any heated substance, or by means of any poison or any corrosive substance, or by means of any explosive substance, or by means of any substance which it is deleterious to the human body to inhale, to swallow, or to receive into the blood, or by means of any animal, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine which may extend to twenty thousand rupees, or with both.*

*(2) Whoever, except in the case provided for by sub-section (2) of section 122, voluntarily causes grievous hurt by any means referred to in sub-section (1), shall be punished with imprisonment for life, or with imprisonment of either description for a term which shall not be less than one year but which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation:** Whoever voluntarily causes hurt using dangerous weapons like guns, knives, fire, poison, explosives, harmful gases, or even animals (except as covered under Section 122(1)) can be punished with up to three years of imprisonment, a fine of up to ₹20,000, or both. If the act results in grievous hurt using any of these means (except as covered under Section 122(2)), the punishment can be life imprisonment or imprisonment between one to ten years, along with a fine.

#### Section 119:

*(1) Whoever voluntarily causes hurt for the purpose of extorting from the sufferer, or from any person interested in the sufferer, any property or valuable security, or of constraining the sufferer or any person interested in such sufferer to do anything which is illegal or which may facilitate the commission of an offence, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

*(2) Whoever voluntarily causes grievous hurt for any purpose referred to in sub-section (1), shall be punished with imprisonment for life, or imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation:** Whoever voluntarily causes hurt to force the victim or someone related to them to give property, valuable security, or commit an illegal act can face up to 10 years of imprisonment and a fine. If the hurt caused is grievous, the punishment can be life imprisonment or up to 10 years of imprisonment, along with a fine.

#### Section 120:

*(1) Whoever voluntarily causes hurt for the purpose of extorting from the sufferer or from any person interested in the sufferer, any confession or any information which may lead to the detection of an offence or misconduct, or for the purpose of constraining the sufferer or any person interested in the sufferer to restore or to cause the restoration of any property or valuable security or to satisfy any claim or demand, or to give information which may lead to the restoration of any property or valuable security, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

#### Illustrations

- (a) A, a police-officer, tortures Z in order to induce Z to confess that he committed a crime. A is guilty of an offence under this section.

- (b) A, a police-officer, tortures B to induce him to point out where certain stolen property is deposited. A is guilty of an offence under this section.
- (c) A, a revenue officer, tortures Z in order to compel him to pay certain arrears of revenue due from Z. A is guilty of an offence under this section.

(2) Whoever voluntarily causes grievous hurt for any purpose referred to in sub-section (1), shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

**Simple Explanation:** Whoever voluntarily causes hurt to force someone to confess a crime, provide information about an offence, restore property, or fulfill a demand can be punished with up to seven years of imprisonment and a fine. If the hurt caused is grievous, the punishment increases to up to ten years of imprisonment along with a fine.

**For example,** if a police officer tortures someone to extract a confession or to reveal the location of stolen property, or if a revenue officer tortures someone to recover unpaid dues, they would be guilty under this section.

#### Section 121:

(1) Whoever voluntarily causes hurt to any person being a public servant in the discharge of his duty as such public servant, or with intent to prevent or deter that person or any other public servant from discharging his duty as such public servant or in consequence of anything done or attempted to be done by that person in the lawful discharge of his duty as such public servant, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both.

(2) Whoever voluntarily causes grievous hurt to any person being a public servant in the discharge of his duty as such public servant, or with intent to prevent or deter that person or any other public servant from discharging his duty as such public servant or in consequence of anything done or attempted to be done by that person in the lawful discharge of his duty as such public servant, shall be punished with imprisonment of either description for a term which shall not be less than one year but which may extend to ten years, and shall also be liable to fine.

**Simple Explanation:** Whoever voluntarily causes hurt to a public servant while they are performing their duty, or to stop them from doing their duty, or in retaliation for their actions, can face up to five years of imprisonment, a fine, or both.

**If the hurt caused is grievous, the punishment increases to a minimum of one year and up to ten years of imprisonment, along with a fine.**

#### Section 122:

(1) Whoever voluntarily causes hurt on grave and sudden provocation, if he neither intends nor knows himself to be likely to cause hurt to any person other than the person who gave the provocation, shall be punished with imprisonment of either description for a term which may extend to one month, or with fine which may extend to five thousand rupees, or with both.

(2) Whoever voluntarily causes grievous hurt on grave and sudden provocation, if he neither intends nor knows himself to be likely to cause grievous hurt to any person other than the person who gave the provocation, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine which may extend to ten thousand rupees, or with both.

*Explanation.* - This section is subject to the same proviso as Exception 1 of section 101.

**Simple Explanation:** If someone voluntarily causes hurt due to grave and sudden provocation, without intending or expecting to hurt anyone except the person who provoked them, they may face up to one month of imprisonment, a fine of up to ₹5,000, or both.

**If the hurt caused is grievous, the punishment increases to up to five years of imprisonment, a fine of up to ₹10,000, or both.**

**This provision follows the same conditions as Exception 1 of Section 101.**

#### Section 123:

*Whoever administers to or causes to be taken by any person any poison or any stupefying, intoxicating or unwholesome drug, or other thing with intent to cause hurt to such person, or with intent to commit or to facilitate the commission of an offence or knowing it to be likely that he will thereby cause hurt, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation:** Whoever gives or causes someone to take any poison, stupefying, intoxicating, or unwholesome drug, or any other harmful substance with the intent to cause hurt to that person, or to commit or facilitate an offence, or knowing that it is likely to cause hurt, will be punished with imprisonment for up to ten years, and may also be liable to a fine.

**Section 124:**

*(1) Whoever causes permanent or partial damage or deformity to, or burns or maims or disfigures or disables, any part or parts of the body of a person or causes grievous hurt by throwing acid on or by administering acid to that person, or by using any other means with the intention of causing or with the knowledge that he is likely to cause such injury or hurt or causes a person to be in a permanent vegetative state shall be punished with imprisonment of either description for a term which shall not be less than ten years but which may extend to imprisonment for life, and with fine:*

- *Provided that such fine shall be just and reasonable to meet the medical expenses of the treatment of the victim:*
- *Provided further that any fine imposed under this sub-section shall be paid to the victim.*

*(2) Whoever throws or attempts to throw acid on any person or attempts to administer acid to any person, or attempts to use any other means, with the intention of causing permanent or partial damage or deformity or burns or maiming or disfigurement or disability or grievous hurt to that person, shall be punished with imprisonment of either description for a term which shall not be less than five years but which may extend to seven years, and shall also be liable to fine.*

**Simple Explanation:** (1) Whoever causes permanent or partial damage, deformity, burns, maims, disfigures, or disables any part of a person's body, or causes grievous hurt by throwing acid or administering it to that person, or using any other means with the intent or knowledge of likely causing such harm, or causes the person to be in a permanent vegetative state, will be punished with imprisonment for not less than ten years, which may extend to life imprisonment, and a fine. The fine must be just and reasonable to meet the victim's medical expenses, and it shall be paid directly to the victim.

**(2) Whoever throws or attempts to throw acid on any person, attempts to administer acid, or uses any other means with the intention of causing damage, deformity, burns, maiming, disfigurement, disability, or grievous hurt, will be punished with imprisonment for not less than five years, which may extend to seven years, and also liable to fine.**

**Section 125:**

*Whoever does any act so rashly or negligently as to endanger human life or the personal safety of others, shall be punished with imprisonment of either description for a term which may extend to three months or with fine which may extend to two thousand five hundred rupees, or with both, but -*

*(a) where hurt is caused, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both;*

*(b) where grievous hurt is caused, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine which may extend to ten thousand rupees, or with both.*

**Simple Explanation:** Whoever acts rashly or negligently in a way that endangers human life or personal safety will be punished with imprisonment for up to three months, a fine up to ₹2,500, or both.

**However:**

- **If hurt is caused, the punishment increases to imprisonment for up to six months, a fine up to ₹5,000, or both.**
- **If grievous hurt is caused, the punishment increases further to imprisonment for up to three years, a fine up to ₹10,000, or both.**

#### Section 126:

(1) Whoever voluntarily obstructs any person so as to prevent that person from proceeding in any direction in which that person has a right to proceed, is said wrongfully to restrain that person.

#### Exception

The obstruction of a private way over land or water which a person in good faith believes himself to have a lawful right to obstruct, is not an offence within the meaning of this section.

#### Illustration

A obstructs a path along which Z has a right to pass, A not believing in good faith that he has a right to stop the path. Z is thereby prevented from passing. A wrongfully restrains Z.

(2) Whoever wrongfully restrains any person shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five thousand rupees, or with both.

**Simple Explanation: Wrongful Restraint occurs when someone voluntarily obstructs another person, preventing them from proceeding in a direction where they have the right to go.**

**Exception: If a person in good faith believes they have a lawful right to block a private path over land or water, it does not constitute an offense under this section.**

**Illustration: A obstructs a path that Z has a right to pass through, but A does not believe in good faith that they have the right to stop Z. A is therefore wrongfully restraining Z.**

**Punishment: Anyone who wrongfully restrains another person can be punished with simple imprisonment for up to one month, a fine of up to ₹5,000, or both.**

#### Section 127:

(1) Whoever wrongfully restrains any person in such a manner as to prevent that person from proceeding beyond certain circumscribing limits, is said "wrongfully to confine" that person.

#### Illustrations

(a) A causes Z to go within a walled space, and locks Z in. Z is thus prevented from proceeding in any direction beyond the circumscribing line of wall. A wrongfully confines Z.

(b) A places men with firearms at the outlets of a building, and tells Z that they will fire at Z if Z attempts to leave the building. A wrongfully confines Z.

(2) Whoever wrongfully confines any person shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to five thousand rupees, or with both.

(3) Whoever wrongfully confines any person for three days, or more, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine which may extend to ten thousand rupees, or with both.

(4) Whoever wrongfully confines any person for ten days or more, shall be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine which shall not be less than ten thousand rupees.

(5) Whoever keeps any person in wrongful confinement, knowing that a writ for the liberation of that person has been duly issued, shall be punished with imprisonment of either description for a term which may extend to two years in addition to any term of imprisonment to which he may be liable under any other section of this Chapter and shall also be liable to fine.

(6) Whoever wrongfully confines any person in such manner as to indicate an intention that the confinement of such person may not be known to any person interested in the person so confined, or to any public servant, or that the place of such confinement may not be known to or discovered by any such person or public servant as hereinbefore mentioned, shall be punished with imprisonment of either description for a term which may extend to three years in addition to any other punishment to which he may be liable for such wrongful confinement and shall also be liable to fine.

*(7) Whoever wrongfully confines any person for the purpose of extorting from the person confined, or from any person interested in the person confined, any property or valuable security or of constraining the person confined or any person interested in such person to do anything illegal or to give any information which may facilitate the commission of an offence, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.*

*(8) Whoever wrongfully confines any person for the purpose of extorting from the person confined or any person interested in the person confined any confession or any information which may lead to the detection of an offence or misconduct, or for the purpose of constraining the person confined or any person interested in the person confined to restore or to cause the restoration of any property or valuable security or to satisfy any claim or demand, or to give information which may lead to the restoration of any property or valuable security, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.*

**Simple Explanation: Wrongful Confinement occurs when a person is wrongfully restrained in a way that prevents them from moving beyond certain limits.**

**Illustrations:**

- **(a) If A locks Z in a walled space and prevents Z from moving beyond the walls, A has wrongfully confined Z.**
- **(b) If A places armed guards at the exits of a building and threatens Z with harm if they try to leave, A has wrongfully confined Z.**

**Punishments for Wrongful Confinement:**

- 1. For general wrongful confinement: A person can be punished with imprisonment for up to one year, a fine of up to ₹5,000, or both.**
- 2. For wrongful confinement lasting 3 days or more: The punishment may extend to 3 years of imprisonment, a fine up to ₹10,000, or both.**
- 3. For wrongful confinement lasting 10 days or more: The punishment can extend to 5 years of imprisonment, along with a fine of at least ₹10,000.**
- 4. For wrongful confinement when a writ of liberation has been issued: The person may face up to 2 years of additional imprisonment, along with any other sentence they may receive.**
- 5. For wrongful confinement with the intent to hide the person's location: The person may face up to 3 years of additional imprisonment, plus any other punishment for wrongful confinement.**
- 6. For wrongful confinement with the intent to extort: If the confinement is done to force the person to give money, security, or information, the punishment is up to 3 years of imprisonment and a fine.**
- 7. For wrongful confinement to extort confessions or information: The punishment can extend to 3 years of imprisonment and a fine if the confinement is used to force confessions or information related to an offense or property recovery.**

**Section 128:**

*A person is said to use force to another if he causes motion, change of motion, or cessation of motion to that other, or if he causes to any substance such motion, or change of motion, or cessation of motion as brings that substance into contact with any part of that other's body, or with anything which that other is wearing or carrying, or with anything so situated that such contact affects that other's sense of feeling:*

*Provided that the person causing the motion, or change of motion, or cessation of motion, causes that motion, change of motion, or cessation of motion in one of the following three ways, namely:*

- (a) by his own bodily power;*
- (b) by disposing any substance in such a manner that the motion or change or cessation of motion takes place without any further act on his part, or on the part of any other person;*
- (c) by inducing any animal to move, to change its motion, or to cease to move.*

**Simple Explanation: A person is said to use force on another if they cause:**

- 1. Motion or change of motion or cessation of motion in the other person.**
- 2. Motion, change of motion, or cessation of motion of a substance that comes into contact with the other person's body or anything they are wearing or carrying, or anything that, if in contact, would affect the other person's sense of feeling.**

**The force can be applied in the following ways:**

- **(a) By the person's own bodily power: For example, pushing or pulling someone physically.**
- **(b) By arranging a substance in such a way that the motion or change in motion happens without further action by the person or anyone else. For example, setting a rolling object in motion that then causes contact with the person.**
- **(c) By inducing an animal to move, change its motion, or cease moving, which causes contact or force on the other person. For example, directing a dog to push or move towards someone.**

**This definition outlines the different ways force can be applied to another, whether through direct physical interaction, the use of substances, or animals.**

*Section 129:*

*Whoever intentionally uses force to any person, without that person's consent, in order to the committing of any offence, or intending by the use of such force to cause, or knowing it to be likely that by the use of such force he will cause injury, fear or annoyance to the person to whom the force is used, is said to use criminal force to that other.*

#### **Illustrations**

*(a) Z is sitting in a moored boat on a river. A unfastens the moorings, and thus intentionally causes the boat to drift down the stream. Here A intentionally causes motion to Z, and he does this by disposing substances in such a manner that the motion is produced without any other action on any person's part. A has therefore intentionally used force to Z; and if he has done so without Z's consent, in order to the committing of any offence, or intending or knowing it to be likely that this use of force will cause injury, fear or annoyance to Z, A has used criminal force to Z.*

*(b) Z is riding in a chariot. A lashes Z's horses, and thereby causes them to quicken their pace. Here A has caused change of motion to Z by inducing the animals to change their motion. A has therefore used force to Z; and if A has done this without Z's consent, intending or knowing it to be likely that he may thereby injure, frighten or annoy Z, A has used criminal force to Z.*

*(c) Z is riding in a palanquin. A, intending to rob Z, seizes the pole and stops the palanquin. Here A has caused cessation of motion to Z, and he has done this by his own bodily power. A has therefore used force to Z; and as A has acted thus intentionally, without Z's consent, in order to the commission of an offence, A has used criminal force to Z.*

*(d) A intentionally pushes against Z in the street. Here A has by his own bodily power moved his own person so as to bring it into contact with Z. He has therefore intentionally used force to Z; and if he has done so without Z's consent, intending or knowing it to be likely that he may thereby injure, frighten or annoy Z, he has used criminal force to Z.*

*(e) A throws a stone, intending or knowing it to be likely that the stone will be thus brought into contact with Z, or with Z's clothes, or with something carried by Z, or that it will strike water and dash up the water against Z's clothes or something carried by Z. Here, if the throwing of the stone produces the effect of causing any substance to come into contact with Z, or Z's clothes, A has used force to Z, and if he did so without Z's consent, intending thereby to injure, frighten or annoy Z, he has used criminal force to Z.*

*(f) A intentionally pulls up a woman's veil. Here A intentionally uses force to her, and if he does so without her consent intending or knowing it to be likely that he may thereby injure, frighten or annoy her, he has used criminal force to her.*

*(g) Z is bathing. A pours into the bath water which he knows to be boiling. Here A intentionally by his own bodily power causes such motion in the boiling water as brings that water into contact with Z, or with other water so situated that such contact must affect Z's sense of feeling; A has therefore intentionally used force to Z; and if he has done this without Z's consent intending or knowing it to be likely that he may thereby cause injury, fear or annoyance to Z, A has used criminal force.*

*(h) A incites a dog to spring upon Z, without Z's consent. Here, if A intends to cause injury, fear or annoyance to Z, he uses criminal force to Z.*

**Simple Explanation: Criminal Force** is when a person intentionally uses force on another person without their consent and with the purpose of committing an offense, or intending to cause injury, fear, or annoyance, or knowing that such outcomes are likely. Here are a few key examples:

**Illustrations:**

1. **Boat Example (a):**  
A unmoors a boat, intentionally causing it to drift down the stream, affecting Z who is sitting in the boat. If A intended to cause injury, fear, or annoyance to Z or knew this would happen, A has used criminal force to Z.
2. **Horse Example (b):**  
A lashes the horses of Z's chariot, making them run faster. This is a case where A has induced animals to change motion, and if done without Z's consent and with intent to cause harm, it constitutes criminal force.
3. **Palanquin Example (c):**  
A stops Z's palanquin, causing Z to be stationary. This is an example of using bodily power to cause a cessation of motion, and if done to rob Z or with malicious intent, it's criminal force.
4. **Pushing Example (d):**  
A pushes Z on the street intentionally, using bodily power to bring about contact with Z. If A did so to cause harm or annoyance, it is criminal force.
5. **Stone Throwing Example (e):**  
A throws a stone intending to hit Z or splash water onto Z. This is using force to make an object come into contact with Z, and if done with intent to cause injury, fear, or annoyance, it is criminal force.
6. **Veil Example (f):**  
A pulls a woman's veil without her consent. If done intentionally to cause harm or annoyance, this is criminal force.
7. **Boiling Water Example (g):**  
A pours boiling water into a bath where Z is bathing, intending for the hot water to contact Z. This is force by bodily power and is criminal if done with intent to cause harm.
8. **Dog Example (h):**  
A incites a dog to attack Z. If done with the intention to harm or annoy Z, it constitutes criminal force.

In each of these cases, the critical elements are:

- **Intentionality:** The person must intentionally use force.
- **Lack of Consent:** The person must not have consented to the force being used.
- **Purpose:** The use of force must be to commit an offense, or with the intent to cause injury, fear, or annoyance.

**Section 130:**

*Whoever makes any gesture, or any preparation intending or knowing it to be likely that such gesture or preparation will cause any person present to apprehend that he who makes that gesture or preparation is about to use criminal force to that person, is said to commit an assault.*

**Explanation.** - Mere words do not amount to an assault. But the words which a person uses may give to his gestures or preparation such a meaning as may make those gestures or preparations amount to an assault.

**Illustrations**

*(a) A shakes his fist at Z, intending or knowing it to be likely that he may thereby cause Z to believe that A is about to strike Z. A has committed an assault.*



*(b) A begins to unloose the muzzle of a ferocious dog, intending or knowing it to be likely that he may thereby cause Z to believe that he is about to cause the dog to attack Z. A has committed an assault upon Z.*

*(c) A takes up a stick, saying to Z, "I will give you a beating". Here, though the words used by A could in no case amount to an assault, and though the mere gesture, unaccompanied by any other circumstances, might not amount to an assault, the gesture explained by the words may amount to an assault.*

**Simple Explanation: Assault is when a person makes any gesture or preparation that, intentionally or knowingly, causes another person to apprehend that the person making the gesture or preparation is about to use criminal force on them. It's important to note that mere words alone do not amount to assault, but the combination of words and gestures can lead to an assault.**

#### **Key Elements:**

- **Gesture or Preparation:** The person must make a physical gesture or take an action that suggests they might use criminal force.
- **Intention or Knowledge:** The person must intend to, or know that their actions are likely to, make the other person believe they are about to be harmed.
- **Apprehension:** The other person must believe that force is about to be used against them.

#### **Illustrations:**

1. **Fist-Shaking Example (a):**  
A shakes his fist at Z, intending or knowing that Z will believe A is about to strike him. This is assault because A's gesture causes Z to fear being hit.
2. **Dog Example (b):**  
A begins to untie the muzzle of a ferocious dog, knowing that Z will believe the dog is about to attack. This action causes Z to fear an imminent attack, making it an assault.
3. **Stick Example (c):**  
A picks up a stick and says, "I will give you a beating," to Z. While words alone do not constitute assault, the combination of the threatening words and the gesture (holding the stick) can lead to an assault because the words explain and amplify the meaning of the gesture, making Z apprehensive of harm.

**In all of these examples, the key point is that the victim apprehends harm due to the combination of gestures and words.**

#### *Section 131:*

*Whoever assaults or uses criminal force to any person otherwise than on grave and sudden provocation given by that person, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to one thousand rupees, or with both.*

#### *Explanation 1*

*Grave and sudden provocation will not mitigate the punishment for an offence under this section, -*

- *(a) if the provocation is sought or voluntarily provoked by the offender as an excuse for the offence; or*
- *(b) if the provocation is given by anything done in obedience to the law, or by a public servant, in the lawful exercise of the powers of such public servant; or*
- *(c) if the provocation is given by anything done in the lawful exercise of the right of private defence.*

#### *Explanation 2*

*Whether the provocation was grave and sudden enough to mitigate the offence, is a question of fact.*

**Simple Explanation: Whoever assaults or uses criminal force to another person, without grave and sudden provocation from that person, may face imprisonment for up to three months, a fine of up to one thousand rupees, or both. However, grave and sudden provocation will not reduce the punishment if the provocation was voluntarily**

provoked by the offender, if it was done in obedience to the law or by a public servant exercising lawful powers, or if it occurred during the lawful exercise of the right to private defense. Whether the provocation was sufficient to mitigate the offence is a matter of fact.

*Section 132:*

*Whoever assaults or uses criminal force to any person being a public servant in the execution of his duty as such public servant, or with intent to prevent or deter that person from discharging his duty as such public servant, or in consequence of anything done or attempted to be done by such person in the lawful discharge of his duty as such public servant, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation:** Whoever assaults or uses criminal force to a public servant while they are performing their duties, or with the intent to prevent or deter the public servant from carrying out their duties, or as a consequence of any action taken by the public servant in the lawful discharge of their duties, shall be punished with imprisonment for up to two years, a fine, or both.

*Section 133:*

*Whoever assaults or uses criminal force to any person, intending thereby to dishonour that person, otherwise than on grave and sudden provocation given by that person, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation:** Whoever assaults or uses criminal force to any person with the intention of dishonouring them, and not in response to grave and sudden provocation given by that person, shall be punished with imprisonment for up to two years, or with a fine, or both.

*Section 134:*

*Whoever assaults or uses criminal force to any person, in attempting to commit theft on any property which that person is then wearing or carrying, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation:** Whoever assaults or uses criminal force to any person while attempting to commit theft of any property that person is wearing or carrying shall be punished with imprisonment for up to two years, or with a fine, or both.

*Section 135:*

*Whoever assaults or uses criminal force to any person, in attempting wrongfully to confine that person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation:** Whoever assaults or uses criminal force to any person while attempting to wrongfully confine that person shall be punished with imprisonment for up to one year, or with a fine up to five thousand rupees, or both.

*Section 136:*

*Whoever assaults or uses criminal force to any person on grave and sudden provocation given by that person, shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to one thousand rupees, or with both.*

**Explanation.** - This section is subject to the same Explanation as section 131.

**Simple Explanation:** Whoever assaults or uses criminal force to any person due to grave and sudden provocation given by that person shall be punished with simple imprisonment for up to one month, or with a fine up to one thousand rupees, or both.

**Explanation:** This section is subject to the same explanation as Section 131, which states that grave and sudden provocation will not reduce the punishment if it was sought or voluntarily provoked by the offender, done in obedience to the law, by a public servant in the lawful exercise of their powers, or in the exercise of the right to private defense.

*Section 137:*

*(1) Kidnapping is of two kinds: kidnapping from India, and kidnapping from lawful guardianship:*

- *(a) Whoever conveys any person beyond the limits of India without the consent of that person, or of some person legally authorised to consent on behalf of that person, is said to kidnap that person from India;*
- *(b) Whoever takes or entices any child or any person of unsound mind, out of the keeping of the lawful guardian of such child or person of unsound mind, without the consent of such guardian, is said to kidnap such child or person from lawful guardianship.*

**Explanation:** The words "lawful guardian" in this clause include any person lawfully entrusted with the care or custody of such child or other person.

**Exception:** This clause does not extend to the act of any person who in good faith believes himself to be the father of an illegitimate child, or who in good faith believes himself to be entitled to the lawful custody of such child, unless such act is committed for an immoral or unlawful purpose.

*(2) Whoever kidnaps any person from India or from lawful guardianship shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

**Simple Explanation:** Kidnapping is classified into two types:

1. **Kidnapping from India:** If a person conveys someone beyond the limits of India without the consent of that person or someone legally authorized to consent on their behalf, it is considered kidnapping from India.
2. **Kidnapping from lawful guardianship:** If a person takes or entices a child or a person of unsound mind out of the custody of their lawful guardian without the guardian's consent, it is considered kidnapping from lawful guardianship. The term "lawful guardian" includes any person legally entrusted with the care or custody of the child or person of unsound mind.

**Exception:** This provision does not apply to someone who, in good faith, believes themselves to be the father or the lawful custodian of the child, unless their actions are for immoral or unlawful purposes.

**Anyone found guilty of kidnapping from India or from lawful guardianship will face imprisonment for up to seven years, along with a possible fine.**

*Section 138:*

*Whoever by force compels, or by any deceitful means induces, any person to go from any place, is said to abduct that person.*

**Simple Explanation:** Abduction occurs when a person is compelled by force or induced through deceitful means to go from one place to another. In such cases, the individual who uses force or deceit to move the person is said to have abducted them.

*Section 139:*

*(1) Whoever kidnaps any child or, not being the lawful guardian of such child, obtains the custody of the child, in order that such child may be employed or used for the purposes of begging shall be punishable with rigorous imprisonment for a term which shall not be less than ten years but which may extend to imprisonment for life, and shall also be liable to fine.*

*(2) Whoever maims any child in order that such child may be employed or used for the purposes of begging shall be punishable with imprisonment which shall not be less than twenty years, but which may extend to life which shall mean imprisonment for the remainder of that person's natural life, and with fine.*

*(3) Where any person, not being the lawful guardian of a child employs or uses such child for the purposes of begging, it shall be presumed, unless the contrary is proved, that he kidnapped or otherwise obtained the custody of such child in order that such child might be employed or used for the purposes of begging.*

*(4) In this section "begging" means -*

*(i) soliciting or receiving alms in a public place, whether under the pretence of singing, dancing, fortune telling, performing tricks or selling articles or otherwise;*

*(ii) entering on any private premises for the purpose of soliciting or receiving alms;*

*(iii) exposing or exhibiting, with the object of obtaining or extorting alms, any sore, wound, injury, deformity or disease, whether of himself or of any other person or of an animal;*

*(iv) using such child as an exhibit for the purpose of soliciting or receiving alms.*

**Simple Explanation:** The section criminalizes the act of kidnapping or obtaining custody of a child for the purpose of using them in begging. It punishes anyone who kidnaps a child, or, not being the lawful guardian, obtains the custody of a child to employ them in begging, with rigorous imprisonment for a term of at least ten years, extendable to life imprisonment, along with a fine. If a person maims a child for the same purpose, the punishment is more severe, ranging from twenty years to life imprisonment, along with a fine. It is presumed that any person who employs or uses a child for begging has kidnapped or unlawfully obtained the child's custody for that purpose. The term "begging" includes soliciting or receiving alms in public places, entering private premises for alms, or exposing injuries or deformities for the purpose of soliciting alms.

Section 140:

*(1) Whoever kidnaps or abducts any person in order that such person may be murdered or may be so disposed of as to be put in danger of being murdered, shall be punished with imprisonment for life or rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.*

#### **Illustrations**

- *(a) A kidnaps Z from India, intending or knowing it to be likely that Z may be sacrificed to an idol. A has committed the offence defined in this section.*
- *(b) A forcibly carries or entices B away from his home in order that B may be murdered. A has committed the offence defined in this section.*

*(2) Whoever kidnaps or abducts any person or keeps a person in detention after such kidnapping or abduction, and threatens to cause death or hurt to such person, or by his conduct gives rise to a reasonable apprehension that such person may be put to death or hurt, or causes hurt or death to such person in order to compel the Government or any foreign State or international inter-governmental organisation or any other person to do or abstain from doing any act or to pay a ransom, shall be punishable with death, or imprisonment for life, and shall also be liable to fine.*

*(3) Whoever kidnaps or abducts any person with intent to cause that person to be secretly and wrongfully confined, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

*(4) Whoever kidnaps or abducts any person in order that such person may be subjected, or may be so disposed of as to be put in danger of being subjected to grievous hurt, or slavery, or to the unnatural lust of any person, or knowing it to be likely that such person will be so subjected or disposed of, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation:** This section outlines various offenses related to kidnapping or abduction, particularly when the intent is to cause harm, such as murder, grievous hurt, or other forms of exploitation. It punishes those who kidnap or abduct a person to have them murdered or put in danger of being murdered with life imprisonment or rigorous imprisonment for up to ten years, along with a fine. If the kidnapper threatens to cause death or harm, or causes actual harm to the person to compel the government, a foreign state, or any other entity to act or pay a

ransom, the punishment can be death or life imprisonment, along with a fine. Kidnapping or abduction with the intent to secretly confine the person is punishable with up to seven years imprisonment and a fine. Additionally, if the kidnapping or abduction is done to subject the person to grievous harm, slavery, or unnatural lust, the punishment is imprisonment for up to ten years, along with a fine.

*Section 141:*

*Whoever imports into India from any country outside India any girl under the age of twenty-one years or any boy under the age of eighteen years with intent that girl or boy may be, or knowing it to be likely that girl or boy will be, forced or seduced to illicit intercourse with another person, shall be punishable with imprisonment which may extend to ten years and shall also be liable to fine.*

**Simple Explanation:** Whoever imports any girl under the age of twenty-one years or any boy under the age of eighteen years into India from another country with the intent that the person may be, or knowing it is likely that they will be, forced or seduced into illicit intercourse, shall be punished with imprisonment for up to ten years, along with a fine. This provision aims to prevent trafficking of minors for sexual exploitation.

*Section 142:*

*Whoever, knowing that any person has been kidnapped or has been abducted, wrongfully conceals or confines such person, shall be punished in the same manner as if he had kidnapped or abducted such person with the same intention or knowledge, or for the same purpose as that with or for which he conceals or detains such person in confinement.*

**Simple Explanation:** Whoever knowingly conceals or confines a person who has been kidnapped or abducted shall be punished in the same manner as if they had kidnapped or abducted that person themselves, with the same intention, knowledge, or purpose for which they are concealing or detaining the person. This provision holds individuals accountable for aiding or abetting the wrongful confinement of a kidnapped or abducted person.

*Section 143:*

*(1) Whoever, for the purpose of exploitation recruits, transports, harbours, transfers, or receives a person or persons, by -*

*(a) using threats; or*

*(b) using force, or any other form of coercion; or*

*(c) by abduction; or*

*(d) by practising fraud, or deception; or*

*(e) by abuse of power; or*

*(f) by inducement, including the giving or receiving of payments or benefits, in order to achieve the consent of any person having control over the person recruited, transported, harboured, transferred or received, commits the offence of trafficking.*

*Explanation 1. - The expression "exploitation" shall include any act of physical exploitation or any form of sexual exploitation, slavery or practices similar to slavery, servitude, beggary or forced removal of organs.*

*Explanation 2. - The consent of the victim is immaterial in determination of the offence of trafficking.*

*(2) Whoever commits the offence of trafficking shall be punished with rigorous imprisonment for a term which shall not be less than seven years, but which may extend to ten years, and shall also be liable to fine.*

*(3) Where the offence involves the trafficking of more than one person, it shall be punishable with rigorous imprisonment for a term which shall not be less than ten years but which may extend to imprisonment for life, and shall also be liable to fine.*

*(4) Where the offence involves the trafficking of a child, it shall be punishable with rigorous imprisonment for a term which shall not be less than ten years, but which may extend to imprisonment for life, and shall also be liable to fine.*

*(5) Where the offence involves the trafficking of more than one child, it shall be punishable with rigorous imprisonment for a term which shall not be less than fourteen years, but which may extend to imprisonment for life, and shall also be liable to fine.*

*(6) If a person is convicted of the offence of trafficking of a child on more than one occasion, then such person shall be punished with imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, and shall also be liable to fine.*

*(7) When a public servant or a police officer is involved in the trafficking of any person then, such public servant or police officer shall be punished with imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, and shall also be liable to fine.*

**Simple Explanation:** The offence of trafficking involves the recruitment, transportation, harbouring, transfer, or receipt of a person for exploitation through various means such as threats, force, coercion, abduction, fraud, deception, abuse of power, or inducement. Exploitation includes physical or sexual exploitation, slavery, servitude, beggary, or forced organ removal. The consent of the victim is irrelevant in determining the offence.

**The punishment for trafficking varies:**

- A term of 7 to 10 years rigorous imprisonment and a fine for trafficking a person.
- For trafficking multiple persons, the punishment increases to 10 years to life imprisonment and a fine.
- If a child is trafficked, the punishment is 10 years to life imprisonment and a fine.
- For trafficking multiple children, the punishment is 14 years to life imprisonment and a fine.
- A repeat offender convicted of trafficking a child faces life imprisonment and a fine.
- Public servants or police officers involved in trafficking are punished with life imprisonment and a fine.

**This section aims to deter trafficking and protect individuals from being exploited.**

*Section 144:*

*(1) Whoever, knowingly or having reason to believe that a child has been trafficked, engages such child for sexual exploitation in any manner, shall be punished with rigorous imprisonment for a term which shall not be less than five years, but which may extend to ten years, and shall also be liable to fine.*

*(2) Whoever, knowingly or having reason to believe that a person has been trafficked, engages such person for sexual exploitation in any manner, shall be punished with rigorous imprisonment for a term which shall not be less than three years, but which may extend to seven years, and shall also be liable to fine.*

**Simple Explanation:** Whoever knowingly or with reason to believe that a child has been trafficked and engages the child for sexual exploitation will face rigorous imprisonment for 5 to 10 years and may also be fined.

**Similarly, if a person, knowingly or with reason to believe that someone has been trafficked, engages them for sexual exploitation, the punishment is rigorous imprisonment for 3 to 7 years and a fine.**

**These provisions emphasize stringent penalties to combat the exploitation of trafficked individuals, particularly in the context of sexual exploitation.**

*Section 145:*

*Whoever habitually imports, exports, removes, buys, sells, traffics or deals in slaves, shall be punished with imprisonment for life, or with imprisonment of either description for a term not exceeding ten years, and shall also be liable to fine.*

**Simple Explanation:** Whoever habitually imports, exports, removes, buys, sells, traffics, or deals in slaves shall be punished with life imprisonment, or imprisonment for a term not exceeding ten years, along with a fine.

**This provision targets individuals involved in the illegal trade or trafficking of slaves, imposing severe penalties for such activities.**

*Section 146:*

*Whoever unlawfully compels any person to labour against the will of that person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.*

**Simple Explanation:** Whoever unlawfully compels any person to labor against their will shall be punished with imprisonment of either description for a term which may extend to one year, or with a fine, or with both. This provision addresses forced labor, emphasizing punishment for those who coerce individuals into working against their consent.

*Section 147:*

*Whoever wages war against the Government of India, or attempts to wage such war, or abets the waging of such war, shall be punished with death, or imprisonment for life and shall also be liable to fine.*

*Illustration*

*A joins an insurrection against the Government of India. A has committed the offence defined in this section.*

**Simple Explanation:** Whoever wages war against the Government of India, or attempts to wage such war, or abets the waging of such war, shall be punished with death, or imprisonment for life, and shall also be liable to fine.

**Illustration:**

**A joins an insurrection against the Government of India. A has committed the offence defined in this section.**

**This section specifically addresses acts of insurrection or rebellion against the Indian government and holds individuals involved in such acts liable for severe punishment, including the death penalty or life imprisonment.**

*Section 148:*

*Whoever within or without and beyond India conspires to commit any of the offences punishable by section 147, or conspires to overawe, by means of criminal force or the show of criminal force, the Central Government or any State Government, shall be punished with imprisonment for life, or with imprisonment of either description which may extend to ten years, and shall also be liable to fine.*

*Explanation: To constitute a conspiracy under this section, it is not necessary that any act or illegal omission shall take place in pursuance thereof.*

**Simple Explanation:** Whoever, within or without India, conspires to commit any of the offences punishable by Section 147, or conspires to overawe, by means of criminal force or the show of criminal force, the Central Government or any State Government, shall be punished with imprisonment for life, or with imprisonment of either description which may extend to ten years, and shall also be liable to fine.

**Explanation:**

**To constitute a conspiracy under this section, it is not necessary that any act or illegal omission shall take place in pursuance thereof.**

**This section highlights the criminal nature of conspiring, whether inside or outside of India, to commit acts that could harm or destabilize the government by using force or threatening to use force. The punishment for such conspiracy is severe, including life imprisonment or up to ten years in prison, along with a fine.**

*Section 149:*

*Whoever collects men, arms or ammunition or otherwise prepares to wage war with the intention of either waging or being prepared to wage war against the Government of India, shall be punished with imprisonment for life or imprisonment of either description for a term not exceeding ten years, and shall also be liable to fine.*

**Simple Explanation:** Whoever collects men, arms, or ammunition, or otherwise prepares to wage war with the intention of either waging war or being prepared to wage war against the Government of India, shall be punished

with imprisonment for life or imprisonment of either description for a term not exceeding ten years, and shall also be liable to fine.

**This provision addresses the act of preparation for war against the government, making it a serious offense even before any actual conflict occurs. The punishment includes life imprisonment or a term of up to ten years in prison, along with a fine.**

*Section 150:*

*Whoever by any act, or by any illegal omission, conceals the existence of a design to wage war against the Government of India, intending by such concealment to facilitate, or knowing it to be likely that such concealment will facilitate, the waging of such war, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation: Whoever, by any act or illegal omission, conceals the existence of a design to wage war against the Government of India, intending by such concealment to facilitate, or knowing it to be likely that such concealment will facilitate, the waging of such war, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.**

**This provision penalizes the act of hiding or concealing plans to wage war against the government, either with the intention to assist in the war or with the knowledge that such concealment would help in its execution. The punishment can extend up to ten years of imprisonment, along with a fine.**

*Section 151:*

*Whoever, with the intention of inducing or compelling the President of India, or Governor of any State, to exercise or refrain from exercising in any manner any of the lawful powers of such President or Governor, assaults or wrongfully restrains, or attempts wrongfully to restrain, or overawes, by means of criminal force or the show of criminal force, or attempts so to overawe, such President or Governor, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

**Simple Explanation: Whoever, with the intention of inducing or compelling the President of India, or Governor of any State, to exercise or refrain from exercising in any manner any of the lawful powers of such President or Governor, assaults or wrongfully restrains, or attempts wrongfully to restrain, or overawes, by means of criminal force or the show of criminal force, or attempts so to overawe, such President or Governor, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.**

**This section addresses acts of force, restraint, or intimidation aimed at influencing the actions of the President or a State Governor. It recognizes the severity of such offenses by imposing a punishment that could extend up to seven years of imprisonment, along with a fine.**

*Section 152:*

*Whoever, purposely or knowingly, by words, either spoken or written, or by signs, or by visible representation, or by electronic communication or by use of financial means, or otherwise, excites or attempts to excite, secession or armed rebellion or subversive activities, or encourages feelings of separatist activities or endangers sovereignty or unity and integrity of India; or indulges in or commits any such act shall be punished with imprisonment for life or with imprisonment which may extend to seven years, and shall also be liable to fine.*

*Explanation*

*Comments expressing disapprobation of the measures, or administrative or other action of the Government with a view to obtain their alteration by lawful means without exciting or attempting to excite the activities referred to in this section do not constitute an offence under this section.*

**Simple Explanation: Whoever, through words (spoken or written), signs, visible representations, electronic communication, financial means, or other methods, intentionally excites or attempts to excite secession, armed rebellion, subversive activities, or separatist feelings, or endangers the sovereignty, unity, and integrity of India, shall be punished with life imprisonment or imprisonment for up to seven years, along with a fine. However,**



**expressing disapproval of the government's actions or seeking lawful changes without inciting such activities is not an offense under this section.**

*Section 153:*

*Whoever wages war against the Government of any foreign State at peace with the Government of India or attempts to wage such war, or abets the waging of such war, shall be punished with imprisonment for life, to which fine may be added, or with imprisonment of either description for a term which may extend to seven years, to which fine may be added, or with fine.*

**Simple Explanation: Whoever wages war against the government of a foreign state that is at peace with India, attempts to wage such war, or helps in waging such war, shall be punished with life imprisonment, which may include a fine, or with imprisonment for up to seven years, also with a fine, or just a fine.**

*Section 154:*

*Whoever commits depredation, or makes preparations to commit depredation, on the territories of any foreign State at peace with the Government of India, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine and to forfeiture of any property used or intended to be used in committing such depredation, or acquired by such depredation.*

**Simple Explanation: Whoever commits or prepares to commit depredation (destruction or robbery) on the territories of a foreign state at peace with India shall be punished with imprisonment for up to seven years, along with a fine. Additionally, any property used or intended to be used in the depredation, or acquired through it, may be forfeited.**

*Section 155:*

*Whoever receives any property knowing the same to have been taken in the commission of any of the offences mentioned in sections 153 and 154, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine and to forfeiture of the property so received.*

**Simple Explanation: Whoever receives any property knowing that it was taken during the commission of offences mentioned in sections 153 and 154 (related to depredation or attacks on foreign states) shall be punished with imprisonment for up to seven years. They will also be liable to a fine and forfeiture of the property they received.**

*Section 156:*

*Whoever, being a public servant and having the custody of any State prisoner or prisoner of war, voluntarily allows such prisoner to escape from any place in which such prisoner is confined, shall be punished with imprisonment for life, or imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation: A public servant who has custody of a State prisoner or a prisoner of war and voluntarily allows the prisoner to escape from their confinement will be punished with imprisonment for life, or a term up to ten years, and may also be liable to a fine.**

*Section 157:*

*Whoever, being a public servant and having the custody of any State prisoner or prisoner of war, negligently suffers such prisoner to escape from any place of confinement in which such prisoner is confined, shall be punished with simple imprisonment for a term which may extend to three years, and shall also be liable to fine.*

**Simple Explanation: A public servant who, having custody of a State prisoner or prisoner of war, negligently allows the prisoner to escape from their place of confinement will be punished with simple imprisonment for up to three years and may also be liable to a fine.**

*Section 158:*

*Whoever knowingly aids or assists any State prisoner or prisoner of war in escaping from lawful custody, or rescues or attempts to rescue any such prisoner, or harbours or conceals any such prisoner who has escaped from lawful custody, or offers or attempts to offer any resistance to the recapture of such prisoner, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

*Explanation: A State prisoner or prisoner of war, who is permitted to be at large on his parole within certain limits in India, is said to escape from lawful custody if he goes beyond the limits within which he is allowed to be at large.*

**Simple Explanation: Anyone who knowingly aids or assists a State prisoner or prisoner of war in escaping lawful custody, rescues or attempts to rescue such a prisoner, harbours or conceals an escaped prisoner, or resists the recapture of such a prisoner, will be punished with imprisonment for life or up to ten years, and may also be liable to a fine.**

**Explanation: A State prisoner or prisoner of war who is allowed to be at large within certain limits on parole, but exceeds those limits, is considered to have escaped lawful custody.**

*Section 159:*

*Whoever abets the committing of mutiny by an officer, soldier, sailor or airman, in the Army, Navy or Air Force of the Government of India or attempts to seduce any such officer, soldier, sailor or airman from his allegiance or his duty, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation: Anyone who abets or encourages the commission of mutiny by an officer, soldier, sailor, or airman in the Army, Navy, or Air Force of the Government of India, or attempts to persuade any such person to abandon their allegiance or duty, will be punished with imprisonment for life or up to ten years, and may also face a fine.**

*Section 160:*

*Whoever abets the committing of mutiny by an officer, soldier, sailor or airman, in the Army, Navy or Air Force of the Government of India, shall, if mutiny be committed in consequence of that abetment, be punished with death or with imprisonment for life, or imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation: Anyone who abets the commission of mutiny by an officer, soldier, sailor, or airman in the Army, Navy, or Air Force of the Government of India, and if mutiny occurs as a result of that abetment, will be punished with death, imprisonment for life, or imprisonment for up to ten years, and may also face a fine.**

*Section 161:*

*Whoever abets an assault by an officer, soldier, sailor or airman, in the Army, Navy or Air Force of the Government of India, on any superior officer being in the execution of his office, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.*

**Simple Explanation: Anyone who abets an assault by an officer, soldier, sailor, or airman in the Army, Navy, or Air Force of the Government of India on a superior officer while they are executing their duties, will be punished with imprisonment for a term that may extend to three years and may also face a fine.**

*Section 162:*

*Whoever abets an assault by an officer, soldier, sailor or airman, in the Army, Navy or Air Force of the Government of India, on any superior officer being in the execution of his office, shall, if such assault be committed in consequence of that abetment be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

**Simple Explanation:** Anyone who abets an assault by an officer, soldier, sailor, or airman in the Army, Navy, or Air Force of the Government of India on a superior officer while they are executing their duties, and if the assault occurs due to that abetment, shall be punished with imprisonment for a term that may extend to seven years and shall also be liable to a fine.

*Section 163:*

*Whoever abets the desertion of any officer, soldier, sailor or airman, in the Army, Navy or Air Force of the Government of India, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation:** Anyone who abets the desertion of an officer, soldier, sailor, or airman in the Army, Navy, or Air Force of the Government of India shall be punished with imprisonment for a term that may extend to two years, or with a fine, or with both.

*Section 164:*

*Whoever, except as hereinafter excepted, knowing or having reason to believe that an officer, soldier, sailor or airman, in the Army, Navy or Air Force of the Government of India, has deserted, harbours such officer, soldier, sailor or airman, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine or with both.*

*Exception*

*This provision does not extend to the case in which the harbour is given by the spouse of the deserter.*

**Simple Explanation:** Anyone, except in the cases specified, who knows or has reason to believe that an officer, soldier, sailor, or airman in the Army, Navy, or Air Force of the Government of India has deserted, and harbors such person, shall be punished with imprisonment for a term that may extend to two years, or with a fine, or with both.

**Exception:** This provision does not apply if the harboring is done by the spouse of the deserter.

*Section 165:*

*The master or person in charge of a merchant vessel, on board of which any deserter from the Army, Navy or Air Force of the Government of India is concealed, shall, though ignorant of such concealment, be liable to a penalty not exceeding three thousand rupees, if he might have known of such concealment but for some neglect of his duty as such master or person in charge, or but for some want of discipline on board of the vessel.*

**Simple Explanation:** The master or person in charge of a merchant vessel, on which any deserter from the Army, Navy, or Air Force of the Government of India is concealed, shall be liable to a penalty not exceeding three thousand rupees, even if they are unaware of the concealment. This applies if they could have known about it, but their neglect of duty or lack of discipline on board prevented them from discovering it.

*Section 166:*

*Whoever abets what he knows to be an act of insubordination by an officer, soldier, sailor or airman, in the Army, Navy or Air Force, of the Government of India, shall, if such act of insubordination be committed in consequence of that abetment, be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation:** Whoever abets an act of insubordination by an officer, soldier, sailor, or airman in the Army, Navy, or Air Force of the Government of India, knowing that it is an act of insubordination, shall be punished with imprisonment for a term up to two years, or with a fine, or with both, if the act of insubordination occurs as a result of that abetment.

*Section 167:*

*No person subject to the Air Force Act, 1950, the Army Act, 1950 and the Navy Act, 1957, or shall be subject to punishment under this Sanhita for any of the offences defined in this Chapter.*

**Simple Explanation:** No person who is subject to the Air Force Act, 1950, the Army Act, 1950, or the Navy Act, 1957, shall be subject to punishment under this Sanhita (criminal code) for any of the offences defined in this Chapter. This means that individuals governed by these military acts will not be penalized under the provisions of the Sanhita for offenses described here.

Section 168:

*Whoever, not being a soldier, sailor or airman in the Army, Naval or Air service of the Government of India, wears any garb or carries any token resembling any garb or token used by such a soldier, sailor or airman with the intention that it may be believed that he is such a soldier, sailor or airman, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to two thousand rupees, or with both.*

**Simple Explanation:** Whoever, not being a soldier, sailor, or airman in the Army, Navy, or Air Force of the Government of India, wears any uniform or carries any insignia resembling those used by such personnel, with the intent that it may lead others to believe that he is a soldier, sailor, or airman, shall be punished with imprisonment for a term that may extend to three months, or a fine up to two thousand rupees, or both.

Section 169:

*For the purposes of this Chapter*

*(a) "candidate" means a person who has been nominated as a candidate at any election;*

*(b) "electoral right" means the right of a person to stand, or not to stand as, or to withdraw from being, a candidate or to vote or refrain from voting at an election.*

**Simple Explanation:** For the purposes of this Chapter:

- "Candidate" refers to a person who has been nominated as a candidate in any election.
- "Electoral right" refers to the right of a person to stand for election, to decide not to stand, to withdraw from being a candidate, or to vote or choose not to vote in an election.

Section 170:

*(1) Whoever -*

*(i) gives a gratification to any person with the object of inducing him or any other person to exercise any electoral right or of rewarding any person for having exercised any such right; or*

*(ii) accepts either for himself or for any other person any gratification as a reward for exercising any such right or for inducing or attempting to induce any other person to exercise any such right,*

*commits the offence of bribery:*

*Provided that a declaration of public policy or a promise of public action shall not be an offence under this section.*

*(2) A person who offers, or agrees to give, or offers or attempts to procure, a gratification shall be deemed to give a gratification.*

*(3) A person who obtains or agrees to accept or attempts to obtain a gratification shall be deemed to accept a gratification, and a person who accepts a gratification as a motive for doing what he does not intend to do, or as a reward for doing what he has not done, shall be deemed to have accepted the gratification as a reward.*

**Simple Explanation:** Whoever gives a gratification to any person to induce them or another person to exercise any electoral right, or rewards someone for exercising such a right, commits the offence of bribery. Similarly, whoever accepts a gratification for exercising an electoral right or for inducing someone else to do so, also commits the offence. However, a declaration of public policy or a promise of public action is not considered an offence under this section. If a person offers or agrees to offer a gratification, or attempts to procure it, they are deemed to have given a gratification. Likewise, if a person accepts or attempts to accept a gratification, they are considered to have accepted it, especially if it serves as a reward or motivation for actions not intended or not yet performed.

**Section 171:**

*(1) Whoever voluntarily interferes or attempts to interfere with the free exercise of any electoral right commits the offence of undue influence at an election.*

*(2) Without prejudice to the generality of the provisions of sub-section (1), whoever -*

*(a) threatens any candidate or voter, or any person in whom a candidate or voter is interested, with injury of any kind; or*

*(b) induces or attempts to induce a candidate or voter to believe that he or any person in whom he is interested will become or will be rendered an object of Divine displeasure or of spiritual censure,*

*shall be deemed to interfere with the free exercise of the electoral right of such candidate or voter, within the meaning of sub-section (1).*

*(3) A declaration of public policy or a promise of public action or the mere exercise of a legal right without intent to interfere with an electoral right, shall not be deemed to be interference within the meaning of this section.*

**Simple Explanation: Undue influence at an election is the act of interfering or attempting to interfere with the free exercise of any electoral right. This can include threatening a candidate, voter, or any person associated with them with injury or harm, or inducing a candidate or voter to believe that they or someone they care about will face Divine displeasure or spiritual censure. These actions are considered as interference with the free exercise of electoral rights. However, a declaration of public policy, a promise of public action, or the mere exercise of a legal right without the intent to interfere with an electoral right, is not regarded as interference under this section.**

**Section 172:**

*Whoever at an election applies for a voting paper on votes in the name of any other person, whether living or dead, or in a fictitious name, or who having voted once at such election applies at the same election for a voting paper in his own name, and whoever abets, procures or attempts to procure the voting by any person in any such way, commits the offence of personation at an election:*

*Provided that nothing in this section shall apply to a person who has been authorised to vote as proxy for an elector under any law for the time being in force in so far as he votes as a proxy for such elector.*

**Simple Explanation: Personation at an election occurs when someone applies for a voting paper in the name of another person, whether they are alive or deceased, or in a fictitious name. It also includes voting once and then attempting to vote again at the same election in their own name. Anyone who abets, procures, or attempts to procure voting by such means also commits the offence of personation. However, this section does not apply to a person authorized to vote as a proxy on behalf of an elector under applicable law, provided they vote as a proxy.**

**Section 173:**

*Whoever commits the offence of bribery shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both:*

*Provided that bribery by treating shall be punished with fine only.*

*Explanation. - "Treating" means that form of bribery where the gratification consists in food, drink, entertainment, or provision.*

**Simple Explanation: Whoever commits the offence of bribery shall be punished with imprisonment for a term of up to one year, or with a fine, or with both. However, if the bribery involves treating, which refers to bribery through food, drink, entertainment, or provision, the punishment shall be limited to a fine only.**

**Section 174:**

*Whoever commits the offence of undue influence or personation at an election shall be punished with imprisonment of either description for a term which may extend to one year or with fine, or with both.*

**Simple Explanation: Whoever commits the offence of undue influence or personation at an election shall be punished with imprisonment for a term of up to one year, or with a fine, or with both.**

*Section 175:*

*Whoever with intent to affect the result of an election makes or publishes any statement purporting to be a statement of fact which is false and which he either knows or believes to be false or does not believe to be true, in relation to the personal character or conduct of any candidate shall be punished with fine.*

**Simple Explanation: Whoever, with the intent to influence the result of an election, makes or publishes any false statement of fact regarding the personal character or conduct of any candidate, knowing it to be false, believing it to be false, or without believing it to be true, shall be punished with a fine.**

*Section 176:*

*Whoever without the general or special authority in writing of a candidate incurs or authorises expenses on account of the holding of any public meeting, or upon any advertisement, circular or publication, or in any other way whatsoever for the purpose of promoting or procuring the election of such candidate, shall be punished with fine which may extend to ten thousand rupees:*

*Provided that if any person having incurred any such expenses not exceeding the amount of ten rupees without authority obtains within ten days from the date on which such expenses were incurred the approval in writing of the candidate, he shall be deemed to have incurred such expenses with the authority of the candidate.*

**Simple Explanation: Whoever, without the written general or special authority of a candidate, incurs or authorizes expenses for holding a public meeting, advertisements, circulars, publications, or any other activity to promote or procure the election of the candidate, shall be punished with a fine that may extend to ten thousand rupees. However, if a person incurs such expenses not exceeding ten rupees without authority and obtains written approval from the candidate within ten days, they shall be deemed to have incurred the expenses with the candidate's authority.**

*Section 177:*

*Whoever being required by any law for the time being in force or any rule having the force of law to keep accounts of expenses incurred at or in connection with an election fails to keep such accounts shall be punished with fine which may extend to five thousand rupees.*

**Simple Explanation: Whoever, being required by any law or rule having the force of law to keep accounts of expenses incurred at or in connection with an election, fails to keep such accounts, shall be punished with a fine that may extend to five thousand rupees.**

*Section 178:*

*Whoever counterfeits, or knowingly performs any part of the process of counterfeiting, any coin, stamp issued by Government for the purpose of revenue, currency-note or bank-note, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

*Explanation*

*For the purposes of this Chapter, -*

**(1)** the expression "bank-note" means a promissory note or engagement for the payment of money to bearer on demand issued by any person carrying on the business of banking in any part of the world, or issued by or under the authority of any State or Sovereign Power, and intended to be used as equivalent to, or as a substitute for money;

**(2)** "coin" shall have the same meaning as assigned to it in section 2 of the Coinage Act, 2011 and includes metal used for the time being as money and is stamped and issued by or under the authority of any State or Sovereign Power intended to be so used;

**(3)** a person commits the offence of "counterfeiting Government stamp" who counterfeits by causing a genuine stamp of one denomination to appear like a genuine stamp of a different denomination;

**(4)** a person commits the offence of counterfeiting coin who intending to practise deception, or knowing it to be likely that deception will thereby be practised, causes a genuine coin to appear like a different coin; and

**(5)** the offence of "counterfeiting coin" includes diminishing the weight or alteration of the composition, or alteration of the appearance of the coin.

**Simple Explanation:** Whoever counterfeits, or knowingly performs any part of the process of counterfeiting, any coin, stamp issued by the Government for revenue purposes, currency-note, or bank-note, shall be punished with imprisonment for life, or with imprisonment of either description for a term that may extend to ten years, and shall also be liable to a fine.

**Explanation:**

- **Bank-note:** A promissory note or engagement for the payment of money to the bearer on demand, issued by any person carrying out banking business or by or under the authority of any State or Sovereign Power, intended to be used as a substitute for money.
- **Coin:** As defined in section 2 of the Coinage Act, 2011, and includes metal used as money that is stamped and issued by or under the authority of any State or Sovereign Power.
- **Counterfeiting Government Stamp:** The act of counterfeiting a genuine stamp of one denomination to appear like a stamp of a different denomination.
- **Counterfeiting Coin:** Includes causing a genuine coin to appear like a different coin, diminishing the weight, altering the composition, or changing the appearance of the coin, with the intention to deceive.

*Section 179:*

*Whoever imports or exports, or sells or delivers to, or buys or receives from, any other person, or otherwise traffics or uses as genuine, any forged or counterfeit coin, stamp, currency-note or bank-note, knowing or having reason to believe the same to be forged or counterfeit, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation:** Whoever imports, exports, sells, delivers to, buys, receives from, or otherwise traffics or uses as genuine, any forged or counterfeit coin, stamp, currency-note, or bank-note, knowing or having reason to believe that the item is forged or counterfeit, shall be punished with imprisonment for life, or with imprisonment of either description for a term that may extend to ten years, and shall also be liable to a fine.

*Section 180:*

*Whoever has in his possession any forged or counterfeit coin, stamp, currency-note or bank-note, knowing or having reason to believe the same to be forged or counterfeit and intending to use the same as genuine or that it may be used as genuine, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.*

*Explanation. - If a person establishes the possession of the forged or counterfeit coin, stamp, currency-note or bank-note to be from a lawful source, it shall not constitute an offence under this section.*

**Simple Explanation:** Whoever has in his possession any forged or counterfeit coin, stamp, currency-note, or bank-note, knowing or having reason to believe that the item is forged or counterfeit, and intending to use it as genuine or that it may be used as genuine, shall be punished with imprisonment of either description for a term that may extend to seven years, or with fine, or with both.

**Explanation:** If a person can establish that the forged or counterfeit coin, stamp, currency-note, or bank-note was obtained from a lawful source, it shall not constitute an offence under this section.

*Section 181:*

*Whoever makes or mends, or performs any part of the process of making or mending, or buys or sells or disposes of, or has in his possession, any machinery, die, or instrument or material for the purpose of being used, or knowing or having reason to believe that it is intended to be used, for forging or counterfeiting any coin, stamp issued by Government for the purpose of revenue, currency-note or bank-note, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation:** Whoever makes or mends, or performs any part of the process of making or mending, or buys, sells, disposes of, or has in his possession any machinery, die, instrument, or material with the purpose of using it, or knowing or having reason to believe that it is intended to be used for forging or counterfeiting any coin, stamp issued by the Government for the purpose of revenue, currency-note, or bank-note, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

#### Section 182:

*(1) Whoever makes, or causes to be made, or uses for any purpose whatsoever, or delivers to any person, any document purporting to be, or in any way resembling, or so nearly resembling as to be calculated to deceive, any currency-note or bank-note shall be punished with fine which may extend to three hundred rupees.*

*(2) If any person, whose name appears on a document the making of which is an offence under sub-section (1), refuses, without lawful excuse, to disclose to a police officer on being so required the name and address of the person by whom it was printed or otherwise made, he shall be punished with fine which may extend to six hundred rupees.*

*(3) Where the name of any person appears on any document in respect of which any person is charged with an offence under sub-section (1) or on any other document used or distributed in connection with that document it may, until the contrary is proved, be presumed that the person caused the document to be made.*

**Simple Explanation:** This section deals with the illegal creation, use, or distribution of fake currency notes or bank notes.

- 1. Making or Using Fake Currency:** If someone creates or uses a document that looks like a currency note or banknote with the intention to deceive, they can be fined up to 300 rupees.
- 2. Failure to Disclose Information:** If the name of a person appears on a fake currency document and they refuse to tell the police who made it (without a valid reason), they can be fined up to 600 rupees.
- 3. Presumption of Guilt:** If a person's name appears on a fake document, it will be assumed that they were involved in making the document, unless proven otherwise.

#### Section 183:

*Whoever, fraudulently or with intent to cause loss to the Government, removes or effaces from any substance, bearing any stamp issued by Government for the purpose of revenue, any writing or document for which such stamp has been used, or removes from any writing or document a stamp which has been used for such writing or document, in order that such stamp may be used for a different writing or document, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.*

**Simple Explanation:** If someone fraudulently removes or alters a government stamp from any document to either erase it or reuse it on another document (to cause a loss to the government), they can be punished. The punishment could include imprisonment for up to three years, a fine, or both. The purpose of this law is to prevent misuse or fraudulent use of government stamps meant for revenue purposes.

#### Section 184:

*Whoever, fraudulently or with intent to cause loss to the Government, uses for any purpose a stamp issued by Government for the purpose of revenue, which he knows to have been before used, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation:** This section addresses the fraudulent use of a previously used government stamp. If someone knowingly uses a stamp that has already been used, with the intent to cause a loss to the government, they can face



**punishment. The penalty includes imprisonment for up to two years, a fine, or both. The law aims to prevent the reuse of government stamps for dishonest purposes.**

*Section 185:*

*Whoever, fraudulently or with intent to cause loss to Government, erases or removes from a stamp issued by Government for the purpose of revenue, any mark, put or impressed upon such stamp for the purpose of denoting that the same has been used, or knowingly has in his possession or sells or disposes of any such stamp from which such mark has been erased or removed, or sells or disposes of any such stamp which he knows to have been used, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.*

**Simple Explanation:** This section deals with the crime of tampering with government revenue stamps. If someone fraudulently erases or removes a mark from a stamp that shows it has been used, or possesses, sells, or disposes of such tampered stamps, they can face severe punishment. The punishment includes imprisonment for up to three years, a fine, or both. This law is meant to prevent the illegal reuse or sale of stamps that should no longer be in circulation.

*Section 186:*

*(1) Whoever -*

*(a) makes, knowingly utters, deals in or sells any fictitious stamp, or knowingly uses for any postal purpose any fictitious stamp; or*

*(b) has in his possession, without lawful excuse, any fictitious stamp; or*

*(c) makes or, without lawful excuse, has in his possession any die, plate, instrument or materials for making any fictitious stamp,*

*shall be punished with fine which may extend to two hundred rupees.*

*(2) Any such stamp, die, plate, instrument or materials in the possession of any person for making any fictitious stamp may be seized and, if seized shall be forfeited.*

*(3) In this section "fictitious stamp" means any stamp falsely purporting to be issued by Government for the purpose of denoting a rate of postage, or any facsimile or imitation or representation, whether on paper or otherwise, of any stamp issued by Government for that purpose.*

*(4) In this section and also in sections 178 to 181 (both inclusive), and sections 183 to 185 (both inclusive) the word "Government", when used in connection with, or in reference to any stamp issued for the purpose of denoting a rate of postage, shall, notwithstanding anything in clause (12) of section 2, be deemed to include the person or persons authorised by law to administer executive Government in any part of India or in any foreign country.*

**Simple Explanation:** This section addresses the crime of dealing with fictitious government stamps.

- 1. Offenses:** It is illegal to make, sell, use, or possess a fictitious stamp (one that falsely claims to be issued by the government for postal purposes). It is also a crime to possess any materials (like dies or plates) used to create such stamps without a valid reason. The punishment for these offenses can include a fine of up to 200 rupees.
- 2. Seizure:** Any fictitious stamps or materials used to make them can be seized by authorities and forfeited.
- 3. Definition of Fictitious Stamp:** A "fictitious stamp" is any stamp that falsely claims to be issued by the government for postal rates or any imitation of such stamps.
- 4. Meaning of "Government":** In this context, the term "Government" refers to the person or authority responsible for administering postal services, whether in India or abroad.

*Section 187:*

*Whoever, being employed in any mint lawfully established in India, does any act, or omits what he is legally bound to do, with the intention of causing any coin issued from that mint to be of a different weight or composition from the weight or*

*composition fixed by law, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

**Simple Explanation:** This section deals with the crime of tampering with coins at a government mint in India. If an employee at a mint intentionally alters the weight or composition of coins, or fails to perform their legal duties, in a way that causes the coin to differ from the lawfully fixed standards, they can face severe punishment. The penalty includes imprisonment for up to seven years and a fine. The law aims to maintain the integrity and value of currency produced by the government.

#### *Section 188:*

*Whoever, without lawful authority, takes out of any mint, lawfully established in India, any coining tool or instrument, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

**Simple Explanation:** This section addresses the illegal removal of coining tools from a government mint in India. If someone takes any tool or instrument used for making coins out of the mint without lawful authority, they can be punished with imprisonment for up to seven years, along with a fine. The law is intended to prevent unauthorized access to minting equipment and protect the integrity of the country's currency production.

#### *Section 189:*

*(1) An assembly of five or more persons is designated an "unlawful assembly", if the common object of the persons composing that assembly is-*

- *(a) to overawe by criminal force, or show of criminal force, the Central Government or any State Government or Parliament or the Legislature of any State, or any public servant in the exercise of the lawful power of such public servant; or*
- *(b) to resist the execution of any law, or of any legal process; or*
- *(c) to commit any mischief or criminal trespass, or other offence; or*
- *(d) by means of criminal force, or show of criminal force, to any person, to take or obtain possession of any property, or to deprive any person of the enjoyment of a right of way, or of the use of water or other incorporeal right of which he is in possession or enjoyment, or to enforce any right or supposed right; or*
- *(e) by means of criminal force, or show of criminal force, to compel any person to do what he is not legally bound to do, or to omit to do what he is legally entitled to do.*

*Explanation. - An assembly which was not unlawful when it assembled, may subsequently become an unlawful assembly.*

*(2) Whoever, being aware of facts which render any assembly an unlawful assembly, intentionally joins that assembly, or continues in it, is said to be a member of an unlawful assembly and such member shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.*

*(3) Whoever joins or continues in an unlawful assembly, knowing that such unlawful assembly has been commanded in the manner prescribed by law to disperse, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

*(4) Whoever, being armed with any deadly weapon, or with anything which, used as a weapon of offence, is likely to cause death, is a member of an unlawful assembly, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

*(5) Whoever knowingly joins or continues in any assembly of five or more persons likely to cause a disturbance of the public peace, after such assembly has been lawfully commanded to disperse, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.*

*Explanation. - If the assembly is an unlawful assembly within the meaning of sub-section (1), the offender shall be punishable under sub-section (3).*

*(6) Whoever hires or engages, or employs, or promotes, or connives at the hiring, engagement or employment of any person to join or become a member of any unlawful assembly, shall be punishable as a member of such unlawful assembly, and for any offence which may be committed by any such person as a member of such unlawful assembly in pursuance of such hiring, engagement or employment, in the same manner as if he had been a member of such unlawful assembly, or himself had committed such offence.*

*(7) Whoever harbours, receives or assembles, in any house or premises in his occupation or charge, or under his control any persons knowing that such persons have been hired, engaged or employed, or are about to be hired, engaged or employed, to join or become members of an unlawful assembly, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.*

*(8) Whoever is engaged, or hired, or offers or attempts to be hired or engaged, to do or assist in doing any of the acts specified in sub-section (1), shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.*

*(9) Whoever, being so engaged or hired as referred to in sub-section (8), goes armed, or engages or offers to go armed, with any deadly weapon or with anything which used as a weapon of offence is likely to cause death, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation:** This section defines and punishes unlawful assemblies, which are gatherings of five or more persons with specific criminal intentions, such as attempting to overawe the government, resisting legal processes, committing crimes like mischief or trespassing, or using force to obtain property or rights. It also covers situations where individuals join or continue in such assemblies knowingly, especially after being ordered to disperse by law. Punishments include imprisonment, fines, or both, with stricter penalties for those who join armed with deadly weapons or for those who hire or harbor people to participate in unlawful assemblies. Additionally, anyone hired to commit illegal acts as part of such an assembly can face similar penalties, with higher punishments for those carrying weapons likely to cause death.

#### Section 190:

*If an offence is committed by any member of an unlawful assembly in prosecution of the common object of that assembly, or such as the members of that assembly knew to be likely to be committed in prosecution of that object, every person who, at the time of the committing of that offence, is a member of the same assembly, is guilty of that offence.*

**Simple Explanation:** This section holds all members of an unlawful assembly responsible for any offense committed by one of its members in pursuit of the group's common objective. If the crime committed is something that the members knew was likely to happen while working towards their goal, then every person in that assembly at the time of the offense is considered guilty of the crime, even if they did not directly commit it.

#### Section 191:

*(1) Whenever force or violence is used by an unlawful assembly, or by any member thereof, in prosecution of the common object of such assembly, every member of such assembly is guilty of the offence of rioting.*

*(2) Whoever is guilty of rioting, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

*(3) Whoever is guilty of rioting, being armed with a deadly weapon or with anything which, used as a weapon of offence, is likely to cause death, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both.*

**Simple Explanation:** This section deals with the crime of rioting. If force or violence is used by any member of an unlawful assembly to carry out its common objective, all members of the assembly are guilty of rioting. Those found guilty of rioting can be punished with imprisonment for up to two years, a fine, or both. If the person is armed with a deadly weapon or something that could cause death, the punishment is more severe, with imprisonment extending up to five years, along with a fine or both.

#### Section 192:

*Whoever malignantly, or wantonly by doing anything which is illegal, gives provocation to any person intending or knowing it to be likely that such provocation will cause the offence of rioting to be committed, shall, if the offence of rioting be committed in consequence of such provocation, be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both; and if the offence of rioting be not committed, with imprisonment of either description for a term which may extend to six months, or with fine, or with both.*

**Simple Explanation:** This section addresses the act of giving provocation with the intent to incite a riot. If someone intentionally provokes another person in a way that is likely to cause a riot, and a riot does occur as a result, they can be punished with imprisonment for up to one year, a fine, or both. However, if the riot does not take place, the punishment is less severe, with imprisonment for up to six months, a fine, or both. This law aims to prevent actions that deliberately provoke others to commit unlawful acts.

#### Section 193:

*(1) Whenever any unlawful assembly or riot takes place, the owner or occupier of the land upon which such unlawful assembly is held, or such riot is committed, and any person having or claiming an interest in such land, shall be punishable with fine not exceeding one thousand rupees, if he or his agent or manager, knowing that such offence is being or has been committed, or having reason to believe it is likely to be committed, do not give the earliest notice thereof in his or their power to the officer in charge at the nearest police station, and do not, in the case of his or their having reason to believe that it was about to be committed, use all lawful means in his or their power to prevent it and, in the event of its taking place, do not use all lawful means in his or their power to disperse or suppress the riot or unlawful assembly.*

*(2) Whenever a riot is committed for the benefit or on behalf of any person who is the owner or occupier of any land respecting which such riot takes place or who claims any interest in such land, or in the subject of any dispute which gave rise to the riot, or who has accepted or derived any benefit therefrom, such person shall be punishable with fine, if he or his agent or manager, having reason to believe that such riot was likely to be committed or that the unlawful assembly by which such riot was committed was likely to be held, shall not respectively use all lawful means in his or their power to prevent such assembly or riot from taking place, and for suppressing and dispersing the same.*

*(3) Whenever a riot is committed for the benefit or on behalf of any person who is the owner or occupier of any land respecting which such riot takes place, or who claims any interest in such land, or in the subject of any dispute which gave rise to the riot, or who has accepted or derived any benefit therefrom, the agent or manager of such person shall be punishable with fine, if such agent or manager, having reason to believe that such riot was likely to be committed, or that the unlawful assembly by which such riot was committed was likely to be held, shall not use all lawful means in his power to prevent such riot or assembly from taking place and for suppressing and dispersing the same.*

**Simple Explanation:** This section holds the owner or occupier of land, as well as any person claiming an interest in that land, responsible for failing to prevent or stop an unlawful assembly or riot. If they, or their agent/manager, knowingly fail to notify the police or take necessary measures to prevent or suppress the riot, they may face a fine of up to one thousand rupees. Additionally, if the riot benefits the owner or occupier of the land, or someone with a vested interest in it, they or their agent/manager may be fined for not taking all lawful actions to prevent or address the riot. The law emphasizes proactive measures to control and prevent disturbances on one's property.

#### Section 194:

*(1) When two or more persons, by fighting in a public place, disturb the public peace, they are said to commit an affray.*

*(2) Whoever commits an affray, shall be punished with imprisonment of either description for a term which may extend to one month, or with fine which may extend to one thousand rupees, or with both.*

**Simple Explanation:** An affray occurs when two or more people fight in a public place, disturbing the public peace. The punishment for committing an affray includes imprisonment for up to one month, a fine of up to one thousand rupees, or both.

#### Section 195:

*(1) Whoever -*

*(a) by words, either spoken or written, or by signs or by visible representations or through electronic communication or otherwise, promotes or attempts to promote, on grounds of religion, race, place of birth, residence, language, caste or community or any other ground whatsoever, disharmony or feelings of enmity, hatred or ill-will between different religious, racial, language or regional groups or castes or communities; or*

*(b) commits any act which is prejudicial to the maintenance of harmony between different religious, racial, language or regional groups or castes or communities, and which disturbs or is likely to disturb the public tranquillity; or*

*(c) organises any exercise, movement, drill or other similar activity intending that the participants in such activity shall use or be trained to use criminal force or violence or knowing it to be likely that the participants in such activity will use or be trained to use criminal force or violence, or participates in such activity intending to use or be trained to use criminal force or violence or knowing it to be likely that the participants in such activity will use or be trained to use criminal force or violence, against any religious, racial, language or regional group or caste or community and such activity for any reason whatsoever causes or is likely to cause fear or alarm or a feeling of insecurity amongst members of such religious, racial, language or regional group or caste or community,*

*shall be punished with imprisonment which may extend to three years, or with fine, or with both.*

*(2) Whoever commits an offence specified in sub-section (1) in any place of worship or in any assembly engaged in the performance of religious worship or religious ceremonies, shall be punished with imprisonment which may extend to five years and shall also be liable to fine.*

**Simple Explanation: Anyone who, through words, signs, visible representations, electronic communication, or other means, promotes or attempts to promote disharmony or feelings of enmity, hatred, or ill-will between different groups based on religion, race, language, caste, or community, or commits acts that disturb public tranquility and harmony, will be punished with imprisonment for up to three years, a fine, or both. If the offense occurs in a place of worship or during religious ceremonies, the punishment can extend to five years of imprisonment along with a fine. Additionally, organizing or participating in any activity intending or likely to use criminal force or violence against any group is also punishable under this section.**

Section 197:

*(1) Whoever, by words either spoken or written or by signs or by visible representations or through electronic communication or otherwise, -*

*(a) makes or publishes any imputation that any class of persons can not, by reason of their being members of any religious, racial, language or regional group or caste or community, bear true faith and allegiance to the Constitution of India as by law established or uphold the sovereignty and integrity of India; or*

*(b) asserts, counsels, advises, propagates or publishes that any class of persons shall, by reason of their being members of any religious, racial, language or regional group or caste or community, be denied, or deprived of their rights as citizens of India; or*

*(c) makes or publishes any assertion, counsel, plea or appeal concerning the obligation of any class of persons, by reason of their being members of any religious, racial, language or regional group or caste or community, and such assertion, counsel, plea or appeal causes or is likely to cause disharmony or feelings of enmity or hatred or ill-will between such members and other persons; or*

*(d) makes or publishes false or misleading information, jeopardising the sovereignty, unity and integrity or security of India, shall be punished with imprisonment which may extend to three years, or with fine, or with both.*

*(2) Whoever commits an offence specified in sub-section (1) in any place of worship or in any assembly engaged in the performance of religious worship or religious ceremonies, shall be punished with imprisonment which may extend to five years and shall also be liable to fine.*

**Simple Explanation: Anyone who, through words, signs, visible representations, electronic communication, or otherwise:**

- **Makes or publishes an imputation that any group of people, based on their religion, race, language, caste, or community, cannot be loyal to the Constitution of India or uphold its sovereignty and integrity,**
- **Propagates or asserts that any group should be denied or deprived of their rights as Indian citizens,**

- **Makes statements that cause or are likely to cause disharmony, hatred, or ill-will between groups, or**
- **Publishes false or misleading information that threatens the sovereignty, unity, or integrity of India,**

**will be punished with imprisonment for up to three years, a fine, or both. If the offense occurs in a place of worship or during religious ceremonies, the punishment may extend to five years of imprisonment along with a fine.**

#### *Section 198:*

*Whoever, being a public servant, knowingly disobeys any direction of the law as to the way in which he is to conduct himself as such public servant, intending to cause, or knowing it to be likely that he will by such disobedience, cause injury to any person, shall be punished with simple imprisonment for a term which may extend to one year, or with fine, or with both.*

*Illustration: A, being an officer directed by law to take property in execution, in order to satisfy a decree pronounced in Z's favour by a Court, knowingly disobeys that direction of law, with the knowledge that he is likely thereby to cause injury to Z. A has committed the offence defined in this section.*

**Simple Explanation: A public servant who knowingly disobeys any lawful direction regarding their conduct, with the intent to cause harm or knowing that their disobedience is likely to cause harm to any person, can be punished with simple imprisonment for up to one year, a fine, or both.**

**Illustration: If Officer A, who is directed by law to seize property in execution of a court decree in favor of Z, knowingly disregards the direction, aware that this could cause harm to Z, then A has committed this offense.**

#### *Section 199:*

*Whoever, being a public servant, -*

*(a) knowingly disobeys any direction of the law which prohibits him from requiring the attendance at any place of any person for the purpose of investigation into an offence or any other matter; or*

*(b) knowingly disobeys, to the prejudice of any person, any other direction of the law regulating the manner in which he shall conduct such investigation; or*

*(c) fails to record any information given to him under sub-section (1) of section 173 of the Bharatiya Nagarik Suraksha Sanhita, 2023 in relation to cognizable offence punishable under section 64, section 65, section 66, section 67, section 68, section 70, section 71, section 74, section 76, section 77, section 79, section 124, section 143 or section 144,*

*shall be punished with rigorous imprisonment for a term which shall not be less than six months but which may extend to two years, and shall also be liable to fine.*

**Simple Explanation: A public servant who:**

**(a) knowingly disobeys any law that prohibits requiring the attendance of any person for investigation into an offence or other matters,**

**(b) knowingly disobeys any law regulating how they should conduct an investigation, to the detriment of any person, or**

**(c) fails to record information regarding a cognizable offence as specified under various sections of the Bharatiya Nagarik Suraksha Sanhita, 2023,**

**shall be punished with rigorous imprisonment for a term no less than six months, which may extend to two years, and will also be liable to a fine.**

#### *Section 200:*

*Whoever, being in charge of a hospital, public or private, whether run by the Central Government, the State Government, local bodies or any other person, contravenes the provisions of section 397 of the Bharatiya Nagarik Suraksha Sanhita, 2023, shall be punished with imprisonment for a term which may extend to one year, or with fine, or with both.*

**Simple Explanation:** Whoever, being in charge of a hospital (public or private), whether run by the Central Government, State Government, local bodies, or any other entity, contravenes the provisions of section 397 of the Bharatiya Nagarik Suraksha Sanhita, 2023, shall be punished with:

- **Imprisonment for a term which may extend to one year, or**
- **A fine, or**
- **Both.**

*Section 201:*

*Whoever, being a public servant, and being, as such public servant, charged with the preparation or translation of any document or electronic record, frames, prepares or translates that document or electronic record in a manner which he knows or believes to be incorrect, intending thereby to cause or knowing it to be likely that he may thereby cause injury to any person, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.*

**Simple Explanation:** Whoever, being a public servant charged with the preparation or translation of any document or electronic record, frames, prepares, or translates that document or electronic record in a manner which he knows or believes to be incorrect, intending to cause or knowing it to be likely that it may cause injury to any person, shall be punished with:

- **Imprisonment of either description for a term which may extend to three years, or**
- **A fine, or**
- **Both.**

*Section 202:*

*Whoever, being a public servant, and being legally bound as such public servant not to engage in trade, engages in trade, shall be punished with simple imprisonment for a term which may extend to one year, or with fine, or with both or with community service.*

**Simple Explanation:** Whoever, being a public servant and legally bound not to engage in trade, engages in trade, shall be punished with:

- **Simple imprisonment for a term which may extend to one year, or**
- **A fine, or**
- **Both, or**
- **Community service.**

*Section 203:*

*Whoever, being a public servant, and being legally bound as such public servant, not to purchase or bid for certain property, purchases or bids for that property, either in his own name or in the name of another, or jointly, or in shares with others, shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both; and the property, if purchased, shall be confiscated.*

**Simple Explanation:** Whoever, being a public servant and legally bound not to purchase or bid for certain property, purchases or bids for that property, either in his own name or in the name of another, or jointly or in shares with others, shall be punished with: Simple imprisonment for a term which may extend to two years, or, A fine, or, Both.

*Section 204:*

*Whoever pretends to hold any particular office as a public servant, knowing that he does not hold such office or falsely personates any other person holding such office, and in such assumed character does or attempts to do any act under colour of such office, shall be punished with imprisonment of either description for a term which shall not be less than six months but which may extend to three years and with fine.*

**Simple Explanation:** Whoever pretends to hold a particular office as a public servant, knowing that they do not hold such office, or falsely personates another person holding such office, and in such assumed character does or attempts to do any act under the color of such office, shall be punished with: Imprisonment of either description for a term which shall not be less than six months but may extend to three years, and A fine.

*Section 205:*

*Whoever, not belonging to a certain class of public servants, wears any garb or carries any token resembling any garb or token used by that class of public servants, with the intention that it may be believed, or with the knowledge that it is likely to be believed, that he belongs to that class of public servants, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation:** Whoever, not belonging to a certain class of public servants, wears any garb or carries any token resembling any garb or token used by that class of public servants, with the intention that it may be believed, or with the knowledge that it is likely to be believed, that they belong to that class of public servants, shall be punished with:

- Imprisonment of either description for a term which may extend to three months, or
- A fine which may extend to five thousand rupees, or
- Both.

*Section 206:*

*Whoever absconds in order to avoid being served with a summons, notice or order proceeding from any public servant legally competent, as such public servant, to issue such summons, notice or order, --*

- *shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five thousand rupees, or with both;*
- *where such summons or notice or order is to attend in person or by agent, or to produce a document or an electronic record in a Court shall be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to ten thousand rupees, or with both.*

**Simple Explanation:** Whoever absconds to avoid being served with a summons, notice, or order from a legally competent public servant:

**(a) Shall be punished with simple imprisonment for up to one month, or fine up to five thousand rupees, or both.**

**(b) If the summons, notice, or order requires personal attendance, representation by an agent, or production of a document or electronic record in a court, the punishment shall be simple imprisonment for up to six months, or fine up to ten thousand rupees, or both.**

*Section 207:*

*Whoever in any manner intentionally prevents the serving on himself, or on any other person, of any summons, notice or order proceeding from any public servant legally competent, as such public servant, to issue such summons, notice or order, or intentionally prevents the lawful affixing to any place of any such summons, notice or order or intentionally removes any such summons, notice or order from any place to which it is lawfully affixed or intentionally prevents the lawful making of any proclamation, under the authority of any public servant legally competent, as such public servant, to direct such proclamation to be made,--*

*(a) shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five thousand rupees, or with both;*

*(b) where the summons, notice, order or proclamation is to attend in person or by agent, or to produce a document or electronic record in a Court, with simple imprisonment for a term which may extend to six months, or with fine which may extend to ten thousand rupees, or with both.*



**Simple Explanation:** Whoever intentionally prevents the serving of a summons, notice, or order on themselves or another person, or obstructs its lawful affixing, removal, or proclamation under the authority of a legally competent public servant:

**(a) Shall be punished with simple imprisonment for up to one month, or fine up to five thousand rupees, or both.**

**(b) If the summons, notice, order, or proclamation requires personal attendance, representation by an agent, or production of a document or electronic record in a court, the punishment shall be simple imprisonment for up to six months, or fine up to ten thousand rupees, or both.**

*Section 208:*

*Whoever, being legally bound to attend in person or by an agent at a certain place and time in obedience to a summons, notice, order, or proclamation proceeding from any public servant legally competent, as such public servant, to issue the same, intentionally omits to attend at that place or time or departs from the place where he is bound to attend before the time at which it is lawful for him to depart,--*

*(a) shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five thousand rupees, or with both;*

*(b) where the summons, notice, order or proclamation is to attend in person or by agent in a Court with simple imprisonment for a term which may extend to six months, or with fine which may extend to ten thousand rupees, or with both.*

*Illustrations*

*(a) A, being legally bound to appear before a High Court, in obedience to a subpoena issuing from that Court, intentionally omits to appear. A has committed the offence defined in this section.*

*(b) A, being legally bound to appear before a District Judge, as a witness, in obedience to a summons issued by that District Judge intentionally omits to appear. A has committed the offence defined in this section.*

**Simple Explanation:** If a person is legally required to attend a certain place at a specific time, either in person or through an agent, as per a summons, notice, order, or proclamation issued by a legally authorized public servant, but they intentionally fail to attend or leave the place before they are allowed to, they can be punished.

**(a) The punishment can be simple imprisonment for up to one month, or a fine up to ₹5,000, or both.**

**(b) If the requirement is to appear in a court, the punishment can be simple imprisonment for up to six months, or a fine up to ₹10,000, or both.**

**For example, if a person is ordered by a High Court or a District Judge to appear as a witness but deliberately does not show up, they are committing an offence under this law.**

*Section 209:*

*Whoever fails to appear at the specified place and the specified time as required by a proclamation published under sub-section (1) of section 84 of the Bharatiya Nagarik Suraksha Sanhita, 2023, shall be punished with:*

- *Imprisonment for a term which may extend to three years,*
- *Or with fine,*
- *Or with both,*
- *Or with community service,*

*And where a declaration has been made under sub-section (4) of that section pronouncing him as a proclaimed offender, he shall be punished with:*

- *Imprisonment for a term which may extend to seven years*
- *And shall also be liable to fine.*

**Simple Explanation:** If a person does not appear at the specified place and time as required by a proclamation issued under Section 84(1) of the Bharatiya Nagarik Suraksha Sanhita, 2023, they may face imprisonment for up to three years, or a fine, or both, or be required to perform community service. However, if they are declared a proclaimed offender under Section 84(4), the punishment increases to imprisonment for up to seven years along with a fine.

*Section 210:*

*Whoever, being legally bound to produce or deliver up any document or electronic record to any public servant, as such, intentionally omits so to produce or deliver up the same, --*

*(a) shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five thousand rupees, or with both;*

*(b) and where the document or electronic record is to be produced or delivered up to a Court with simple imprisonment for a term which may extend to six months, or with fine which may extend to ten thousand rupees, or with both.*

*Illustration*

*A, being legally bound to produce a document before a District Court, intentionally omits to produce the same. A has committed the offence defined in this section.*

**Simple Explanation:** If a person is legally required to produce or hand over a document or electronic record to a public servant and intentionally fails to do so, they may be punished with imprisonment of up to one month, or a fine of up to five thousand rupees, or both. However, if the document or record is to be submitted to a Court, the punishment increases to imprisonment of up to six months, or a fine of up to ten thousand rupees, or both. For example, if someone is legally bound to present a document before a District Court but deliberately does not do so, they commit an offence under this section.

*Section 211:*

*Whoever, being legally bound to give any notice or to furnish information on any subject to any public servant, as such, intentionally omits to give such notice or to furnish such information in the manner and at the time required by law, --*

*(a) shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five thousand rupees, or with both;*

*(b) where the notice or information required to be given respects the commission of an offence, or is required for the purpose of preventing the commission of an offence, or in order to the apprehension of an offender, with simple imprisonment for a term which may extend to six months, or with fine which may extend to ten thousand rupees, or with both;*

*(c) where the notice or information required to be given is required by an order passed under section 394 of the Bharatiya Nagarik Suraksha Sanhita, 2023 with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.*

**Simple Explanation:** If a person is legally required to provide notice or information to a public servant but intentionally fails to do so in the manner and time required by law, they may face imprisonment of up to one month, a fine of up to five thousand rupees, or both. If the information relates to the commission of a crime, the prevention of a crime, or the capture of an offender, the punishment increases to imprisonment of up to six months, a fine of up to ten thousand rupees, or both. Additionally, if the notice or information is required under an order issued under Section 394 of the Bharatiya Nagarik Suraksha Sanhita, 2023, the offender may be punished with imprisonment of up to six months, a fine of up to one thousand rupees, or both.

*Section 212:*

*Whoever, being legally bound to furnish information on any subject to any public servant, as such, furnishes, as true, information on the subject which he knows or has reason to believe to be false, --*

*(a) shall be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both;*

*(b) where the information which he is legally bound to give respects the commission of an offence, or is required for the purpose of preventing the commission of an offence, or in order to the apprehension of an offender, with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

#### **Illustrations**

*(a) A, a landholder, knowing of the commission of a murder within the limits of his estate, wilfully misinforms the Magistrate of the district that the death has occurred by accident in consequence of the bite of a snake. A is guilty of the offence defined in this section.*

*(b) A, a village watchman, knowing that a considerable body of strangers has passed through his village in order to commit a dacoity in the house of Z, a wealthy merchant residing in a neighbouring place, and being legally bound to give early and punctual information of the above fact to the officer of the nearest police station, wilfully misinforms the police officer that a body of suspicious characters passed through the village with a view to commit dacoity in a certain distant place in a different direction. Here A is guilty of the offence defined in this section.*

*Explanation: In section 211 and in this section the word "offence" includes any act committed at any place out of India, which, if committed in India, would be punishable under any of the following sections, namely, 103, 105, 307, sub-sections (2), (3) and (4) of section 309, sub-sections (2), (3), (4) and (5) of section 310, 311, 312, clauses (f) and (g) of section 326, sub-sections (4), (6), (7) and (8) of section 331, clauses (a) and (b) of section 332 and the word "offender" includes any person who is alleged to have been guilty of any such act.*

**Simple Explanation:** If a person is legally required to provide information to a public servant but knowingly gives false information, they can be punished with imprisonment of up to six months, a fine of up to five thousand rupees, or both. If the false information is related to a crime, its prevention, or the capture of an offender, the punishment increases to imprisonment of up to two years, a fine, or both. For example, if a landowner knows that a murder has happened on his estate but falsely informs the magistrate that the person died from a snake bite, he is guilty under this section. Similarly, if a village watchman knows that a group of criminals is planning a robbery but misleads the police about their actual destination, he is also guilty. The section also clarifies that crimes committed outside India, which would be punishable under certain laws if committed in India, are included within its scope.

#### **Section 213:**

*Whoever refuses to bind himself by an oath or affirmation to state the truth, when required so to bind himself by a public servant legally competent to require that he shall so bind himself, shall be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation:** If a person is legally required by a public servant to take an oath or make an affirmation to tell the truth but refuses to do so, they can be punished with simple imprisonment for up to six months, a fine of up to five thousand rupees, or both.

#### **Section 214:**

*Whoever, being legally bound to state the truth on any subject to any public servant, refuses to answer any question demanded of him touching that subject by such public servant in the exercise of the legal powers of such public servant, shall be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation:** If a person is legally required to tell the truth to a public servant but refuses to answer a question related to the matter when asked by the public servant in the exercise of their legal authority, they can be punished with simple imprisonment for up to six months, a fine of up to five thousand rupees, or both.

#### **Section 215:**

*Whoever refuses to sign any statement made by him, when required to sign that statement by a public servant legally competent to require that he shall sign that statement, shall be punished with simple imprisonment for a term which may extend to three months, or with fine which may extend to three thousand rupees, or with both.*

**Simple Explanation:** If a person refuses to sign a statement made by them when legally required to do so by a competent public servant, they can be punished with simple imprisonment for up to three months, a fine of up to three thousand rupees, or both.

**Section 216:**

*Whoever, being legally bound by an oath or affirmation to state the truth on any subject to any public servant or other person authorised by law to administer such oath or affirmation, makes, to such public servant or other person as aforesaid, touching that subject, any statement which is false, and which he either knows or believes to be false or does not believe to be true, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.*

**Simple Explanation:** If a person, who is legally bound by an oath or affirmation to tell the truth, makes a false statement to a public servant or any authorized person, knowing it to be false or not believing it to be true, they can be punished with imprisonment of up to three years and a fine.

**Section 217:**

*Whoever gives to any public servant any information which he knows or believes to be false, intending thereby to cause, or knowing it to be likely that he will thereby cause, such public servant -*

*(a) to do or omit anything which such public servant ought not to do or omit if the true state of facts respecting which such information is given were known by him; or*

*(b) to use the lawful power of such public servant to the injury or annoyance of any person,*

*shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to ten thousand rupees, or with both.*

**Illustrations**

*(a) A informs a Magistrate that Z, a police officer, subordinate to such Magistrate, has been guilty of neglect of duty or misconduct, knowing such information to be false, and knowing it to be likely that the information will cause the Magistrate to dismiss Z. A has committed the offence defined in this section.*

*(b) A falsely informs a public servant that Z has contraband salt in a secret place, knowing such information to be false, and knowing that it is likely that the consequence of the information will be a search of Z's premises, attended with annoyance to Z. A has committed the offence defined in this section.*

*(c) A falsely informs a policeman that he has been assaulted and robbed in the neighbourhood of a particular village. He does not mention the name of any person as one of his assailants, but knows it to be likely that in consequence of this information the police will make enquiries and institute searches in the village to the annoyance of the villagers or some of them. A has committed an offence under this section.*

**Simple Explanation:** If a person knowingly provides false information to a public servant with the intention of misleading them or causing harm or annoyance to someone, they can be punished with imprisonment for up to one year, a fine of up to ten thousand rupees, or both. This includes cases where false information leads a public servant to take an action they wouldn't have taken if they knew the truth or use their lawful power to harm or annoy someone.

**Section 218:**

*Whoever offers any resistance to the taking of any property by the lawful authority of any public servant, knowing or having reason to believe that he is such public servant, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to ten thousand rupees, or with both.*

**Simple Explanation:** If a person resists the lawful seizure of property by a public servant, knowing or having reason to believe that the person is a public servant, they can be punished with imprisonment for up to six months, a fine of up to ten thousand rupees, or both.

Section 219:

*Whoever intentionally obstructs any sale of property offered for sale by the lawful authority of any public servant, as such, shall be punished with imprisonment of either description for a term which may extend to one month, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation:** Anyone who intentionally obstructs the sale of property lawfully offered for sale by a public servant shall be punished with imprisonment for up to one month, a fine of up to five thousand rupees, or both.

Section 220:

*Whoever, at any sale of property held by the lawful authority of a public servant, as such, purchases or bids for any property on account of any person, whether himself or any other, whom he knows to be under a legal incapacity to purchase that property at that sale, or bids for such property not intending to perform the obligations under which he lays himself by such bidding, shall be punished with imprisonment of either description for a term which may extend to one month, or with fine which may extend to two hundred rupees, or with both.*

**Simple Explanation:** Whoever, at a sale of property held by the lawful authority of a public servant, bids or purchases on behalf of a person legally incapacitated from purchasing, or bids without intending to fulfill the obligations of the bid, shall be punished with imprisonment for up to one month, a fine of up to two hundred rupees, or both.

Section 221:

*Whoever voluntarily obstructs any public servant in the discharge of his public functions, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to two thousand and five hundred rupees, or with both.*

**Simple Explanation:** Whoever voluntarily obstructs a public servant in the discharge of his public functions shall be punished with imprisonment of up to three months, a fine of up to two thousand five hundred rupees, or both.

Section 222:

*Whoever, being bound by law to render or furnish assistance to any public servant in the execution of his public duty, intentionally omits to give such assistance, --*

*(a) shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to two thousand and five hundred rupees, or with both;*

*(b) and where such assistance be demanded of him by a public servant legally competent to make such demand for the purposes of executing any process lawfully issued by a Court or of preventing the commission of an offence, or suppressing a riot, or affray, or of apprehending a person charged with or guilty of an offence, or of having escaped from lawful custody, shall be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation:** Whoever is legally bound to assist a public servant in the execution of his duty but intentionally fails to do so shall be punished with simple imprisonment of up to one month, a fine of up to two thousand five hundred rupees, or both. If such assistance is demanded by a legally competent public servant for executing a court process, preventing an offence, suppressing a riot or affray, or apprehending an offender or an escaped prisoner, the punishment may extend to six months of simple imprisonment, a fine of up to five thousand rupees, or both.

Section 223:

*Whoever, knowing that, by an order promulgated by a public servant lawfully empowered to promulgate such order, he is directed to abstain from a certain act, or to take certain order with certain property in his possession or under his management, disobeys such direction, --*

*(a) shall, if such disobedience causes or tends to cause obstruction, annoyance or injury, or risk of obstruction, annoyance or injury, to any person lawfully employed, be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to two thousand and five hundred rupees, or with both;*

*(b) and where such disobedience causes or tends to cause danger to human life, health or safety, or causes or tends to cause a riot or affray, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to five thousand rupees, or with both.*

*Explanation. - It is not necessary that the offender should intend to produce harm, or contemplate his disobedience as likely to produce harm. It is sufficient that he knows of the order which he disobeys, and that his disobedience produces, or is likely to produce, harm.*

#### *Illustration*

*An order is promulgated by a public servant lawfully empowered to promulgate such order, directing that a religious procession shall not pass down a certain street. A knowingly disobeys the order, and thereby causes danger of riot. A has committed the offence defined in this section.*

**Simple Explanation: Whoever knowingly disobeys an order lawfully promulgated by a public servant, which directs them to abstain from a certain act or take certain action regarding property under their possession or management, shall be punished:**

**(a) If such disobedience causes or is likely to cause obstruction, annoyance, injury, or risk thereof to any lawfully employed person, with simple imprisonment of up to six months, a fine of up to two thousand five hundred rupees, or both.**

**(b) If such disobedience causes or is likely to cause danger to human life, health, or safety, or leads to a riot or affray, with imprisonment of either description for up to one year, a fine of up to five thousand rupees, or both.**

**Explanation: The offender need not intend to cause harm; it is sufficient that they are aware of the order and their disobedience results in or is likely to result in harm.**

#### **Illustration:**

**If a public servant lawfully prohibits a religious procession from passing through a certain street, but a person knowingly disobeys this order, causing a risk of riot, they are guilty of this offence.**

#### *Section 224:*

*Whoever holds out any threat of injury to any public servant, or to any person in whom he believes that public servant to be interested, for the purpose of inducing that public servant to do any act, or to forbear or delay to do any act, connected with the exercise of the public functions of such public servant, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation: Whoever threatens to cause injury to a public servant, or to any person they believe the public servant is interested in, with the intent to induce the public servant to act, refrain, or delay any action related to their public duties, shall be punished with imprisonment of either description for a term of up to two years, or with a fine, or with both.**

#### *Section 225:*

*Whoever holds out any threat of injury to any person for the purpose of inducing that person to refrain or desist from making a legal application for protection against any injury to any public servant legally empowered as such to give such protection, or to cause such protection to be given, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.*

**Simple Explanation:** Whoever threatens to cause injury to any person to induce them to refrain from or desist from making a legal application for protection against any injury to a public servant legally empowered to provide such protection, or to cause such protection to be given, shall be punished with imprisonment of either description for a term of up to one year, or with a fine, or with both.

*Section 226:*

*Whoever attempts to commit suicide with the intent to compel or restrain any public servant from discharging his official duty shall be punished with simple imprisonment for a term which may extend to one year, or with fine, or with both, or with community service.*

**Simple Explanation:** Whoever attempts to commit suicide with the intent to compel or restrain any public servant from discharging their official duty shall be punished with simple imprisonment for a term which may extend to one year, or with fine, or with both, or with community service.

*Section 227:*

*Whoever, being legally bound by an oath or by an express provision of law to state the truth, or being bound by law to make a declaration upon any subject, makes any statement which is false, and which he either knows or believes to be false or does not believe to be true, is said to give false evidence.*

*Explanation 1*

*A statement is within the meaning of this section, whether it is made verbally or otherwise.*

*Explanation 2*

*A false statement as to the belief of the person attesting is within the meaning of this section, and a person may be guilty of giving false evidence by stating that he believes a thing which he does not believe, as well as by stating that he knows a thing which he does not know.*

*Illustrations*

*(a) A, in support of a just claim which B has against Z for one thousand rupees, falsely swears on a trial that he heard Z admit the justice of B's claim. A has given false evidence.*

*(b) A, being bound by an oath to state the truth, states that he believes a certain signature to be the handwriting of Z, when he does not believe it to be the handwriting of Z. Here A states that which he knows to be false, and therefore gives false evidence.*

*(c) A, knowing the general character of Z's handwriting, states that he believes a certain signature to be the handwriting of Z; A in good faith believing it to be so. Here A's statement is merely as to his belief, and is true as to his belief, and therefore, although the signature may not be the handwriting of Z, A has not given false evidence.*

*(d) A, being bound by an oath to state the truth, states that he knows that Z was at a particular place on a particular day, not knowing anything upon the subject. A gives false evidence whether Z was at that place on the day named or not.*

*(e) A, an interpreter or translator, gives or certifies as a true interpretation or translation of a statement or document which he is bound by oath to interpret or translate truly, that which is not and which he does not believe to be a true interpretation or translation. A has given false evidence.*

**Simple Explanation:** Whoever, being legally bound by an oath or an express provision of law to state the truth or make a declaration, makes any false statement that they either know or believe to be false or do not believe to be true, is said to give false evidence. This applies whether the statement is made verbally or otherwise. A false statement about one's belief is also considered false evidence. For example, if a person falsely swears in court that they heard someone admit to a claim, they have given false evidence. Similarly, if someone under oath states that a signature belongs to a particular person while knowing it does not, they are guilty of false evidence. However, if a person, in good faith, states their belief about handwriting based on their knowledge and experience, they are not guilty, even if their belief is incorrect. Additionally, if a person, under oath, asserts knowledge of an event without

**actually knowing about it, they are guilty of false evidence, regardless of whether their statement is true. This also applies to interpreters or translators who knowingly provide false interpretations while under oath.**

*Section 228:*

*Whoever causes any circumstance to exist or makes any false entry in any book or record, or electronic record or makes any document or electronic record containing a false statement, intending that such circumstance, false entry or false statement may appear in evidence in a judicial proceeding, or in a proceeding taken by law before a public servant as such, or before an arbitrator, and that such circumstance, false entry or false statement, so appearing in evidence, may cause any person who in such proceeding is to form an opinion upon the evidence, to entertain an erroneous opinion touching any point material to the result of such proceeding is said "to fabricate false evidence".*

*Illustrations*

*(a) A puts jewels into a box belonging to Z, with the intention that they may be found in that box, and that this circumstance may cause Z to be convicted of theft. A has fabricated false evidence.*

*(b) A makes a false entry in his shop-book for the purpose of using it as corroborative evidence in a Court. A has fabricated false evidence.*

*(c) A, with the intention of causing Z to be convicted of a criminal conspiracy, writes a letter in imitation of Z's handwriting, purporting to be addressed to an accomplice in such criminal conspiracy, and puts the letter in a place which he knows that the officers of the police are likely to search. A has fabricated false evidence.*

**Simple Explanation: Whoever causes any circumstance to exist, makes a false entry in any book, record, or electronic record, or creates a document or electronic record containing a false statement, with the intent that such false information may be presented as evidence in a judicial proceeding, or in a legal proceeding before a public servant or arbitrator, and that such evidence may lead to an erroneous opinion on a material point in the case, is said to have "fabricated false evidence." For instance, if a person places stolen jewels in someone's box to frame them for theft, they have fabricated false evidence. Similarly, making a false entry in a shop record to use it as corroborative court evidence or forging a letter in another person's handwriting to falsely implicate them in a crime also constitute fabricating false evidence.**

*Section 229:*

*(1) Whoever intentionally gives false evidence in any stage of a judicial proceeding, or fabricates false evidence for the purpose of being used in any stage of a judicial proceeding, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine which may extend to ten thousand rupees.*

*(2) Whoever intentionally gives or fabricates false evidence in any case other than that referred to in sub-section (1), shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine which may extend to five thousand rupees.*

*Explanation 1*

*A trial before a Court-martial is a judicial proceeding.*

*Explanation 2*

*An investigation directed by law preliminary to a proceeding before a Court, is a stage of a judicial proceeding, though that investigation may not take place before a Court.*

*Illustration*

*A, in an enquiry before a Magistrate for the purpose of ascertaining whether Z ought to be committed for trial, makes on oath a statement which he knows to be false. As this enquiry is a stage of a judicial proceeding, A has given false evidence.*

*Explanation 3*

*An investigation directed by a Court according to law, and conducted under the authority of a Court, is a stage of a judicial proceeding, though that investigation may not take place before a Court.*



### *Illustration*

*A, in an enquiry before an officer deputed by a Court to ascertain on the spot the boundaries of land, makes on oath a statement which he knows to be false. As this enquiry is a stage of a judicial proceeding, A has given false evidence.*

**Simple Explanation:** Whoever intentionally gives false evidence or fabricates false evidence to be used in any stage of a judicial proceeding shall be punished with imprisonment of up to seven years and a fine of up to ten thousand rupees. If the false evidence is given or fabricated in any other case, the punishment may extend to three years of imprisonment and a fine of up to five thousand rupees. A trial before a Court-martial and investigations directed by law as preliminary to court proceedings are also considered stages of judicial proceedings. For example, if a person knowingly makes a false statement during an inquiry before a Magistrate or an officer deputed by a Court to ascertain land boundaries, they have committed the offense of giving false evidence.

### *Section 230:*

*(1) Whoever gives or fabricates false evidence, intending thereby to cause, or knowing it to be likely that he will thereby cause, any person to be convicted of an offence which is capital by the law for the time being in force in India shall be punished with imprisonment for life, or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine which may extend to fifty thousand rupees.*

*(2) If an innocent person be convicted and executed in consequence of false evidence referred to in sub-section (1), the person who gives such false evidence shall be punished either with death or the punishment specified in sub-section (1).*

**Simple Explanation:** Whoever gives or fabricates false evidence with the intent to cause, or knowing it is likely to cause, a person to be convicted of a capital offense in India shall be punished with life imprisonment or rigorous imprisonment of up to ten years, along with a fine of up to fifty thousand rupees. Furthermore, if an innocent person is convicted and executed as a result of such false evidence, the person responsible for providing the false evidence may be punished with the death penalty or the punishment mentioned above.

### *Section 231:*

*Whoever gives or fabricates false evidence intending thereby to cause, or knowing it to be likely that he will thereby cause, any person to be convicted of an offence which by the law for the time being in force in India is not capital, but punishable with imprisonment for life, or imprisonment for a term of seven years or upwards, shall be punished as a person convicted of that offence would be liable to be punished.*

### *Illustration*

*A gives false evidence before a Court, intending thereby to cause Z to be convicted of a dacoity. The punishment of dacoity is imprisonment for life, or rigorous imprisonment for a term which may extend to ten years, with or without fine. A, therefore, is liable to imprisonment for life or imprisonment, with or without fine.*

**Simple Explanation:** Whoever gives or fabricates false evidence with the intent to cause, or knowing it is likely to cause, a person to be convicted of an offense that is not capital but punishable by life imprisonment or imprisonment for a term of seven years or more, shall be punished with the same penalty as the convicted person would face. For example, if A gives false evidence in court intending to convict Z of dacoity, which is punishable by life imprisonment or rigorous imprisonment up to ten years with or without a fine, A would also be liable for the same punishment.

### *Section 232:*

*(1) Whoever threatens another with any injury to his person, reputation or property or to the person or reputation of any one in whom that person is interested, with intent to cause that person to give false evidence shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.*

*(2) If an innocent person is convicted and sentenced in consequence of false evidence referred to in sub-section (1), with death or imprisonment for more than seven years, the person who threatens shall be punished with the same punishment and sentence in the same manner and to the same extent such innocent person is punished and sentenced.*

**Simple Explanation:** This provision penalizes any individual who threatens another person with harm to their body, reputation, property, or someone they care about, intending to compel them to provide false evidence. The punishment for such an offense includes imprisonment for up to seven years, a fine, or both. Furthermore, if an innocent person is wrongfully convicted and sentenced to death or imprisonment exceeding seven years due to such false evidence, the individual responsible for making the threat shall face the same punishment as the innocent person who was wrongfully convicted.

*Section 233:*

*Whoever corruptly uses or attempts to use as true or genuine evidence any evidence which he knows to be false or fabricated, shall be punished in the same manner as if he gave or fabricated false evidence.*

**Simple Explanation:** This means that if someone knowingly presents fake or altered evidence in court, or even tries to do so, they will be punished the same way as a person who creates or gives false evidence. The law treats both actions—using and making false evidence—as equally serious because they can mislead justice.

*Section 234:*

*Whoever issues or signs any certificate required by law to be given or signed, or relating to any fact of which such certificate is by law admissible in evidence, knowing or believing that such certificate is false in any material point, shall be punished in the same manner as if he gave false evidence.*

**Simple Explanation:** This means that if a person knowingly issues or signs a legal certificate that contains false information, and that certificate can be used as evidence in court, they will face the same punishment as someone who gives false evidence. This law ensures that official documents remain truthful and reliable in legal matters.

*Section 235:*

*Whoever corruptly uses or attempts to use any such certificate as a true certificate, knowing the same to be false in any material point, shall be punished in the same manner as if he gave false evidence.*

**Simple Explanation:** If someone knowingly uses or tries to use a fake certificate as if it were real, they will be punished just like a person who gives false evidence. This law ensures that false documents are not used to mislead the legal system.

*Section 236:*

*Whoever, in any declaration made or subscribed by him, which declaration any Court or any public servant or other person, is bound or authorised by law to receive as evidence of any fact, makes any statement which is false, and which he either knows or believes to be false or does not believe to be true, touching any point material to the object for which the declaration is made or used, shall be punished in the same manner as if he gave false evidence.*

**Simple Explanation:** This section states that if a person knowingly makes a false statement in a declaration that is legally accepted as evidence by a court, public servant, or any authorized person, they will be punished the same way as someone who gives false evidence (perjury).

In simple terms, if you sign or submit a declaration with false information, knowing it's false or doubting its truth, and it's important for the purpose of that declaration, you will face the same legal consequences as lying under oath in court.

*Section 237:*

*Whoever corruptly uses or attempts to use as true any such declaration, knowing the same to be false in any material point, shall be punished in the same manner as if he gave false evidence.*

*Explanation. - A declaration which is inadmissible merely upon the ground of some informality, is a declaration within the meaning of section 236 and this section.*

**Simple Explanation:** This section states that if someone knowingly and dishonestly uses or tries to use a false declaration as if it were true, they will be punished the same way as a person who gives false evidence (perjury).

The explanation clarifies that even if a declaration has a minor procedural issue making it technically inadmissible, it still falls under this law. This ensures that people cannot escape punishment by exploiting small technical errors in legal documents.

#### Section 238:

*Whoever, knowing or having reason to believe that an offence has been committed, causes any evidence of the commission of that offence to disappear, with the intention of screening the offender from legal punishment, or with that intention gives any information respecting the offence which he knows or believes to be false shall, -*

*(a) if the offence which he knows or believes to have been committed is punishable with death, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;*

*(b) if the offence is punishable with imprisonment for life, or with imprisonment which may extend to ten years, be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine;*

*(c) if the offence is punishable with imprisonment for any term not extending to ten years, be punished with imprisonment of the description provided for the offence, for a term which may extend to one-fourth part of the longest term of the imprisonment provided for the offence, or with fine, or with both.*

#### Illustration

*A, knowing that B has murdered Z, assists B to hide the body with the intention of screening B from punishment. A is liable to imprisonment of either description for seven years, and also to fine.*

**Simple Explanation:** This section punishes anyone who tries to destroy evidence or provide false information to protect an offender from legal punishment. If a person knows or has reason to believe that a crime has been committed and deliberately hides evidence or misleads authorities, they will face punishment based on the severity of the crime. If the crime is punishable by death, they can be imprisoned for up to seven years with a fine. If the crime carries life imprisonment or up to ten years in jail, they may face up to three years in prison with a fine. For lesser crimes, the punishment is a fraction of the maximum jail term prescribed for that crime, along with a possible fine. For example, if someone helps a murderer hide a body to protect them, they can be jailed for up to seven years and fined. This law ensures that tampering with evidence and misleading justice are taken seriously.

#### Section 239:

*Whoever, knowing or having reason to believe that an offence has been committed, intentionally omits to give any information respecting that offence which he is legally bound to give, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation:** This section states that if a person knows or has reason to believe that a crime has been committed but deliberately fails to report it, despite being legally required to do so, they can be punished. The punishment may include imprisonment for up to six months, a fine of up to five thousand rupees, or both. This law ensures that individuals who are obligated to report crimes do not withhold crucial information, helping maintain justice and accountability.

#### Section 240:

*Whoever, knowing or having reason to believe that an offence has been committed, gives any information respecting that offence which he knows or believes to be false, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

*Explanation.—In sections 238 and 239 and in this section the word “offence” includes any act committed at any place out of India, which, if committed in India, would be punishable under any of the following sections, namely, 103, 105, 307, sub-sections (2), (3) and (4) of section 309, sub-sections (2), (3), (4) and (5) of section 310, 311, 312, clauses (f) and (g) of section 326, sub-sections (4), (6), (7) and (8) of section 331, clauses (a) and (b) of section 332*

**Simple Explanation:** This section states that if a person knowingly provides false information about a crime, despite knowing or believing that a crime has actually been committed, they can be punished. The punishment includes imprisonment for up to two years, a fine, or both.

The explanation clarifies that for this section, as well as sections 238 and 239, the term "offence" also includes certain serious crimes committed outside India, which would be punishable under Indian law if committed within the country. This ensures that false reporting about serious crimes, whether committed in India or abroad, is dealt with strictly.

#### Section 241:

*Whoever secretes or destroys any document or electronic record which he may be lawfully compelled to produce as evidence in a Court or in any proceeding lawfully held before a public servant, as such, or obliterates or renders illegible the whole or any part of such document or electronic record with the intention of preventing the same from being produced or used as evidence before such Court or public servant as aforesaid, or after he shall have been lawfully summoned or required to produce the same for that purpose, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation:** This section states that if a person hides, destroys, or damages any document or electronic record that they are legally required to present as evidence in court or before a public servant, they can be punished. If they make the document unreadable or inaccessible to prevent its use as evidence, especially after being officially asked to produce it, they may face imprisonment for up to three years, a fine of up to five thousand rupees, or both. This law ensures that crucial evidence is not tampered with or destroyed to obstruct justice.

#### Section 242:

*Whoever falsely personates another, and in such assumed character makes any admission or statement, or confesses judgment, or causes any process to be issued or becomes bail or security, or does any other act in any suit or criminal prosecution, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.*

**Simple Explanation:** This section states that if someone pretends to be another person and, in that false identity, makes a statement, admits something, confesses to a judgment, issues legal processes, acts as bail or security, or takes any action in a legal case or criminal trial, they can be punished. The punishment includes imprisonment for up to three years, a fine, or both. This law ensures that no one can deceive the legal system by impersonating someone else in legal matters.

#### Section 243:

*Whoever fraudulently removes, conceals, transfers or delivers to any person any property or any interest therein, intending thereby to prevent that property or interest therein from being taken as a forfeiture or in satisfaction of a fine, under a sentence which has been pronounced, or which he knows to be likely to be pronounced, by a Court or other competent authority, or from being taken in execution of a decree or order which has been made, or which he knows to be likely to be made by a Court in a civil suit, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation:** This section states that if someone fraudulently removes, hides, transfers, or gives away any property or interest in it to stop it from being seized as a penalty, fine, or under a court order, they can be punished. This applies when the person knows that a court has already ordered or is likely to order the property to be forfeited or taken in a civil case. The punishment for such an act includes imprisonment for up to three years, a fine of up to five thousand rupees, or both. This law ensures that people cannot escape legal penalties by illegally disposing of their assets.

#### Section 244:

*Whoever fraudulently accepts, receives or claims any property or any interest therein, knowing that he has no right or rightful claim to such property or interest, or practises any deception touching any right to any property or any interest therein, intending thereby to prevent that property or interest therein from being taken as a forfeiture or in satisfaction of a fine, under a sentence which has been pronounced, or which he knows to be likely to be pronounced by a Court or other competent authority, or from being taken in execution of a decree or order which has been made, or which he knows to be likely to be made by a Court in a civil suit, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation:** This section states that if someone fraudulently accepts, receives, or claims property, knowing they have no rightful claim to it, or deceives others about their right to the property, they can be punished. If this is done to prevent the property from being seized as a penalty, fine, or under a court order, they may face imprisonment for up to two years, a fine, or both. This law ensures that people do not wrongfully take or claim property to avoid legal forfeiture or court-ordered payments.

#### Section 245:

*Whoever fraudulently causes or suffers a decree or order to be passed against him at the suit of any person for a sum not due or for a larger sum than is due to such person or for any property or interest in property to which such person is not entitled, or fraudulently causes or suffers a decree or order to be executed against him after it has been satisfied, or for anything in respect of which it has been satisfied, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

#### Illustration

*A institutes a suit against Z. Z, knowing that A is likely to obtain a decree against him, fraudulently suffers a judgment to pass against him for a larger amount at the suit of B, who has no just claim against him, in order that B, either on his own account or for the benefit of Z, may share in the proceeds of any sale of Z's property which may be made under A's decree. Z has committed an offence under this section.*

**Simple Explanation:** This section punishes anyone who fraudulently allows or causes a court to pass a false order or decree against them. This includes agreeing to a judgment for money they do not owe, a larger amount than they owe, or property that the other party is not entitled to. It also applies if someone allows a court order to be enforced against them even after it has already been satisfied. The punishment for such fraud includes imprisonment for up to two years, a fine, or both. For example, if a person, knowing that a judgment is likely to be passed against them, intentionally allows another person to falsely claim a larger amount first so they can unfairly benefit from the sale of property, they commit an offence. This law ensures that court orders are not misused for deception or personal gain.

#### Section 246:

*Whoever fraudulently or dishonestly, or with intent to injure or annoy any person, makes in a Court any claim which he knows to be false, shall be punished with imprisonment of either description for a term which may extend to two years, and shall also be liable to fine.*

**Simple Explanation:** This section states that if a person fraudulently, dishonestly, or with the intention to harm or annoy someone, makes a false claim in court, they can be punished. If they knowingly file a false case or demand something they are not entitled to, they may face imprisonment for up to two years, a fine, or both. This law ensures that legal proceedings are not misused for personal gain or to harass others with false claims.

#### Section 247:

*Whoever fraudulently obtains a decree or order against any person for a sum not due, or for a larger sum than is due or for any property or interest in property to which he is not entitled, or fraudulently causes a decree or order to be executed against any person after it has been satisfied or for anything in respect of which it has been satisfied, or fraudulently suffers*

*or permits any such act to be done in his name, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation:** This section states that if a person fraudulently obtains a court decree or order for money they are not owed, for a larger amount than they are entitled to, or for property they have no right to, they can be punished. It also applies if someone enforces a court order against another person even after it has been fulfilled or allows such fraudulent actions to happen in their name. The punishment includes imprisonment for up to two years, a fine, or both. This law ensures that court orders are not misused to wrongfully take money or property from others.

#### **Section 248:**

*Whoever, with intent to cause injury to any person, institutes or causes to be instituted any criminal proceeding against that person, or falsely charges any person with having committed an offence, knowing that there is no just or lawful ground for such proceeding or charge against that person, -*

*(a) shall be punished with imprisonment of either description for a term which may extend to five years, or with fine which may extend to two lakh rupees, or with both;*

*(b) if such criminal proceeding be instituted on a false charge of an offence punishable with death, imprisonment for life, or imprisonment for ten years or upwards, shall be punishable with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation:** This section punishes anyone who intentionally files or causes the filing of false criminal charges against another person, knowing there is no legal basis for it. If a person falsely accuses someone of a crime to harm them, they can face imprisonment for up to five years, a fine of up to two lakh rupees, or both. However, if the false accusation involves a crime that carries the death penalty, life imprisonment, or a jail term of ten years or more, the punishment increases to imprisonment of up to ten years along with a fine. This law ensures that false criminal cases are not used as a tool for harassment or personal vendettas.

#### **Section 249:**

*Whenever an offence has been committed, whoever harbours or conceals a person whom he knows or has reason to believe to be the offender, with the intention of screening him from legal punishment shall, -*

*(a) if the offence is punishable with death, be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine;*

*(b) if the offence is punishable with imprisonment for life, or with imprisonment which may extend to ten years, be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine;*

*(c) if the offence is punishable with imprisonment which may extend to one year, and not to ten years, be punished with imprisonment of the description provided for the offence for a term which may extend to one-fourth part of the longest term of imprisonment provided for the offence, or with fine, or with both.*

#### **Explanation**

*"Offence" in this section includes any act committed at any place out of India, which, if committed in India, would be punishable under any of the following sections, namely 103, 105, 307, sub-sections (2), (3) and (4) of section 309, sub-sections (2), (3), (4) and (5) of section 310, 311, 312, clauses (f) and (g) of section 326, sub-sections (4), (6), (7) and (8) of section 331, clauses (a) and (b) of section 332 and every such act shall, for the purposes of this section, be deemed to be punishable as if the accused person had been guilty of it in India.*

#### **Exception**

*This section shall not extend to any case in which the harbour or concealment is by the spouse of the offender.*

#### **Illustration**

*A, knowing that B has committed dacoity, knowingly conceals B in order to screen him from legal punishment. Here, as B is liable to imprisonment for life, A is liable to imprisonment of either description for a term not exceeding three years, and is also liable to fine.*

**Simple Explanation:** This section states that if someone knowingly hides or shelters an offender to protect them from legal punishment, they can be punished based on the severity of the crime committed by the offender. If the crime is punishable by death, the person hiding the offender can face imprisonment of up to five years and a fine. If the crime carries life imprisonment or up to ten years of jail time, the punishment for harboring the offender can be up to three years of imprisonment along with a fine. For lesser crimes with imprisonment ranging from one to ten years, the punishment is up to one-fourth of the maximum jail term for that crime, or a fine, or both. This law applies even if the crime was committed outside India, provided it would be punishable under certain sections of Indian law. However, there is an exception—if a spouse hides or shelters their partner, they will not be punished under this section. For example, if someone hides a person guilty of dacoity (which carries life imprisonment), they can face up to three years in jail and a fine. This law ensures that criminals cannot escape justice by being unlawfully protected.

#### Section 250:

*Whoever accepts or attempts to obtain, or agrees to accept, any gratification for himself or any other person, or any restitution of property to himself or any other person, in consideration of his concealing an offence or of his screening any person from legal punishment for any offence, or of his not proceeding against any person for the purpose of bringing him to legal punishment shall,--*

*(a) if the offence is punishable with death, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;*

*(b) if the offence is punishable with imprisonment for life, or with imprisonment which may extend to ten years, be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine;*

*(c) if the offence is punishable with imprisonment not extending to ten years, be punished with imprisonment of the description provided for the offence for a term which may extend to one-fourth part of the longest term of imprisonment provided for the offence, or with fine, or with both.*

**Simple Explanation:** This section punishes anyone who accepts, tries to obtain, or agrees to take money, valuables, or any form of benefit in exchange for hiding a crime, protecting an offender from legal punishment, or not reporting an offence. If the concealed offence is punishable by death, the person accepting the bribe can face up to seven years of imprisonment and a fine. If the offence carries life imprisonment or a jail term of up to ten years, the punishment for concealing it can be up to three years of imprisonment along with a fine. For lesser offences with imprisonment below ten years, the punishment is up to one-fourth of the maximum jail term for that offence, or a fine, or both. This law ensures that no one can profit from obstructing justice or helping criminals escape punishment.

#### Section 251:

*Whoever gives or causes, or offers or agrees to give or cause, any gratification to any person, or restores or causes the restoration of any property to any person, in consideration of that person's concealing an offence, or of his screening any person from legal punishment for any offence, or of his not proceeding against any person for the purpose of bringing him to legal punishment shall,--*

*(a) if the offence is punishable with death, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;*

*(b) if the offence is punishable with imprisonment for life or with imprisonment which may extend to ten years, be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine;*

*(c) if the offence is punishable with imprisonment not extending to ten years, be punished with imprisonment of the description provided for the offence for a term which may extend to one-fourth part of the longest term of imprisonment provided for the offence, or with fine, or with both.*

## Exception

*The provisions of this section and section 250 do not extend to any case in which the offence may lawfully be compounded.*

**Simple Explanation:** This section punishes anyone who offers, gives, or agrees to give money, valuables, or any benefit to someone in exchange for hiding a crime, protecting an offender from punishment, or not taking legal action against them. If the concealed offence is punishable by death, the giver can face up to seven years of imprisonment and a fine. If the offence carries life imprisonment or a jail term of up to ten years, the punishment for offering such a bribe can be up to three years of imprisonment along with a fine. For lesser offences with imprisonment below ten years, the punishment is up to one-fourth of the maximum jail term for that offence, or a fine, or both. However, there is an exception—if the law allows the offence to be settled (compounded), then this section does not apply. This ensures that people cannot escape justice by bribing others to cover up crimes.

## Section 252:

*Whoever takes or agrees or consents to take any gratification under pretence or on account of helping any person to recover any movable property of which he shall have been deprived by any offence punishable under this Sanhita, shall, unless he uses all means in his power to cause the offender to be apprehended and convicted of the offence, be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation:** This section punishes anyone who takes or agrees to take money or any benefit under the pretense of helping someone recover stolen or lost property due to a crime. If the person receiving the gratification does not make an effort to catch and convict the real offender, they can face imprisonment for up to two years, a fine, or both. This law ensures that people do not exploit victims by falsely promising to recover their property without actually helping to bring the culprit to justice.

## Section 253:

*Whenever any person convicted of or charged with an offence, being in lawful custody for that offence, escapes from such custody, or whenever a public servant, in the exercise of the lawful powers of such public servant, orders a certain person to be apprehended for an offence, whoever, knowing of such escape or order for apprehension, harbours or conceals that person with the intention of preventing him from being apprehended, shall be punished in the manner following, namely:--*

- (a) if the offence for which the person was in custody or is ordered to be apprehended is punishable with death, he shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;*
- (b) if the offence is punishable with imprisonment for life or imprisonment for ten years, he shall be punished with imprisonment of either description for a term which may extend to three years, with or without fine;*
- (c) if the offence is punishable with imprisonment which may extend to one year and not to ten years, he shall be punished with imprisonment of the description provided for the offence for a term which may extend to one-fourth part of the longest term of the imprisonment provided for such offence, or with fine, or with both.*

**Explanation.** - "Offence" in this section includes also any act or omission of which a person is alleged to have been guilty out of India, which, if he had been guilty of it in India, would have been punishable as an offence, and for which he is, under any law relating to extradition, or otherwise, liable to be apprehended or detained in custody in India, and every such act or omission shall, for the purposes of this section, be deemed to be punishable as if the accused person had been guilty of it in India.

**Exception.** - *The provisions of this section do not extend to the case in which the harbour or concealment is by the spouse of the person to be apprehended.*

**Simple Explanation:** This section punishes anyone who knowingly hides or shelters a person who has escaped from lawful custody or is wanted for arrest, with the intent to prevent their capture. The punishment depends on the seriousness of the crime committed by the escaped or wanted person. If the crime is punishable by death, the one who harbors them can face up to seven years of imprisonment and a fine. If the crime is punishable by life imprisonment or up to ten years in jail, the punishment for hiding them can be up to three years, with or without a fine. For lesser offences with imprisonment between one and ten years, the punishment is up to one-fourth of the



maximum jail term for that offence, or a fine, or both. This section also applies to crimes committed outside India if the accused is legally subject to arrest in India. However, there is an exception—if the person providing shelter is the spouse of the offender, this section does not apply. This law ensures that criminals cannot escape justice with the help of others.

#### Section 254:

*Whoever, knowing or having reason to believe that any persons are about to commit or have recently committed robbery or dacoity, harbours them or any of them, with the intention of facilitating the commission of such robbery or dacoity, or of screening them or any of them from punishment, shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.*

#### Explanation

*For the purposes of this section it is immaterial whether the robbery or dacoity is intended to be committed, or has been committed, within or without India.*

#### Exception

*The provisions of this section do not extend to the case in which the harbour is by the spouse of the offender.*

**Simple Explanation:** This section punishes anyone who knowingly shelters or helps people who are planning to commit or have recently committed robbery or dacoity, with the intention of assisting them or protecting them from being caught. Such an act is considered serious, and the offender can face rigorous imprisonment for up to seven years, along with a fine. It does not matter whether the crime took place inside or outside India. However, if the person providing shelter is the spouse of the offender, this section does not apply. This law aims to prevent criminals from finding refuge and ensure they face justice.

#### Section 255:

*Whoever, being a public servant, knowingly disobeys any direction of the law as to the way in which he is to conduct himself as such public servant, intending thereby to save, or knowing it to be likely that he will thereby save, any person from legal punishment, or subject him to a less punishment than that to which he is liable, or with intent to save, or knowing that he is likely thereby to save, any property from forfeiture or any charge to which it is liable by law, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation:** This section punishes public servants who knowingly disobey legal directions in their official duties to unlawfully protect someone from punishment or reduce their penalty. It also applies if they attempt to prevent the lawful forfeiture of property or any legal charges on it. Such misconduct is a serious offense, and the guilty public servant can face imprisonment for up to two years, a fine, or both. This law ensures that public officials uphold their duties honestly and do not misuse their position to shield wrongdoers.

#### Section 256:

*Whoever, being a public servant, and being as such public servant, charged with the preparation of any record or other writing, frames that record or writing in a manner which he knows to be incorrect, with intent to cause, or knowing it to be likely that he will thereby cause, loss or injury to the public or to any person, or with intent thereby to save, or knowing it to be likely that he will thereby save, any person from legal punishment, or with intent to save, or knowing that he is likely thereby to save, any property from forfeiture or other charge to which it is liable by law, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.*

**Simple Explanation:** This section penalizes public servants who intentionally prepare incorrect records or writings to cause loss or injury to the public or any individual. It also applies if the act is done to unlawfully protect someone from punishment or to prevent the forfeiture of property or any legal charge on it. Such misconduct undermines the integrity of public administration and is punishable with imprisonment of up to three years, a fine, or both. This provision ensures accountability and deters corruption among public officials.

Section 257:

*Whoever, being a public servant, corruptly or maliciously makes or pronounces in any stage of a judicial proceeding, any report, order, verdict, or decision which he knows to be contrary to law, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.*

**Simple Explanation:** This provision penalizes public servants who, during judicial proceedings, corruptly or maliciously issue reports, orders, verdicts, or decisions that they know to be unlawful. Such actions undermine the justice system and erode public trust in legal institutions. To deter such misconduct, the law prescribes a punishment of up to seven years of imprisonment, a fine, or both.

Section 258:

*Whoever, being in any office which gives him legal authority to commit persons for trial or to confinement, or to keep persons in confinement, corruptly or maliciously commits any person for trial or to confinement, or keeps any person in confinement, in the exercise of that authority knowing that in so doing he is acting contrary to law, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.*

**Simple Explanation:** This provision punishes individuals holding legal authority to commit or keep persons in confinement if they corruptly or maliciously misuse their power, knowing their actions to be unlawful. Such misconduct undermines justice and violates personal liberty. To prevent abuse of authority, the law prescribes imprisonment for up to seven years, a fine, or both.

Section 259:

*Whoever, being a public servant, legally bound as such public servant to apprehend or to keep in confinement any person charged with or liable to be apprehended for an offence, intentionally omits to apprehend such person, or intentionally suffers such person to escape, or intentionally aids such person in escaping or attempting to escape from such confinement, shall be punished, --*

*(a) with imprisonment of either description for a term which may extend to seven years, with or without fine, if the person in confinement, or who ought to have been apprehended, was charged with, or liable to be apprehended for, an offence punishable with death; or*

*(b) with imprisonment of either description for a term which may extend to three years, with or without fine, if the person in confinement, or who ought to have been apprehended, was charged with, or liable to be apprehended for, an offence punishable with imprisonment for life or imprisonment for a term which may extend to ten years; or*

*(c) with imprisonment of either description for a term which may extend to two years, with or without fine, if the person in confinement, or who ought to have been apprehended, was charged with, or liable to be apprehended for, an offence punishable with imprisonment for a term less than ten years.*

**Simple Explanation:** This provision penalizes public servants who deliberately fail in their duty to apprehend or keep in confinement a person charged with an offence. If the escaped individual was liable for an offence punishable by death, the punishment may extend to seven years of imprisonment, with or without a fine. If the offence was punishable by life imprisonment or a term up to ten years, the penalty may extend to three years. For lesser offences, the punishment may extend to two years. This ensures accountability and prevents abuse of authority.

Section 260:

*Whoever, being a public servant, legally bound as such public servant to apprehend or to keep in confinement any person under sentence of a Court for any offence or lawfully committed to custody, intentionally omits to apprehend such person, or intentionally suffers such person to escape or intentionally aids such person in escaping or attempting to escape from such confinement, shall be punished, -*

*(a) with imprisonment for life or with imprisonment of either description for a term which may extend to fourteen years, with or without fine, if the person in confinement, or who ought to have been apprehended, is under sentence of death; or*

*(b) with imprisonment of either description for a term which may extend to seven years, with or without fine, if the person in confinement or who ought to have been apprehended, is subject, by a sentence of a Court, or by virtue of a commutation of such sentence, to imprisonment for life or imprisonment for a term of ten years, or upwards; or*

*(c) with imprisonment of either description for a term which may extend to three years, or with fine, or with both, if the person in confinement or who ought to have been apprehended, is subject by a sentence of a Court to imprisonment for a term not extending to ten years or if the person was lawfully committed to custody.*

**Simple Explanation:** This provision imposes strict penalties on public servants who deliberately allow a person under a court sentence or lawful custody to escape or avoid apprehension. If the escaped individual was sentenced to death, the public servant may face life imprisonment or up to fourteen years of imprisonment, with or without a fine. If the individual was sentenced to life imprisonment or at least ten years, the penalty may extend to seven years. For those sentenced to less than ten years or lawfully committed to custody, the punishment may extend to three years or include a fine, or both. This ensures strict accountability in the justice system.

#### Section 261:

*Whoever, being a public servant legally bound as such public servant to keep in confinement any person charged with or convicted of any offence or lawfully committed to custody, negligently suffers such person to escape from confinement, shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation:** This provision penalizes public servants who, through negligence, allow a person charged with or convicted of an offence, or lawfully committed to custody, to escape from confinement. The punishment for such negligence includes simple imprisonment for up to two years, or a fine, or both. This ensures that public servants exercise due diligence in maintaining custody and preventing escapes.

#### Section 262:

*Whoever intentionally offers any resistance or illegal obstruction to the lawful apprehension of himself for any offence with which he is charged or of which he has been convicted, or escapes or attempts to escape from any custody in which he is lawfully detained for any such offence, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

*Explanation. - The punishment in this section is in addition to the punishment for which the person to be apprehended or detained in custody was liable for the offence with which he was charged, or of which he was convicted.*

**Simple Explanation:** This provision penalizes individuals who intentionally resist or obstruct their own lawful apprehension or attempt to escape from custody after being charged with or convicted of an offence. The punishment includes imprisonment of up to two years, or a fine, or both. Additionally, this penalty is separate from and in addition to any punishment for the original offence for which the person was being apprehended or detained.

#### Section 263:

*Whoever, intentionally offers any resistance or illegal obstruction to the lawful apprehension of any other person for an offence, or rescues or attempts to rescue any other person from any custody in which that person is lawfully detained for an offence, -*

*(a) shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both; or*

*(b) if the person to be apprehended, or the person rescued or attempted to be rescued, is charged with or liable to be apprehended for an offence punishable with imprisonment for life or imprisonment for a term which may extend to ten years, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine; or*

*(c) if the person to be apprehended or rescued, or attempted to be rescued, is charged with or liable to be apprehended for an offence punishable with death, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine; or*

*(d) if the person to be apprehended or rescued, or attempted to be rescued, is liable under the sentence of a Court or by virtue of a commutation of such a sentence, to imprisonment for life, or imprisonment for a term of ten years or upwards, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine; or*

*(e) if the person to be apprehended or rescued, or attempted to be rescued, is under sentence of death, shall be punished with imprisonment for life or imprisonment of either description for a term not exceeding ten years, and shall also be liable to fine.*

**Simple Explanation:** Anyone who intentionally resists or obstructs the lawful arrest of another person or attempts to rescue someone in legal custody shall face punishment based on the severity of the offence. If the person being apprehended is charged with a general offence, the punishment may be up to two years in prison, a fine, or both. If the offence is punishable with life imprisonment or up to ten years, the punishment may extend to three years with a fine. If the offence is punishable by death, the punishment may be up to seven years with a fine. If the person is already sentenced to life imprisonment or ten years or more, the punishment remains up to seven years with a fine, and if sentenced to death, it may be life imprisonment or up to ten years with a fine.

#### Section 264:

*Whoever, being a public servant legally bound as such public servant to apprehend, or to keep in confinement, any person in any case not provided for in section 259, section 260 or section 261, or in any other law for the time being in force, omits to apprehend that person or suffers him to escape from confinement, shall be punished -*

*(a) if he does so intentionally, with imprisonment of either description for a term which may extend to three years, or with fine, or with both; and*

*(b) if he does so negligently, with simple imprisonment for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation:** A public servant who is legally required to apprehend or keep someone in custody but either fails to do so or allows the person to escape will face punishment. If done intentionally, the punishment may be up to three years of imprisonment, a fine, or both. If done negligently, the punishment may be up to two years of simple imprisonment, a fine, or both.

#### Section 265:

*Whoever, in any case not provided for in section 262 or section 263 or in any other law for the time being in force, intentionally offers any resistance or illegal obstruction to the lawful apprehension of himself or of any other person, or escapes or attempts to escape from any custody in which he is lawfully detained, or rescues or attempts to rescue any other person from any custody in which that person is lawfully detained, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.*

**Simple Explanation:** Anyone who resists or obstructs their own or another person's lawful arrest, escapes or attempts to escape from custody, or rescues or tries to rescue someone from lawful detention—except in cases covered by other laws—can be punished with imprisonment of up to six months, a fine, or both.

#### Section 266:

*Whoever, having accepted any conditional remission of punishment, knowingly violates any condition on which such remission was granted, shall be punished with the punishment to which he was originally sentenced, if he has already suffered no part of that punishment, and if he has suffered any part of that punishment, then with so much of that punishment as he has not already suffered.*

**Simple Explanation:** Anyone who violates the conditions of a granted remission of punishment will be required to serve the remaining part of their original sentence; if they have not served any part of it, they will face the full original punishment.

Section 267:

*Whoever, intentionally offers any insult, or causes any interruption to any public servant, while such public servant is sitting in any stage of a judicial proceeding, shall be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation: Anyone who intentionally insults or disrupts a public servant during a judicial proceeding may face simple imprisonment for up to six months, a fine of up to five thousand rupees, or both.**

Section 268:

*Whoever, by personation or otherwise, shall intentionally cause, or knowingly suffer himself to be returned, empanelled or sworn as an assessor in any case in which he knows that he is not entitled by law to be so returned, empanelled or sworn, or knowing himself to have been so returned, empanelled or sworn contrary to law, shall voluntarily serve as such assessor, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation: Anyone who fraudulently or knowingly serves as an assessor in a case where they are not legally entitled to do so shall be punished with imprisonment of up to two years, a fine, or both.**

Section 269:

*Whoever, having been charged with an offence and released on bail bond or on bond, fails without sufficient cause (the burden of proving which shall lie upon him), to appear in Court in accordance with the terms of the bail or bond, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.*

*Explanation*

*The punishment under this section is -*

*(a) in addition to the punishment to which the offender would be liable on a conviction for the offence with which he has been charged; and*

*(b) without prejudice to the power of the Court to order forfeiture of the bond.*

**Simple Explanation: Anyone released on bail or bond who fails to appear in court without sufficient cause shall be punished with imprisonment of up to one year, a fine, or both, in addition to any punishment for the original offence, and the court may also forfeit the bond.**

Section 270:

*A person is guilty of a public nuisance who does any act or is guilty of an illegal omission which causes any common injury, danger or annoyance to the public or to the people in general who dwell or occupy property in the vicinity, or which must necessarily cause injury, obstruction, danger or annoyance to persons who may have occasion to use any public right but a common nuisance is not excused on the ground that it causes some convenience or advantage.*

**Simple Explanation: A person commits public nuisance by doing any act or illegal omission that causes common injury, danger, or annoyance to the public or nearby residents, or obstructs public rights, and such nuisance is not justified by any convenience or advantage it may provide.**

Section 271:

*Whoever unlawfully or negligently does any act which is, and which he knows or has reason to believe to be, likely to spread the infection of any disease dangerous to life, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.*

**Simple Explanation: This provision penalizes anyone who unlawfully or negligently commits an act that they know or have reason to believe is likely to spread a life-threatening infectious disease. The punishment may include imprisonment of up to six months, a fine, or both.**

Section 272:

*Whoever malignantly does any act which is, and which he knows or has reason to believe to be, likely to spread the infection of any disease dangerous to life, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation:** Anyone who deliberately commits an act, knowing or having reason to believe that it is likely to spread a life-threatening infectious disease, shall be punished with imprisonment of up to two years, a fine, or both.

Section 273:

*Whoever knowingly disobeys any rule made by the Government for putting any mode of transport into a state of quarantine, or for regulating the intercourse of any such transport in a state of quarantine or for regulating the intercourse between places where an infectious disease prevails and other places, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.*

**Simple Explanation:** Anyone who knowingly disobeys government rules regarding the quarantine of transport or the regulation of movement between infected and non-infected areas shall be punished with imprisonment of up to six months, a fine, or both.

Section 274:

*Whoever adulterates any article of food or drink, so as to make such article noxious as food or drink, intending to sell such article as food or drink, or knowing it to be likely that the same will be sold as food or drink, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation:** Anyone who adulterates food or drink, making it harmful and intending or knowing it may be sold as such, shall be punished with imprisonment of up to six months, a fine of up to five thousand rupees, or both.

Section 275:

*Whoever sells, or offers or exposes for sale, as food or drink, any article which has been rendered or has become noxious, or is in a state unfit for food or drink, knowing or having reason to believe that the same is noxious as food or drink, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation:** Anyone who sells or offers noxious or unfit food or drink, knowing or having reason to believe it is harmful, shall be punished with imprisonment of up to six months, a fine of up to five thousand rupees, or both.

Section 276:

*Whoever adulterates any drug or medical preparation in such a manner as to lessen the efficacy or change the operation of such drug or medical preparation, or to make it noxious, intending that it shall be sold or used for, or knowing it to be likely that it will be sold or used for, any medicinal purpose, as if it had not undergone such adulteration, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation:** Anyone who adulterates a drug or medical preparation to reduce its efficacy, alter its effect, or make it harmful, intending or knowing it is likely to be sold or used for medicinal purposes, shall be punished with imprisonment of up to one year, a fine of up to five thousand rupees, or both.

Section 277:

*Whoever, knowing any drug or medical preparation to have been adulterated in such a manner as to lessen its efficacy, to change its operation, or to render it noxious, sells the same, or offers or exposes it for sale, or issues it from any dispensary for medicinal purposes as unadulterated, or causes it to be used for medicinal purposes by any person not knowing of the adulteration, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation:** Anyone who knowingly sells, offers, dispenses, or causes the use of an adulterated drug or medical preparation, which reduces its efficacy, alters its effect, or makes it harmful, shall be punished with imprisonment of up to six months, a fine of up to five thousand rupees, or both.

**Section 278:**

*Whoever knowingly sells, or offers or exposes for sale, or issues from a dispensary for medicinal purposes, any drug or medical preparation, as a different drug or medical preparation, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation:** Anyone who knowingly sells, offers, dispenses, or exposes for sale any drug or medical preparation as a different one shall be punished with imprisonment of up to six months, a fine of up to five thousand rupees, or both.

**Section 279:**

*Whoever voluntarily corrupts or fouls the water of any public spring or reservoir, so as to render it less fit for the purpose for which it is ordinarily used, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation:** Anyone who voluntarily contaminates or pollutes the water of a public spring or reservoir, making it less fit for its intended use, shall be punished with imprisonment of up to six months, a fine of up to five thousand rupees, or both.

**Section 280:**

*Whoever voluntarily vitiates the atmosphere in any place so as to make it noxious to the health of persons in general dwelling or carrying on business in the neighbourhood or passing along a public way, shall be punished with fine which may extend to one thousand rupees.*

**Simple Explanation:** Anyone who voluntarily pollutes the atmosphere in a way that harms public health in the surrounding area or along a public way shall be punished with a fine of up to one thousand rupees.

**Section 281:**

*Whoever drives any vehicle, or rides, on any public way in a manner so rash or negligent as to endanger human life, or to be likely to cause hurt or injury to any other person, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.*

**Simple Explanation:** Anyone who drives a vehicle or rides on a public way in a rash or negligent manner, endangering human life or likely causing injury, shall be punished with imprisonment of up to six months, or a fine of up to one thousand rupees, or both.

**Section 282:**

*Whoever navigates any vessel in a manner so rash or negligent as to endanger human life, or to be likely to cause hurt or injury to any other person, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to ten thousand rupees, or with both.*

**Simple Explanation:** Anyone who navigates a vessel in a rash or negligent manner, endangering human life or likely causing injury, shall be punished with imprisonment of up to six months, or a fine of up to ten thousand rupees, or both.

Section 283:

*Whoever exhibits any false light, mark or buoy, intending or knowing it to be likely that such exhibition will mislead any navigator, shall be punished with imprisonment of either description for a term which may extend to seven years, and with fine which shall not be less than ten thousand rupees.*

**Simple Explanation:** Anyone who exhibits a false light, mark, or buoy with the intent or knowledge that it may mislead a navigator shall be punished with imprisonment of up to seven years and a fine of at least ten thousand rupees.

Section 284:

*Whoever knowingly or negligently conveys, or causes to be conveyed for hire, any person by water in any vessel, when that vessel is in such a state or so loaded as to endanger the life of that person, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation:** Anyone who knowingly or negligently transports a person by water in an unsafe or overloaded vessel, endangering their life, shall be punished with imprisonment of up to six months, or a fine of up to five thousand rupees, or both.

Section 285:

*Whoever, by doing any act, or by omitting to take order with any property in his possession or under his charge, causes danger, obstruction or injury to any person in any public way or public line of navigation, shall be punished with fine which may extend to five thousand rupees.*

**Simple Explanation:** Whoever causes danger, obstruction, or injury to any person on a public way or public line of navigation by any act or failure to manage property under their charge shall be punished with a fine of up to five thousand rupees.

Section 286:

*Whoever does, with any poisonous substance, any act in a manner so rash or negligent as to endanger human life, or to be likely to cause hurt or injury to any person or knowingly or negligently omits to take such order with any poisonous substance in his possession as is sufficient to guard against any probable danger to human life from such poisonous substance, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation:** Whoever rashly or negligently handles or fails to secure a poisonous substance, endangering human life or likely causing injury, shall be punished with imprisonment of up to six months, or a fine of up to five thousand rupees, or both.

Section 287:

*Whoever does, with fire or any combustible matter, any act so rashly or negligently as to endanger human life, or to be likely to cause hurt or injury to any other person or knowingly or negligently omits to take such order with any fire or any combustible matter in his possession as is sufficient to guard against any probable danger to human life from such fire or combustible matter, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to two thousand rupees, or with both.*



**Simple Explanation: Whoever rashly or negligently handles fire or any combustible matter, endangering human life or likely causing injury, shall be punished with imprisonment of up to six months, or a fine of up to two thousand rupees, or both.**

*Section 288:*

*Whoever does, with any explosive substance, any act so rashly or negligently as to endanger human life, or to be likely to cause hurt or injury to any other person, or knowingly or negligently omits to take such order with any explosive substance in his possession as is sufficient to guard against any probable danger to human life from that substance, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation: Whoever rashly or negligently handles any explosive substance, endangering human life or likely causing injury, shall be punished with imprisonment of up to six months, or a fine of up to five thousand rupees, or both.**

*Section 289:*

*Whoever does, with any machinery, any act so rashly or negligently as to endanger human life or to be likely to cause hurt or injury to any other person or knowingly or negligently omits to take such order with any machinery in his possession or under his care as is sufficient to guard against any probable danger to human life from such machinery, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation: Whoever rashly or negligently handles any machinery, endangering human life or likely causing injury, or fails to take necessary precautions, shall be punished with imprisonment of up to six months, or a fine of up to five thousand rupees, or both.**

*Section 290:*

*Whoever, in pulling down, repairing or constructing any building, knowingly or negligently omits to take such measures with that building as is sufficient to guard against any probable danger to human life from the fall of that building, or of any part thereof, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation: Whoever, in demolishing, repairing, or constructing a building, knowingly or negligently fails to take necessary safety measures to prevent danger to human life from its collapse shall be punished with imprisonment of up to six months, or a fine of up to five thousand rupees, or both.**

*Section 291:*

*Whoever knowingly or negligently omits to take such measures with any animal in his possession as is sufficient to guard against any probable danger to human life, or any probable danger of grievous hurt from such animal, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation: Whoever knowingly or negligently fails to take necessary precautions with any animal in their possession to prevent any probable danger to human life or the risk of grievous harm from the animal, shall be punished with imprisonment of up to six months, or a fine of up to five thousand rupees, or both.**

*Section 292:*

*Whoever commits a public nuisance in any case not otherwise punishable by this Sanhita shall be punished with fine which may extend to one thousand rupees.*

**Simple Explanation: Whoever commits a public nuisance in any case not specifically punishable under this Sanhita shall be punished with a fine that may extend to one thousand rupees.**

Section 293:

*Whoever repeats or continues a public nuisance, having been enjoined by any public servant who has lawful authority to issue such injunction not to repeat or continue such nuisance, shall be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to five thousand rupees or with both.*

**Simple Explanation: Whoever repeats or continues a public nuisance after being instructed by a public servant, who has lawful authority to issue such orders, not to do so, shall be punished with simple imprisonment for a term which may extend to six months, or with a fine which may extend to five thousand rupees, or with both.**

Section 294:

*(1) For the purposes of sub-section (2), a book, pamphlet, paper, writing, drawing, painting, representation, figure or any other object, including display of any content in electronic form shall be deemed to be obscene if it is lascivious or appeals to the prurient interest or if its effect, or (where it comprises two or more distinct items) the effect of any one of its items, is, if taken as a whole, such as to tend to deprave and corrupt persons who are likely, having regard to all relevant circumstances, to read, see or hear the matter contained or embodied in it.*

*(2) Whoever -*

*(a) sells, lets to hire, distributes, publicly exhibits or in any manner puts into circulation, or for purposes of sale, hire, distribution, public exhibition or circulation, makes, produces or has in his possession any obscene book, pamphlet, paper, drawing, painting, representation or figure or any other obscene object whatsoever in whatever manner; or*

*(b) imports, exports or conveys any obscene object for any of the purposes aforesaid, or knowing or having reason to believe that such object will be sold, let to hire, distributed or publicly exhibited or in any manner put into circulation; or*

*(c) takes part in or receives profits from any business in the course of which he knows or has reason to believe that any such obscene objects are, for any of the purposes aforesaid, made, produced, purchased, kept, imported, exported, conveyed, publicly exhibited or in any manner put into circulation; or*

*(d) advertises or makes known by any means whatsoever that any person is engaged or is ready to engage in any act which is an offence under this section, or that any such obscene object can be procured from or through any person; or*

*(e) offers or attempts to do any act which is an offence under this section,*

*shall be punished on first conviction with imprisonment of either description for a term which may extend to two years, and with fine which may extend to five thousand rupees, and, in the event of a second or subsequent conviction, with imprisonment of either description for a term which may extend to five years, and also with fine which may extend to ten thousand rupees.*

*Exception*

*This section does not extend to -*

*(a) any book, pamphlet, paper, writing, drawing, painting, representation or figure -*

*(i) the publication of which is proved to be justified as being for the public good on the ground that such book, pamphlet, paper, writing, drawing, painting, representation or figure is in the interest of science, literature, art or learning or other objects of general concern; or*

*(ii) which is kept or used bona fide for religious purposes;*

*(b) any representation sculptured, engraved, painted or otherwise represented on or in -*

*(i) any ancient monument within the meaning of the Ancient Monuments and Archaeological Sites and Remains Act, 1958; or*

*(ii) any temple, or on any car used for the conveyance of idols, or kept or used for any religious purpose.*

**Simple Explanation:** This section defines an obscene object or content as anything that is lascivious or appeals to prurient interest, or that tends to deprive and corrupt persons likely to see, read, or hear it. The punishment for involvement in the sale, distribution, exhibition, production, possession, or circulation of obscene content is outlined in the section. The punishment can be up to two years of imprisonment and a fine of up to five thousand rupees for the first conviction, with a potential increase to five years of imprisonment and a fine of up to ten thousand rupees for subsequent convictions. However, the section includes exceptions for books, pamphlets, and other objects that are justified for the public good in the fields of science, literature, art, learning, or religious purposes, as well as objects found in certain religious contexts, such as ancient monuments or temple decorations.

*Section 295:*

*Whoever sells, lets to hire, distributes, exhibits or circulates to any child any such obscene object as is referred to in section 294, or offers or attempts so to do, shall be punished on first conviction with imprisonment of either description for a term which may extend to three years, and with fine which may extend to two thousand rupees, and, in the event of a second or subsequent conviction, with imprisonment of either description for a term which may extend to seven years, and also with fine which may extend to five thousand rupees.*

**Simple Explanation:** This section specifically targets the sale, distribution, exhibition, or circulation of obscene objects to children. If someone is found guilty of offering or attempting to do so, they can face imprisonment of up to three years and a fine of up to two thousand rupees for the first conviction. For any subsequent conviction, the punishment can increase to up to seven years of imprisonment and a fine of up to five thousand rupees.

*Section 296:*

*Whoever, to the annoyance of others, -*

*(a) does any obscene act in any public place; or*

*(b) sings, recites or utters any obscene song, ballad or words, in or near any public place,*

*shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to one thousand rupees, or with both.*

**Simple Explanation:** This section deals with individuals who commit acts that are considered obscene in public spaces, either by performing such acts or by singing, reciting, or uttering obscene words or songs. Anyone found guilty of doing so may face imprisonment of up to three months, a fine of up to one thousand rupees, or both.

*Section 297:*

*(1) Whoever keeps any office or place for the purpose of drawing any lottery not being a State lottery or a lottery authorised by the State Government, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.*

*(2) Whoever publishes any proposal to pay any sum, or to deliver any goods, or to do or forbear from doing anything for the benefit of any person, on any event or contingency relative or applicable to the drawing of any ticket, lot, number or figure in any such lottery, shall be punished with fine which may extend to five thousand rupees.*

**Simple Explanation:** This section addresses illegal lotteries. It punishes individuals who keep offices or places for the purpose of conducting unauthorized lotteries, with imprisonment for up to six months, a fine, or both. Additionally, anyone who publishes proposals to offer money, goods, or services based on events related to an unauthorized lottery can be fined up to five thousand rupees.

*Section 298:*

*Whoever destroys, damages or defiles any place of worship, or any object held sacred by any class of persons with the intention of thereby insulting the religion of any class of persons or with the knowledge that any class of persons is likely to*

*consider such destruction, damage or defilement as an insult to their religion, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation:** This section punishes individuals who destroy, damage, or defile places of worship or sacred objects with the intention of insulting a particular religion or knowing that such actions are likely to be seen as an insult by followers of that religion. The punishment includes imprisonment for up to two years, a fine, or both.

#### Section 299:

*Whoever, with deliberate and malicious intention of outraging the religious feelings of any class of citizens of India, by words, either spoken or written, or by signs or by visible representations or through electronic means or otherwise, insults or attempts to insult the religion or the religious beliefs of that class, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.*

**Simple Explanation:** This section punishes individuals who, with the deliberate and malicious intent of offending the religious feelings of any group in India, insult or attempt to insult their religion or beliefs. This can be done through words (spoken or written), signs, visible representations, or electronic means. The punishment includes imprisonment for up to three years, a fine, or both.

#### Section 300:

*Whoever voluntarily causes disturbance to any assembly lawfully engaged in the performance of religious worship, or religious ceremonies, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.*

**Simple Explanation:** This section punishes individuals who intentionally cause a disturbance to any assembly lawfully engaged in religious worship or ceremonies. The punishment for such an act may include imprisonment for up to one year, a fine, or both.

#### Section 301:

*Whoever, with the intention of wounding the feelings of any person, or of insulting the religion of any person, or with the knowledge that the feelings of any person are likely to be wounded, or that the religion of any person is likely to be insulted thereby, commits any trespass in any place of worship or on any place of sepulchre, or any place set apart for the performance of funeral rites or as a depository for the remains of the dead, or offers any indignity to any human corpse, or causes disturbance to any persons assembled for the performance of funeral ceremonies, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.*

**Simple Explanation:** This section deals with acts of trespass or disturbance in places of worship, funeral sites, or while funeral ceremonies are taking place, with the intention of insulting someone's religion or wounding their feelings. It also includes offering indignity to a human corpse. The punishment for such actions may include imprisonment for up to one year, a fine, or both.

#### Section 302:

*Whoever, with the deliberate intention of wounding the religious feelings of any person, utters any word or makes any sound in the hearing of that person or makes any gesture in the sight of that person or places any object in the sight of that person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.*

**Simple Explanation:** This section criminalizes the act of intentionally wounding someone's religious feelings through words, sounds, gestures, or objects placed in their sight. The punishment for this offense can include imprisonment for up to one year, a fine, or both.

#### Section 303:

## Section (1) - Theft

*Whoever, intending to take dishonestly any movable property out of the possession of any person without that person's consent, moves that property in order to such taking, is said to commit theft.*

### Explanations

*Explanation 1: A thing so long as it is attached to the earth, not being movable property, is not the subject of theft; but it becomes capable of being the subject of theft as soon as it is severed from the earth.*

*Explanation 2: A moving effected by the same act which affects the severance may be a theft.*

*Explanation 3: A person is said to cause a thing to move by removing an obstacle which prevented it from moving or by separating it from any other thing, as well as by actually moving it.*

*Explanation 4: A person, who by any means causes an animal to move, is said to move that animal, and to move everything which, in consequence of the motion so caused, is moved by that animal.*

*Explanation 5: The consent mentioned in this section may be express or implied, and may be given either by the person in possession, or by any person having for that purpose authority either express or implied.*

### Illustrations

*(a) A cuts down a tree on Z's ground, with the intention of dishonestly taking the tree out of Z's possession without Z's consent. Here, as soon as A has severed the tree in order to such taking, he has committed theft.*

*(b) A puts a bait for dogs in his pocket, and thus induces Z's dog to follow it. Here, if A's intention be dishonestly to take the dog out of Z's possession without Z's consent, A has committed theft as soon as Z's dog has begun to follow A.*

*(c) A meets a bullock carrying a box of treasure. He drives the bullock in a certain direction, in order that he may dishonestly take the treasure. As soon as the bullock begins to move, A has committed theft of the treasure.*

*(d) A being Z's servant, and entrusted by Z with the care of Z's plate, dishonestly runs away with the plate, without Z's consent. A has committed theft.*

*(e) Z, going on a journey, entrusts his plate to A, the keeper of a warehouse, till Z shall return. A carries the plate to a goldsmith and sells it. Here the plate was not in Z's possession. It could not therefore be taken out of Z's possession, and A has not committed theft, though he may have committed criminal breach of trust.*

*(f) A finds a ring belonging to Z on a table in the house which Z occupies. Here the ring is in Z's possession, and if A dishonestly removes it, A commits theft.*

*(g) A finds a ring lying on the highroad, not in the possession of any person. A, by taking it, commits no theft, though he may commit criminal misappropriation of property.*

*(h) A sees a ring belonging to Z lying on a table in Z's house. Not venturing to misappropriate the ring immediately for fear of search and detection, A hides the ring in a place where it is highly improbable that it will ever be found by Z, with the intention of taking the ring from the hiding place and selling it when the loss is forgotten. Here A, at the time of first moving the ring, commits theft.*

*(i) A delivers his watch to Z, a jeweler, to be regulated. Z carries it to his shop. A, not owing to the jeweler any debt for which the jeweler might lawfully detain the watch as a security, enters the shop openly, takes his watch by force out of Z's hand, and carries it away. Here A, though he may have committed criminal trespass and assault, has not committed theft, in as much as what he did was not done dishonestly.*

*(j) If A owes money to Z for repairing the watch, and if Z retains the watch lawfully as a security for the debt, and A takes the watch out of Z's possession, with the intention of depriving Z of the property as a security for his debt, he commits theft, in as much as he takes it dishonestly.*

*(k) Again, if A, having pawned his watch to Z, takes it out of Z's possession without Z's consent, not having paid what he borrowed on the watch, he commits theft, though the watch is his own property in as much as he takes it dishonestly.*

*(l) A takes an article belonging to Z out of Z's possession without Z's consent, with the intention of keeping it until he obtains money from Z as a reward for its restoration. Here A takes dishonestly; A has therefore committed theft.*

(m) A, being on friendly terms with Z, goes into Z's library in Z's absence, and takes away a book without Z's express consent for the purpose merely of reading it, and with the intention of returning it. Here, it is probable that A may have conceived that he had Z's implied consent to use Z's book. If this was A's impression, A has not committed theft.

(n) A asks charity from Z's wife. She gives A money, food and clothes, which A knows to belong to Z her husband. Here it is probable that A may conceive that Z's wife is authorised to give away alms. If this was A's impression, A has not committed theft.

(o) A is the paramour of Z's wife. She gives a valuable property, which A knows to belong to her husband Z, and to be such property as she has no authority from Z to give. If A takes the property dishonestly, he commits theft.

(p) A, in good faith, believing property belonging to Z to be A's own property, takes that property out of Z's possession. Here, as A does not take dishonestly, he does not commit theft.

## **Section (2) - Punishment for Theft**

Whoever commits theft shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both and in case of second or subsequent conviction of any person under this section, he shall be punished with rigorous imprisonment for a term which shall not be less than one year but which may extend to five years and with fine:

Provided that in cases of theft where the value of the stolen property is less than five thousand rupees, and a person is convicted for the first time, shall upon return of the value of property or restoration of the stolen property, shall be punished with community service.

### **Simple Explanation:**

#### **Section (1) - Theft**

**Theft occurs when someone, with the intent to dishonestly take movable property from another person's possession without consent, moves that property.**

**Explanation 1: An item becomes movable property once it is severed from the earth (e.g., a tree).**

**Explanation 2: Moving an item as part of the severance process can still qualify as theft.**

**Explanation 3: Moving an object includes removing an obstacle or separating it from something else.**

**Explanation 4: Moving an animal means moving the animal and anything the animal moves.**

**Explanation 5: Consent can be express or implied, given by the person in possession or someone authorized.**

### **Illustrations:**

This section provides various scenarios where theft occurs, such as when a person takes property (e.g., a tree, ring, or animal) without consent or with dishonest intent, and even includes cases where a person believes they have implied consent or where an object is taken under mistaken belief of ownership.

## **Section (2) - Punishment for Theft**

**Punishment for Theft: First Offense: Imprisonment for up to 3 years, a fine, or both. Second or Subsequent Offense: Imprisonment for at least 1 year but up to 5 years, and a fine.**

### **Special Provisions:**

**If the stolen property's value is less than ₹5,000 and it's the first offense, and if the property is returned, the offender may be sentenced to community service instead of imprisonment.**

## **Section 304:**

(1) Theft is snatching if, in order to commit theft, the offender suddenly or quickly or forcibly seizes or secures or grabs or takes away from any person or from his possession any movable property.

(2) Whoever commits snatching, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

**Simple Explanation: Snatching, as defined in Section (1), refers to the act of forcibly, suddenly, or quickly seizing or taking away any movable property from a person or their possession in order to commit theft. Section (2) stipulates**

**that anyone found guilty of snatching shall be punished with imprisonment of either description for a term which may extend to three years, along with the possibility of a fine.**

*Section 305:*

*Whoever commits theft -*

*(a) in any building, tent or vessel used as a human dwelling or used for the custody of property; or*

*(b) of any means of transport used for the transport of goods or passengers; or*

*(c) of any article or goods from any means of transport used for the transport of goods or passengers; or*

*(d) of idol or icon in any place of worship; or*

*(e) of any property of the Government or of a local authority,*

*shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

**Simple Explanation: Whoever commits theft in specific circumstances, such as in a building, tent, or vessel used as a human dwelling or for the custody of property, or by stealing a means of transport used for goods or passenger transport, or by taking any article or goods from such a transport, or by stealing an idol or icon from a place of worship, or by committing theft of government or local authority property, shall be punished with imprisonment of either description for a term which may extend to seven years and shall also be liable to a fine.**

*Section 306:*

*Whoever, being a clerk or servant, or being employed in the capacity of a clerk or servant, commits theft in respect of any property in the possession of his master or employer, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

**Simple Explanation: Whoever, being a clerk or servant, or employed in such a capacity, commits theft of any property belonging to or in the possession of their master or employer shall be punished with imprisonment of either description for a term which may extend to seven years and shall also be liable to a fine.**

*Section 307:*

*Whoever commits theft, having made preparation for causing death, or hurt, or restraint, or fear of death, or of hurt, or of restraint, to any person, in order to the committing of such theft, or in order to the effecting of his escape after the committing of such theft, or in order to the retaining of property taken by such theft, shall be punished with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.*

*Illustrations*

*(a) A commits theft on property in Z's possession; and while committing this theft, he has a loaded pistol under his garment, having provided this pistol for the purpose of hurting Z in case Z should resist. A has committed the offence defined in this section.*

*(b) A picks Z's pocket, having posted several of his companions near him, in order that they may restrain Z, if Z should perceive what is passing and should resist, or should attempt to apprehend A. A has committed the offence defined in this section.*

**Simple Explanation: Whoever commits theft after making preparations to cause death, hurt, restraint, or fear of death, hurt, or restraint to any person—whether to facilitate the theft, ensure escape after committing the theft, or retain stolen property—shall be punished with rigorous imprisonment for a term that may extend to ten years and shall also be liable to a fine. For example, if A commits theft of property in Z's possession while carrying a loaded pistol under his garment, intending to use it to harm Z if he resists, A has committed the offense under this section. Similarly, if A picks Z's pocket while positioning his accomplices nearby to restrain Z in case he notices the theft and resists or tries to apprehend A, A has committed the offense under this section.**

**Section 308:**

*(1) Whoever intentionally puts any person in fear of any injury to that person, or to any other, and thereby dishonestly induces the person so put in fear to deliver to any person any property, or valuable security or anything signed or sealed which may be converted into a valuable security, commits extortion.*

**Illustrations**

*(a) A threatens to publish a defamatory libel concerning Z unless Z gives him money. He thus induces Z to give him money. A has committed extortion.*

*(b) A threatens Z that he will keep Z's child in wrongful confinement, unless Z will sign and deliver to A a promissory note binding Z to pay certain monies to A. Z signs and delivers the note. A has committed extortion.*

*(c) A threatens to send club-men to plough up Z's field unless Z will sign and deliver to B a bond binding Z under a penalty to deliver certain produce to B, and thereby induces Z to sign and deliver the bond. A has committed extortion.*

*(d) A, by putting Z in fear of grievous hurt, dishonestly induces Z to sign or affix his seal to a blank paper and deliver it to A. Z signs and delivers the paper to A. Here, as the paper so signed may be converted into a valuable security, A has committed extortion.*

*(e) A threatens Z by sending a message through an electronic device that "Your child is in my possession, and will be put to death unless you send me one lakh rupees." A thus induces Z to give him money. A has committed extortion.*

*(2) Whoever commits extortion shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.*

*(3) Whoever, in order to the committing of extortion, puts any person in fear, or attempts to put any person in fear, of any injury, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

*(4) Whoever, in order to the committing of extortion, puts or attempts to put any person in fear of death or of grievous hurt to that person or to any other, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

*(5) Whoever commits extortion by putting any person in fear of death or of grievous hurt to that person or to any other, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

*(6) Whoever, in order to the committing of extortion, puts or attempts to put any person in fear of an accusation, against that person or any other, of having committed, or attempted to commit, an offence punishable with death or with imprisonment for life, or with imprisonment for a term which may extend to ten years, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

*(7) Whoever commits extortion by putting any person in fear of an accusation against that person or any other, of having committed or attempted to commit any offence punishable with death, or with imprisonment for life, or with imprisonment for a term which may extend to ten years, or of having attempted to induce any other person to commit such offence, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation:** Extortion occurs when a person intentionally puts another in fear of injury to themselves or others and, through this fear, dishonestly induces them to deliver property, valuable security, or any signed or sealed document that can be converted into valuable security. For instance, if A threatens to publish defamatory material about Z unless Z gives him money, or if A threatens Z with wrongful confinement of Z's child to force Z into signing a promissory note, A has committed extortion. Similarly, if A threatens Z via an electronic message that his child will be killed unless Z sends money, A has also committed extortion.

The punishment for extortion varies based on the severity of the act. Committing extortion generally carries imprisonment of up to seven years, a fine, or both. Attempting to put someone in fear to commit extortion is punishable by imprisonment of up to two years, a fine, or both. If the extortion involves fear of death or grievous hurt, the punishment may extend to seven years of imprisonment along with a fine. If extortion is committed by actually putting someone in fear of death or grievous hurt, the imprisonment term may extend to ten years, along



**with a fine. Additionally, if extortion involves putting someone in fear of being falsely accused of a serious offense punishable by death, life imprisonment, or a ten-year sentence, the punishment may extend to ten years of imprisonment and a fine.**

Section 309:

*(1) In all robbery there is either theft or extortion.*

*(2) Theft is robbery if, in order to the committing of the theft, or in committing the theft, or in carrying away or attempting to carry away property obtained by the theft, the offender, for that end voluntarily causes or attempts to cause to any person death or hurt or wrongful restraint, or fear of instant death or of instant hurt, or of instant wrongful restraint.*

*(3) Extortion is robbery if the offender, at the time of committing the extortion, is in the presence of the person put in fear, and commits the extortion by putting that person in fear of instant death, of instant hurt, or of instant wrongful restraint to that person or to some other person, and, by so putting in fear, induces the person so put in fear then and there to deliver up the thing extorted.*

*Explanation: The offender is said to be present if he is sufficiently near to put the other person in fear of instant death, of instant hurt, or of instant wrongful restraint.*

*Illustrations*

*(a) A holds Z down, and fraudulently takes Z's money and jewels from Z's clothes, without Z's consent. Here A has committed theft, and, in order to the committing of that theft, has voluntarily caused wrongful restraint to Z. A has therefore committed robbery.*

*(b) A meets Z on the high road, shows a pistol, and demands Z's purse. Z, in consequence, surrenders his purse. Here A has extorted the purse from Z by putting him in fear of instant hurt, and being at the time of committing the extortion in his presence. A has therefore committed robbery.*

*(c) A meets Z and Z's child on the high road. A takes the child, and threatens to fling it down a precipice, unless Z delivers his purse. Z, in consequence, delivers his purse. Here A has extorted the purse from Z, by causing Z to be in fear of instant hurt to the child who is there present. A has therefore committed robbery on Z.*

*(d) A obtains property from Z by saying- "Your child is in the hands of my gang, and will be put to death unless you send us ten thousand rupees". This is extortion, and punishable as such; but it is not robbery, unless Z is put in fear of the instant death of his child.*

*(4) Whoever commits robbery shall be punished with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine; and, if the robbery be committed on the highway between sunset and sunrise, the imprisonment may be extended to fourteen years.*

*(5) Whoever attempts to commit robbery shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.*

*(6) If any person, in committing or in attempting to commit robbery, voluntarily causes hurt, such person, and any other person jointly concerned in committing or attempting to commit such robbery, shall be punished with imprisonment for life, or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation: Robbery involves either theft or extortion. Theft becomes robbery when, during the act of stealing or while escaping with stolen property, the offender voluntarily causes or attempts to cause death, hurt, wrongful restraint, or fear of instant death, hurt, or wrongful restraint. Extortion becomes robbery when the offender, in the presence of the victim, induces them to surrender property by putting them in fear of instant death, hurt, or wrongful restraint. The offender is considered "present" if they are close enough to instill such fear. For example, if A restrains Z and steals Z's money, or if A threatens Z with a weapon and demands a purse, A commits robbery. However, if A extorts money by threatening future harm rather than immediate danger, it remains extortion and not robbery.**

**The punishment for robbery includes rigorous imprisonment of up to ten years along with a fine. If committed on a highway between sunset and sunrise, the imprisonment may extend to fourteen years. An attempt to commit robbery is punishable by rigorous imprisonment of up to seven years and a fine. If, during robbery or its attempt, the**

**offender voluntarily causes hurt, they, along with any accomplices, may face life imprisonment or rigorous imprisonment of up to ten years, in addition to a fine.**

*Section 310:*

*(1) When five or more persons conjointly commit or attempt to commit a robbery, or where the whole number of persons conjointly committing or attempting to commit a robbery, and persons present and aiding such commission or attempt, amount to five or more, every person so committing, attempting or aiding, is said to commit dacoity.*

*(2) Whoever commits dacoity shall be punished with imprisonment for life, or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.*

*(3) If any one of five or more persons, who are conjointly committing dacoity, commits murder in so committing dacoity, every one of those persons shall be punished with death, or imprisonment for life, or rigorous imprisonment for a term which shall not be less than ten years, and shall also be liable to fine.*

*(4) Whoever makes any preparation for committing dacoity, shall be punished with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.*

*(5) Whoever is one of five or more persons assembled for the purpose of committing dacoity, shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.*

*(6) Whoever belongs to a gang of persons associated for the purpose of habitually committing dacoity, shall be punished with imprisonment for life, or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation: Dacoity occurs when five or more persons conjointly commit, attempt to commit, or aid in committing robbery. If the total number of offenders, including those assisting, reaches five or more, all individuals involved are guilty of dacoity. The punishment for dacoity includes life imprisonment or rigorous imprisonment of up to ten years, along with a fine. If any member of the group commits murder during the act of dacoity, all participants face penalties ranging from the death sentence to life imprisonment or rigorous imprisonment of no less than ten years, in addition to a fine.**

**Preparations for dacoity are punishable by rigorous imprisonment of up to ten years and a fine. Anyone assembling with five or more individuals for the purpose of committing dacoity can be sentenced to rigorous imprisonment of up to seven years and a fine. Additionally, membership in a gang habitually engaging in dacoity is punishable by life imprisonment or rigorous imprisonment of up to ten years, along with a fine.**

*Section 311:*

*If, at the time of committing robbery or dacoity, the offender uses any deadly weapon, or causes grievous hurt to any person, or attempts to cause death or grievous hurt to any person, the imprisonment with which such offender shall be punished shall not be less than seven years.*

**Simple Explanation: If, during the commission of robbery or dacoity, the offender uses any deadly weapon, inflicts grievous hurt, or attempts to cause death or grievous hurt to any person, the punishment shall include imprisonment for a term not less than seven years.**

*Section 312:*

*If, at the time of attempting to commit robbery or dacoity, the offender is armed with any deadly weapon, the imprisonment with which such offender shall be punished shall not be less than seven years.*

**Simple Explanation: If, during an attempt to commit robbery or dacoity, the offender is armed with any deadly weapon, the punishment shall include imprisonment for a term not less than seven years.**

*Section 313:*

*Whoever belongs to any gang of persons associated in habitually committing theft or robbery, and not being a gang of dacoits, shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.*

**Simple Explanation: Whoever is a member of a gang habitually engaged in committing theft or robbery, but not classified as a gang of dacoits, shall be punished with rigorous imprisonment for a term that may extend to seven years and shall also be liable to a fine.**

#### Section 314:

*Whoever dishonestly misappropriates or converts to his own use any movable property, shall be punished with imprisonment of either description for a term which shall not be less than six months but which may extend to two years and with fine.*

#### Illustrations

*(a) A takes property belonging to Z out of Z's possession, in good faith believing at the time when he takes it, that the property belongs to himself. A is not guilty of theft; but if A, after discovering his mistake, dishonestly appropriates the property to his own use, he is guilty of an offence under this section.*

*(b) A, being on friendly terms with Z, goes into Z's library in Z's absence, and takes away a book without Z's express consent. Here, if A was under the impression that he had Z's implied consent to take the book for the purpose of reading it, A has not committed theft. But, if A afterwards sells the book for his own benefit, he is guilty of an offence under this section.*

*(c) A and B, being joint owners of a horse. A takes the horse out of B's possession, intending to use it. Here, as A has a right to use the horse, he does not dishonestly misappropriate it. But, if A sells the horse and appropriates the whole proceeds to his own use, he is guilty of an offence under this section.*

#### Explanation 1

*A dishonest misappropriation for a time only is a misappropriation within the meaning of this section.*

#### Illustration

*A finds a Government promissory note belonging to Z, bearing a blank endorsement. A, knowing that the note belongs to Z, pledges it with a banker as a security for a loan, intending at a future time to restore it to Z. A has committed an offence under this section.*

#### Explanation 2

*A person who finds property not in the possession of any other person, and takes such property for the purpose of protecting it for, or of restoring it to, the owner, does not take or misappropriate it dishonestly, and is not guilty of an offence; but he is guilty of the offence above defined, if he appropriates it to his own use, when he knows or has the means of discovering the owner, or before he has used reasonable means to discover and give notice to the owner and has kept the property a reasonable time to enable the owner to claim it.*

*What are reasonable means or what is a reasonable time in such a case, is a question of fact.*

*It is not necessary that the finder should know who is the owner of the property, or that any particular person is the owner of it; it is sufficient if, at the time of appropriating it, he does not believe it to be his own property, or in good faith believe that the real owner cannot be found.*

#### Illustrations

*(a) A finds a rupee on the high road, not knowing to whom the rupee belongs. A picks up the rupee. Here A has not committed the offence defined in this section.*

*(b) A finds a letter on the road, containing a bank-note. From the direction and contents of the letter he learns to whom the note belongs. He appropriates the note. He is guilty of an offence under this section.*

*(c) A finds a cheque payable to bearer. He can form no conjecture as to the person who has lost the cheque. But the name of the person, who has drawn the cheque, appears. A knows that this person can direct him to the person in whose favour*

*the cheque was drawn. A appropriates the cheque without attempting to discover the owner. He is guilty of an offence under this section.*

*(d) A sees Z drop his purse with money in it. A picks up the purse with the intention of restoring it to Z, but afterwards appropriates it to his own use. A has committed an offence under this section.*

*(e) A finds a purse with money, not knowing to whom it belongs; he afterwards discovers that it belongs to Z, and appropriates it to his own use. A is guilty of an offence under this section.*

*(f) A finds a valuable ring, not knowing to whom it belongs. A sells it immediately without attempting to discover the owner. A is guilty of an offence under this section.*

**Simple Explanation:** Whoever dishonestly misappropriates or converts to their own use any movable property shall be punished with imprisonment of either description for a term not less than six months, which may extend to two years, and shall also be liable to a fine.

**Illustrations:**

**(a)** A takes property belonging to Z, believing in good faith that it is his own. However, upon realizing the mistake, if A dishonestly appropriates the property, he is guilty under this section.

**(b)** A takes a book from Z's library, believing he has Z's implied consent. If A later sells the book for personal gain, he commits an offence under this section.

**(c)** A and B jointly own a horse. A takes the horse to use, which is not an offence. However, if A sells it and keeps the proceeds, he is guilty under this section.

**Explanations:**

**Explanation 1:** Temporarily misappropriating property is still considered misappropriation.

**Example:** A finds a government promissory note belonging to Z and pledges it as security for a loan, intending to return it later. A has committed an offence.

**Explanation 2:** A person who finds lost property and takes it to return to the owner is not guilty. However, if they knowingly keep it without attempting to find the owner, they are guilty under this section.

**Additional Illustrations:**

**(a)** A finds a rupee on the road without knowing the owner—no offence.

**(b)** A finds a letter with a banknote, learns the owner's identity, and keeps it—offence committed.

**(c)** A finds a cheque payable to the bearer, can trace the owner but keeps it—offence committed.

**(d)** A sees Z drop a purse, picks it up intending to return it but later keeps it—offence committed.

**(e)** A finds a purse, learns it belongs to Z, but keeps it—offence committed.

**(f)** A finds a ring, sells it without attempting to find the owner—offence committed.

**Section 315:**

*Whoever dishonestly misappropriates or converts to his own use any property, knowing that such property was in the possession of a deceased person at the time of that person's decease, and has not since been in the possession of any person legally entitled to such possession, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine, and if the offender at the time of such person's decease was employed by him as a clerk or servant, the imprisonment may extend to seven years.*

**Illustration**

*Z dies in possession of furniture and money. His servant A, before the money comes into the possession of any person entitled to such possession, dishonestly misappropriates it. A has committed the offence defined in this section.*

**Simple Explanation:** Whoever dishonestly misappropriates or converts to their own use any property, knowing that such property was in the possession of a deceased person at the time of their death and has not since been in the possession of any legally entitled person, shall be punished with imprisonment of either description for a term which may extend to three years and shall also be liable to a fine. If the offender was employed as a clerk or servant by the deceased at the time of their death, the imprisonment may extend to seven years.

**Illustration:**

**Z dies while in possession of furniture and money. Before the money comes into the possession of a legally entitled person, his servant A dishonestly misappropriates it. A has committed the offence defined in this section.**

Section 316:

*(1) Whoever, being in any manner entrusted with property, or with any dominion over property, dishonestly misappropriates or converts to his own use that property, or dishonestly uses or disposes of that property in violation of any direction of law prescribing the mode in which such trust is to be discharged, or of any legal contract, express or implied, which he has made touching the discharge of such trust, or wilfully suffers any other person so to do, commits criminal breach of trust.*

*Explanation 1*

*A person, being an employer of an establishment whether exempted under section 17 of the Employees' Provident Funds and Miscellaneous Provisions Act, 1952 or not who deducts the employee's contribution from the wages payable to the employee for credit to a Provident Fund or Family Pension Fund established by any law for the time being in force, shall be deemed to have been entrusted with the amount of the contribution so deducted by him and if he makes default in the payment of such contribution to the said Fund in violation of the said law, shall be deemed to have dishonestly used the amount of the said contribution in violation of a direction of law as aforesaid.*

*Explanation 2*

*A person, being an employer, who deducts the employees' contribution from the wages payable to the employee for credit to the Employees' State Insurance Fund held and administered by the Employees' State Insurance Corporation established under the Employees' State Insurance Act, 1948 shall be deemed to have been entrusted with the amount of the contribution so deducted by him and if he makes default in the payment of such contribution to the said Fund in violation of the said Act, shall be deemed to have dishonestly used the amount of the said contribution in violation of a direction of law as aforesaid.*

*Illustrations*

*(a) A, being executor to the will of a deceased person, dishonestly disobeys the law which directs him to divide the effects according to the will, and appropriates them to his own use. A has committed criminal breach of trust.*

*(b) A is a warehouse-keeper. Z, going on a journey, entrusts his furniture to A, under a contract that it shall be returned on payment of a stipulated sum for warehouse room. A dishonestly sells the goods. A has committed criminal breach of trust.*

*(c) A, residing in Kolkata, is agent for Z, residing at Delhi. There is an express or implied contract between A and Z, that all sums remitted by Z to A shall be invested by A, according to Z's direction. Z remits one lakh of rupees to A, with directions to A to invest the same in Company's paper. A dishonestly disobeys the directions and employs the money in his own business. A has committed criminal breach of trust.*

*(d) But if A, in illustration (c), not dishonestly but in good faith, believing that it will be more for Z's advantage to hold shares in the Bank of Bengal, disobeys Z's directions, and buys shares in the Bank of Bengal, for Z, instead of buying Company's paper, here, though Z should suffer loss, and should be entitled to bring a civil action against A, on account of that loss, yet A, not having acted dishonestly, has not committed criminal breach of trust.*

*(e) A, a revenue-officer, is entrusted with public money and is either directed by law, or bound by a contract, express or implied, with the Government, to pay into a certain treasury all the public money which he holds. A dishonestly appropriates the money. A has committed criminal breach of trust.*

*(f) A, a carrier, is entrusted by Z with property to be carried by land or by water. A dishonestly misappropriates the property. A has committed criminal breach of trust.*

*(2) Whoever commits criminal breach of trust shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both.*

*(3) Whoever, being entrusted with property as a carrier, wharfinger or warehouse-keeper, commits criminal breach of trust in respect of such property, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

*(4) Whoever, being a clerk or servant or employed as a clerk or servant, and being in any manner entrusted in such capacity with property, or with any dominion over property, commits criminal breach of trust in respect of that property, shall be*

*punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

*(5) Whoever, being in any manner entrusted with property, or with any dominion over property in his capacity of a public servant or in the way of his business as a banker, merchant, factor, broker, attorney or agent commits criminal breach of trust in respect of that property, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation:** Whoever, being entrusted with property or having dominion over it, dishonestly misappropriates or converts it to their own use, or disposes of it in violation of any legal direction or contract, or willfully allows another person to do so, commits criminal breach of trust. Employers who deduct employee contributions for Provident or Pension Funds under the Employees' Provident Funds and Miscellaneous Provisions Act, 1952, or the Employees' State Insurance Fund under the Employees' State Insurance Act, 1948, and default on payment shall be deemed to have dishonestly misused the funds. Illustrations include an executor misappropriating estate assets, a warehouse-keeper selling entrusted goods, an agent misusing remitted money, and a public servant embezzling public funds. If an individual commits criminal breach of trust, they may face imprisonment for up to five years, a fine, or both. If the offender is a carrier, wharfinger, or warehouse-keeper, the punishment may extend to seven years of imprisonment and a fine. Clerks or servants entrusted with property in their capacity may also face up to seven years of imprisonment and a fine. If a public servant, banker, merchant, broker, attorney, or agent commits criminal breach of trust, the punishment may be imprisonment for life or up to ten years, along with a fine.

#### *Section 317:*

*(1) Property, the possession whereof has been transferred by theft or extortion or robbery or cheating, and property which has been criminally misappropriated or in respect of which criminal breach of trust has been committed, is designated as stolen property, whether the transfer has been made, or the misappropriation or breach of trust has been committed, within or without India, but, if such property subsequently comes into the possession of a person legally entitled to the possession thereof, it then ceases to be stolen property.*

*(2) Whoever dishonestly receives or retains any stolen property, knowing or having reason to believe the same to be stolen property, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.*

*(3) Whoever dishonestly receives or retains any stolen property, the possession whereof he knows or has reason to believe to have been transferred by the commission of dacoity, or dishonestly receives from a person, whom he knows or has reason to believe to belong or to have belonged to a gang of dacoits, property which he knows or has reason to believe to have been stolen, shall be punished with imprisonment for life, or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.*

*(4) Whoever habitually receives or deals in property which he knows or has reason to believe to be stolen property, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

*(5) Whoever voluntarily assists in concealing or disposing of or making away with property which he knows or has reason to believe to be stolen property, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.*

**Simple Explanation:** Stolen property includes any property obtained through theft, extortion, robbery, cheating, criminal misappropriation, or breach of trust, whether the offense occurred within or outside India. However, if the property comes into the possession of a legally entitled person, it ceases to be stolen property. Anyone who dishonestly receives or retains stolen property, knowing or having reason to believe it is stolen, may face imprisonment for up to three years, a fine, or both. If the stolen property was transferred through dacoity or received from a known or suspected dacoit, the offender may face life imprisonment or rigorous imprisonment of up to ten years, along with a fine. Habitually dealing in stolen property also carries a penalty of life imprisonment or up to ten years of imprisonment and a fine. Additionally, assisting in concealing, disposing of, or making away with stolen property is punishable by up to three years of imprisonment, a fine, or both.

#### *Section 318:*

*(1) Whoever, by deceiving any person, fraudulently or dishonestly induces the person so deceived to deliver any property to any person, or to consent that any person shall retain any property, or intentionally induces the person so deceived to do or omit to do anything which he would not do or omit if he were not so deceived, and which act or omission causes or is likely to cause damage or harm to that person in body, mind, reputation or property, is said to cheat.*

*Explanation. - A dishonest concealment of facts is a deception within the meaning of this section.*

#### *Illustrations*

*(a) A, by falsely pretending to be in the Civil Service, intentionally deceives Z, and thus dishonestly induces Z to let him have on credit goods for which he does not mean to pay. A cheats.*

*(b) A, by putting a counterfeit mark on an article, intentionally deceives Z into a belief that this article was made by a certain celebrated manufacturer, and thus dishonestly induces Z to buy and pay for the article. A cheats.*

*(c) A, by exhibiting to Z a false sample of an article intentionally deceives Z into believing that the article corresponds with the sample, and thereby dishonestly induces Z to buy and pay for the article. A cheats.*

*(d) A, by tendering in payment for an article a bill on a house with which A keeps no money, and by which A expects that the bill will be dishonoured, intentionally deceives Z, and thereby dishonestly induces Z to deliver the article, intending not to pay for it. A cheats.*

*(e) A, by pledging as diamonds articles which he knows are not diamonds, intentionally deceives Z, and thereby dishonestly induces Z to lend money. A cheats.*

*(f) A intentionally deceives Z into a belief that A means to repay any money that Z may lend to him and thereby dishonestly induces Z to lend him money, A not intending to repay it. A cheats.*

*(g) A intentionally deceives Z into a belief that A means to deliver to Z a certain quantity of indigo plant which he does not intend to deliver, and thereby dishonestly induces Z to advance money upon the faith of such delivery. A cheats; but if A, at the time of obtaining the money, intends to deliver the indigo plant, and afterwards breaks his contract and does not deliver it, he does not cheat, but is liable only to a civil action for breach of contract.*

*(h) A intentionally deceives Z into a belief that A has performed A's part of a contract made with Z, which he has not performed, and thereby dishonestly induces Z to pay money. A cheats.*

*(i) A sells and conveys an estate to B. A, knowing that in consequence of such sale he has no right to the property, sells or mortgages the same to Z, without disclosing the fact of the previous sale and conveyance to B, and receives the purchase or mortgage money from Z. A cheats.*

*(2) Whoever cheats shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.*

*(3) Whoever cheats with the knowledge that he is likely thereby to cause wrongful loss to a person whose interest in the transaction to which the cheating relates, he was bound, either by law, or by a legal contract, to protect, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both.*

*(4) Whoever cheats and thereby dishonestly induces the person deceived to deliver any property to any person, or to make, alter or destroy the whole or any part of a valuable security, or anything which is signed or sealed, and which is capable of being converted into a valuable security, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

**Simple Explanation: Cheating occurs when a person deceives another, fraudulently or dishonestly inducing them to deliver property, consent to retain property, or act in a way they would not have otherwise, causing harm to their body, mind, reputation, or property. Dishonest concealment of facts also constitutes deception under this definition. Various acts, such as falsely claiming official status, misrepresenting goods, presenting false samples, issuing fraudulent payments, or pledging counterfeit valuables, are considered cheating.**

**A general act of cheating is punishable by imprisonment of up to three years, a fine, or both. If the cheating involves wrongful loss to someone whose interest the offender was legally bound to protect, the punishment may extend to five years of imprisonment, a fine, or both. When cheating dishonestly induces a person to deliver property, alter, or destroy a valuable security, the offender may face imprisonment for up to seven years and a fine.**

Section 319:

*(1) A person is said to cheat by personation if he cheats by pretending to be some other person, or by knowingly substituting one person for or another, or representing that he or any other person is a person other than he or such other person really is.*

*Explanation.—The offence is committed whether the individual personated is a real or imaginary person.*

*Illustrations.*

*(a) A cheats by pretending to be a certain rich banker of the same name. A cheats by personation.*

*(b) A cheats by pretending to be B, a person who is deceased. A cheats by personation.*

*(2) Whoever cheats by personation shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both*

**Simple Explanation: Cheating by personation occurs when a person deceives another by pretending to be someone else, knowingly substituting one person for another, or falsely representing themselves or another as a different individual. This offense applies regardless of whether the person being impersonated is real or fictional. Examples include falsely claiming to be a wealthy banker or impersonating a deceased person.**

**A person found guilty of cheating by personation may face imprisonment for up to five years, a fine, or both.**

Section 320:

*Whoever dishonestly or fraudulently removes, conceals or delivers to any person, or transfers or causes to be transferred to any person, without adequate consideration, any property, intending thereby to prevent, or knowing it to be likely that he will thereby prevent, the distribution of that property according to law among his creditors or the creditors of any other person, shall be punished with imprisonment of either description for a term which shall not be less than six months but which may extend to two years, or with fine, or with both.*

**Simple Explanation: This provision penalizes any person who dishonestly or fraudulently removes, conceals, delivers, or transfers property without adequate consideration, with the intent to prevent or the knowledge that such an act is likely to prevent the lawful distribution of that property among creditors. The punishment for this offense includes imprisonment for a minimum of six months, which may extend up to two years, or a fine, or both.**

Section 321:

*Whoever dishonestly or fraudulently prevents any debt or demand due to himself or to any other person from being made available according to law for payment of his debts or the debts of such other person, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation: This provision penalizes anyone who dishonestly or fraudulently prevents a debt or demand due to themselves or another person from being lawfully used to pay off debts. The punishment for this offense includes imprisonment for up to two years, or a fine, or both.**

Section 322:

*Whoever dishonestly or fraudulently signs, executes or becomes a party to any deed or instrument which purports to transfer or subject to any charge any property, or any interest therein, and which contains any false statement relating to the consideration for such transfer or charge, or relating to the person or persons for whose use or benefit it is really intended to operate, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.*

**Simple Explanation: This provision penalizes anyone who dishonestly or fraudulently signs, executes, or becomes a party to a deed or instrument that falsely represents the consideration for a transfer or charge on property, or misrepresents the intended beneficiary. The punishment includes imprisonment of up to three years,**



Section 323:

*Whoever dishonestly or fraudulently conceals or removes any property of himself or any other person, or dishonestly or fraudulently assists in the concealment or removal thereof, or dishonestly releases any demand or claim to which he is entitled, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.*

**Simple Explanation:** This provision criminalizes the dishonest or fraudulent concealment, removal, or assistance in concealing or removing any property belonging to oneself or another person. It also covers dishonestly releasing a rightful claim or demand. The punishment includes imprisonment of up to three years, a fine, or both.

Section 324:

*(1) Whoever with intent to cause, or knowing that he is likely to cause, wrongful loss or damage to the public or to any person, causes the destruction of any property, or any such change in any property or in the situation thereof as destroys or diminishes its value or utility, or affects it injuriously, commits mischief.*

**Explanation 1**

*It is not essential to the offence of mischief that the offender should intend to cause loss or damage to the owner of the property injured or destroyed. It is sufficient if he intends to cause, or knows that he is likely to cause, wrongful loss or damage to any person by injuring any property, whether it belongs to that person or not.*

**Explanation 2**

*Mischief may be committed by an act affecting property belonging to the person who commits the act, or to that person and others jointly.*

**Illustrations**

*(a) A voluntarily burns a valuable security belonging to Z intending to cause wrongful loss to Z. A has committed mischief.*

*(b) A introduces water into an ice-house belonging to Z and thus causes the ice to melt, intending wrongful loss to Z. A has committed mischief.*

*(c) A voluntarily throws into a river a ring belonging to Z, with the intention of thereby causing wrongful loss to Z. A has committed mischief.*

*(d) A, knowing that his effects are about to be taken in execution in order to satisfy a debt due from him to Z, destroys those effects, with the intention of thereby preventing Z from obtaining satisfaction of the debt, and of thus causing damage to Z. A has committed mischief.*

*(e) A having insured a ship, voluntarily causes the same to be cast away, with the intention of causing damage to the underwriters. A has committed mischief.*

*(f) A causes a ship to be cast away, intending thereby to cause damage to Z who has lent money on bottomry on the ship. A has committed mischief.*

*(g) A, having joint property with Z in a horse, shoots the horse, intending thereby to cause wrongful loss to Z. A has committed mischief.*

*(h) A causes cattle to enter upon a field belonging to Z, intending to cause and knowing that he is likely to cause damage to Z's crop. A has committed mischief.*

*(2) Whoever commits mischief shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.*

*(3) Whoever commits mischief and thereby causes loss or damage to any property including the property of Government or Local Authority shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.*

*(4) Whoever commits mischief and thereby causes loss or damage to the amount of twenty thousand rupees and more but less than one lakh rupees shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

*(5) Whoever commits mischief and thereby causes loss or damage to the amount of one lakh rupees or upwards, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both.*

*(6) Whoever commits mischief, having made preparation for causing to any person death, or hurt, or wrongful restraint, or fear of death, or of hurt, or of wrongful restraint, shall be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.*

**Simple Explanation:** This provision defines mischief as intentionally or knowingly causing destruction, damage, or loss to property, whether belonging to the offender or someone else. The offence does not require intent to harm the owner but rather intent to cause wrongful loss or damage. Various illustrations highlight different forms of mischief, such as burning valuable documents, damaging insured property, or introducing water to an ice-house to melt the ice.

**The punishment varies based on the severity of the damage:**

- **General mischief:** Up to 6 months of imprisonment, a fine, or both.
- **Damage to government or local authority property:** Up to 1 year of imprisonment, a fine, or both.
- **Loss between ₹20,000 and ₹1,00,000:** Up to 2 years of imprisonment, a fine, or both.
- **Loss exceeding ₹1,00,000:** Up to 5 years of imprisonment, a fine, or both.
- **Mischief with preparation to cause death, hurt, or wrongful restraint:** Up to 5 years of imprisonment and a fine.

**Section 325:**

*Whoever commits mischief by killing, poisoning, maiming or rendering useless any animal shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both.*

**Simple Explanation:** This provision deals specifically with mischief involving harm to animals. It criminalizes acts such as killing, poisoning, maiming, or rendering an animal useless. The punishment for such an offence includes imprisonment for up to five years, a fine, or both. This section is particularly relevant for cases involving cruelty to animals, malicious harm to livestock, or intentional destruction of animals for wrongful gain or revenge.

**Section 326:**

*Whoever commits mischief by, -*

*(a) doing any act which causes, or which he knows to be likely to cause, a diminution of the supply of water for agricultural purposes, or for food or drink for human beings or for animals which are property, or for cleanliness or for carrying on any manufacture, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both;*

*(b) doing any act which renders or which he knows to be likely to render any public road, bridge, navigable river or navigable channel, natural or artificial, impassable or less safe for travelling or conveying property, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both;*

*(c) doing any act which causes or which he knows to be likely to cause an inundation or an obstruction to any public drainage attended with injury or damage, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both;*

*(d) destroying or moving any sign or signal used for navigation of rail, aircraft or ship or other thing placed as a guide for navigators, or by any act which renders any such sign or signal less useful as a guide for navigators, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both;*

*(e) destroying or moving any land-mark fixed by the authority of a public servant, or by any act which renders such land-mark less useful as such, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both;*

*(f) fire or any explosive substance intending to cause, or knowing it to be likely that he will thereby cause, damage to any property including agricultural produce, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;*

*(g) fire or any explosive substance, intending to cause, or knowing it to be likely that he will thereby cause, the destruction of any building which is ordinarily used as a place of worship or as a human dwelling or as a place for the custody of property, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation:** This provision categorizes different forms of *mischief* that have severe consequences and assigns appropriate punishments based on their impact. Here's a breakdown of the acts covered:

1. **Tampering with Water Supply (Clause a)** – If a person diminishes the water supply needed for agriculture, drinking, cleanliness, or manufacturing, they face up to *five years of imprisonment, a fine, or both*.
2. **Obstructing Roads, Bridges, or Waterways (Clause b)** – Acts that make public roads, bridges, or navigable channels unsafe or impassable are punishable with *up to five years of imprisonment, a fine, or both*.
3. **Causing Flooding or Drainage Obstruction (Clause c)** – Causing an *inundation or public drainage obstruction* leading to injury or damage attracts *up to five years of imprisonment, a fine, or both*.
4. **Tampering with Navigation or Safety Signals (Clause d)** – Destroying or moving *signs or signals* used for navigation (rail, aircraft, or ship) is punishable with *up to seven years of imprisonment, a fine, or both*.
5. **Tampering with Official Landmarks (Clause e)** – Destroying or moving *landmarks fixed by authorities* leads to *up to one year of imprisonment, a fine, or both*.
6. **Mischief by Fire or Explosives (Clause f)** – Using *fire or explosives* to damage property (including agricultural produce) can result in *up to seven years of imprisonment and a fine*.
7. **Mischief by Fire or Explosives Against Places of Worship or Dwellings (Clause g)** – If *fire or explosives* are used to destroy a *place of worship, human dwelling, or storage property*, the punishment is *life imprisonment or up to ten years of imprisonment, along with a fine*.

This provision aims to protect public infrastructure, safety signals, property, and essential resources like water while imposing severe penalties for destruction by fire or explosives.

Section 327:

*(1) Whoever commits mischief to any rail, aircraft, or a decked vessel or any vessel of a burden of twenty tons or upwards, intending to destroy or render unsafe, or knowing it to be likely that he will thereby destroy or render unsafe, that rail, aircraft or vessel, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

*(2) Whoever commits, or attempts to commit, by fire or any explosive substance, such mischief as is described in sub-section (1), shall be punished with imprisonment for life or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation:** This provision criminalizes acts of *mischief* targeting essential transportation infrastructure, including railways, aircraft, and large vessels (20 tons or more). If a person intentionally or knowingly damages or renders these assets unsafe, they face up to 10 years of imprisonment and a fine. The law recognizes the serious consequences of such offenses, as they can endanger lives and disrupt critical public services. By imposing strict penalties, it seeks to deter individuals from interfering with transportation systems that are vital for public safety and economic stability.

The punishment becomes even more severe if the act involves fire or explosive substances, as such methods pose a higher risk of destruction and loss of life. In these cases, the offender may face life imprisonment or up to 10 years of imprisonment, along with a fine. The law underscores the potential for catastrophic consequences, treating such

**offenses as grave threats to public security. This stringent approach reinforces the importance of safeguarding infrastructure that plays a crucial role in national connectivity and safety.**

*Section 328:*

*Whoever intentionally runs any vessel aground or ashore, intending to commit theft of any property contained therein or to dishonestly misappropriate any such property, or with intent that such theft or misappropriation of property may be committed, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation:** If someone deliberately causes a ship or vessel to run aground or ashore with the intent to steal or wrongfully take any property inside it, they can be punished. This also applies if they do it to help someone else commit theft or misappropriation. The punishment for this offense can be up to ten years in prison, along with a fine.

*Section 329:*

*(1) Whoever enters into or upon property in the possession of another with intent to commit an offence or to intimidate, insult or annoy any person in possession of such property or having lawfully entered into or upon such property, unlawfully remains there with intent thereby to intimidate, insult or annoy any such person or with intent to commit an offence is said to commit criminal trespass.*

*(2) Whoever commits criminal trespass by entering into or remaining in any building, tent or vessel used as a human dwelling or any building used as a place for worship, or as a place for the custody of property, is said to commit house-trespass.*

**Explanation.** - *The introduction of any part of the criminal trespasser's body is entering sufficient to constitute house-trespass.*

*(3) Whoever commits criminal trespass shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to five thousand rupees, or with both.*

*(4) Whoever commits house-trespass shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation:** Criminal trespass happens when a person enters someone else's property with the intent to commit a crime or to intimidate, insult, or annoy the owner. It also includes staying on the property unlawfully after entering legally. If someone trespasses into a home, place of worship, or a property used to store valuables, it is considered house-trespass.

For criminal trespass, the punishment can be up to three months in jail, a fine of up to ₹5,000, or both. House-trespass is more serious, with a punishment of up to one year in jail, a fine of up to ₹5,000, or both. Even partially entering a house, such as inserting a hand, is enough to be considered house-trespass.

*Section 330:*

*(1) Whoever commits house-trespass having taken precautions to conceal such house-trespass from some person who has a right to exclude or eject the trespasser from the building, tent or vessel which is the subject of the trespass, is said to commit lurking house-trespass.*

*(2) A person is said to commit house-breaking who commits house-trespass if he effects his entrance into the house or any part of it in any of the six ways hereinafter described; or if, being in the house or any part of it for the purpose of committing an offence, or having committed an offence therein, he quits the house or any part of it in any of the following ways, namely:--*

*(a) if he enters or quits through a passage made by himself, or by any abettor of the house-trespass, in order to the committing of the house-trespass;*

*(b) if he enters or quits through any passage not intended by any person, other than himself or an abettor of the offence, for human entrance; or through any passage to which he has obtained access by scaling or climbing over any wall or building;*

*(c) if he enters or quits through any passage which he or any abettor of the house-trespass has opened, in order to the committing of the house-trespass by any means by which that passage was not intended by the occupier of the house to be opened;*

*(d) if he enters or quits by opening any lock in order to the committing of the house-trespass, or in order to the quitting of the house after a house-trespass;*

*(e) if he effects his entrance or departure by using criminal force or committing an assault, or by threatening any person with assault;*

*(f) if he enters or quits by any passage which he knows to have been fastened against such entrance or departure, and to have been unfastened by himself or by an abettor of the house-trespass.*

**Explanation:** Any out-house or building occupied with a house, and between which and such house there is an immediate internal communication, is part of the house within the meaning of this section.

### **Illustrations**

*(a) A commits house-trespass by making a hole through the wall of Z's house, and putting his hand through the aperture. This is house-breaking.*

*(b) A commits house-trespass by creeping into a ship at a port-hole between decks. This is house-breaking.*

*(c) A commits house-trespass by entering Z's house through a window. This is house-breaking.*

*(d) A commits house-trespass by entering Z's house through the door, having opened a door which was fastened. This is house-breaking.*

*(e) A commits house-trespass by entering Z's house through the door, having lifted a latch by putting a wire through a hole in the door. This is house-breaking.*

*(f) A finds the key of Z's house door, which Z had lost, and commits house-trespass by entering Z's house, having opened the door with that key. This is house-breaking.*

*(g) Z is standing in his doorway. A forces a passage by knocking Z down, and commits house-trespass by entering the house. This is house-breaking.*

*(h) Z, the door-keeper of Y, is standing in Y's doorway. A commits house-trespass by entering the house, having deterred Z from opposing him by threatening to beat him. This is house-breaking.*

**Simple Explanation:** This section explains two types of serious trespassing offenses: lurking house-trespass and house-breaking.

- 1. Lurking House-Trespass:** If someone enters a house (or a tent or ship) secretly and takes special steps to hide their presence from the rightful owner or anyone who can remove them, it is called lurking house-trespass. The key element here is that the trespasser is deliberately concealing their entry.
- 2. House-Breaking:** This is a more serious form of house trespass where the entry or exit happens in a forceful or unlawful manner. The law identifies six specific ways in which house-breaking can occur:
  - Making a hole or breaking a passage to enter or exit.
  - Entering through an unusual or unintended passage (like a small opening or by climbing a wall).
  - Opening a closed passage in an unauthorized way.
  - Unlocking a door, breaking a lock, or using a key unlawfully.
  - Using force, assault, or threats to enter or leave.
  - Entering through a locked passage after unfastening it illegally.

Section 331:

- (1) Whoever commits lurking house-trespass or house-breaking, shall be punished with imprisonment of either description for a term which may extend to two years, and shall also be liable to fine.
- (2) Whoever commits lurking house-trespass or house-breaking after sunset and before sunrise, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.
- (3) Whoever commits lurking house-trespass or house-breaking, in order to the committing of any offence punishable with imprisonment, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine; and if the offence intended to be committed is theft, the term of the imprisonment may be extended to ten years.
- (4) Whoever commits lurking house-trespass or house-breaking after sunset and before sunrise, in order to the committing of any offence punishable with imprisonment, shall be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine; and, if the offence intended to be committed is theft, the term of the imprisonment may be extended to fourteen years.
- (5) Whoever commits lurking house-trespass, or house-breaking, having made preparation for causing hurt to any person, or for assaulting any person, or for wrongfully restraining any person, or for putting any person in fear of hurt or of assault or of wrongful restraint, shall be punished with imprisonment of either description or a term which may extend to ten years, and shall also be liable to fine.
- (6) Whoever commits lurking house-trespass or house-breaking after sunset and before sunrise, having made preparation for causing hurt to any person or for assaulting any person, or for wrongfully restraining any person, or for putting any person in fear of hurt, or of assault, or of wrongful restraint, shall be punished with imprisonment of either description for a term which may extend to fourteen years, and shall also be liable to fine.
- (7) Whoever, whilst committing lurking house-trespass or house-breaking, causes grievous hurt to any person or attempts to cause death or grievous hurt to any person, shall be punished with imprisonment for life, or imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.
- (8) If, at the time of the committing of lurking house-trespass or house-breaking after sunset and before sunrise, any person guilty of such offence shall voluntarily cause or attempt to cause death or grievous hurt to any person, every person jointly concerned in committing such lurking house-trespass or house-breaking after sunset and before sunrise, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

**Simple Explanation:** This section defines the punishments for lurking house-trespass and house-breaking, with penalties increasing based on the time of the crime, intent, and harm caused. A basic offense of house-breaking or lurking house-trespass is punishable by up to two years in prison and a fine, but if committed at night (between sunset and sunrise), the punishment increases to three years. If the break-in is done with the intent to commit another crime, the punishment extends to three years, and if the intended crime is theft, it can go up to ten years. When committed at night with the intent of theft or another offense, the punishment increases to five years or fourteen years in the case of theft.

If the trespasser has prepared to cause harm, assault, wrongful restraint, or instill fear, they can face up to ten years in prison and a fine. If this happens at night, the punishment increases to fourteen years. The most serious cases occur when the trespasser actually causes grievous hurt or attempts to kill someone, in which case they may face life imprisonment or up to ten years in jail along with a fine. If this happens at night, and any of the offenders voluntarily cause or attempt to cause death or grievous hurt, then everyone involved can be punished with life imprisonment or up to ten years in jail, plus a fine.

In summary, the law ensures stricter punishments for crimes committed at night, those involving theft, and cases where the offender is prepared for or causes violence. These provisions aim to protect individuals and their homes from serious threats, ensuring that those who break in with harmful intent face severe consequences.

Section 332:

*Whoever commits house-trespass in order to the committing of any offence--*

*(a) punishable with death, shall be punished with imprisonment for life, or with rigorous imprisonment for a term not exceeding ten years, and shall also be liable to fine;*

*(b) punishable with imprisonment for life, shall be punished with imprisonment of either description for a term not exceeding ten years, and shall also be liable to fine;*

*(c) punishable with imprisonment, shall be punished with imprisonment of either description for a term which may extend to two years, and shall also be liable to fine:*

*Provided that if the offence intended to be committed is theft, the term of the imprisonment may be extended to seven years.*

**Simple Explanation:** If someone trespasses into a house to commit a crime, their punishment depends on the severity of the intended offense. If the planned crime is punishable by death, they may face life imprisonment or up to ten years of rigorous imprisonment, along with a fine. If the intended crime carries life imprisonment, the punishment can be up to ten years. For other crimes, the jail term may extend to two years, but if the intent is theft, it can go up to seven years. This law ensures strict punishment for trespassers planning serious crimes.

#### Section 333:

*Whoever commits house-trespass, having made preparation for causing hurt to any person or for assaulting any person, or for wrongfully restraining any person, or for putting any person in fear of hurt, or of assault, or of wrongful restraint, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

**Simple Explanation:** If someone trespasses into a house after preparing to cause harm, assault, restrain someone, or create fear of harm, they can be punished with up to seven years in prison, along with a fine. This law ensures that those who enter a place with harmful intent face strict consequences to protect people's safety.

#### Section 334:

*(1) Whoever dishonestly or with intent to commit mischief, breaks open or unfastens any closed receptacle which contains or which he believes to contain property, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

*(2) Whoever, being entrusted with any closed receptacle which contains or which he believes to contain property, without having authority to open the same, dishonestly, or with intent to commit mischief, breaks open or unfastens that receptacle, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.*

**Simple Explanation:** If someone dishonestly or with the intent to cause mischief breaks open or unfastens a closed container that holds or is believed to hold property, they can face up to two years in prison, a fine, or both. If the person was entrusted with the container but opens it without authority, they can be punished with up to three years in prison, a fine, or both. This law ensures protection against unauthorized access to property.

#### Section 335:

*A person is said to make a false document or false electronic record -*

*(A) Who dishonestly or fraudulently -*

*(i) makes, signs, seals or executes a document or part of a document;*

*(ii) makes or transmits any electronic record or part of any electronic record;*

*(iii) affixes any electronic signature on any electronic record;*

*(iv) makes any mark denoting the execution of a document or the authenticity of the electronic signature, with the intention of causing it to be believed that such document or part of document, electronic record or electronic*

*signature was made, signed, sealed, executed, transmitted or affixed by or by the authority of a person by whom or by whose authority he knows that it was not made, signed, sealed, executed or affixed; or*

*(B) Who without lawful authority, dishonestly or fraudulently, by cancellation or otherwise, alters a document or an electronic record in any material part thereof, after it has been made, executed or affixed with electronic signature either by himself or by any other person, whether such person be living or dead at the time of such alteration; or*

*(C) Who dishonestly or fraudulently causes any person to sign, seal, execute or alter a document or an electronic record or to affix his electronic signature on any electronic record knowing that such person by reason of unsoundness of mind or intoxication can not, or that by reason of deception practised upon him, he does not know the contents of the document or electronic record or the nature of the alteration.*

#### *Illustrations*

*(a) A has a letter of credit upon B for rupees 10,000, written by Z. A, in order to defraud B, adds cipher to the 10,000, and makes the sum 1,00,000 intending that it may be believed by B that Z so wrote the letter. A has committed forgery.*

*(b) A, without Z's authority, affixes Z's seal to a document purporting to be a conveyance of an estate from Z to A, with the intention of selling the estate to B and thereby of obtaining from B the purchase-money. A has committed forgery.*

*(c) A picks up a cheque on a banker signed by B, payable to bearer, but without any sum having been inserted in the cheque. A fraudulently fills up the cheque by inserting the sum of ten thousand rupees. A commits forgery.*

*(d) A leaves with B, his agent, a cheque on a banker, signed by A, without inserting the sum payable and authorises B to fill up the cheque by inserting a sum not exceeding ten thousand rupees for the purpose of making certain payments. B fraudulently fills up the cheque by inserting the sum of twenty thousand rupees. B commits forgery.*

*(e) A draws a bill of exchange on himself in the name of B without B's authority, intending to discount it as a genuine bill with a banker and intending to take up the bill on its maturity. Here, as A draws the bill with intent to deceive the banker by leading him to suppose that he had the security of B, and thereby to discount the bill, A is guilty of forgery.*

*(f) Z's will contains these words-"I direct that all my remaining property be equally divided between A, B and C." A dishonestly scratches out B's name, intending that it may be believed that the whole was left to himself and C. A has committed forgery.*

*(g) A endorses a Government promissory note and makes it payable to Z or his order by writing on the bill the words "Pay to Z or his order" and signing the endorsement. B dishonestly erases the words "Pay to Z or his order", and thereby converts the special endorsement into a blank endorsement. B commits forgery.*

*(h) A sells and conveys an estate to Z. A afterwards, in order to defraud Z of his estate, executes a conveyance of the same estate to B, dated six months earlier than the date of the conveyance to Z, intending it to be believed that he had conveyed the estate to B before he conveyed it to Z. A has committed forgery.*

*(i) Z dictates his will to A. A intentionally writes down a different legatee from the legatee named by Z, and by representing to Z that he has prepared the will according to his instructions, induces Z to sign the will. A has committed forgery.*

*(j) A writes a letter and signs it with B's name without B's authority, certifying that A is a man of good character and in distressed circumstances from unforeseen misfortune, intending by means of such letter to obtain alms from Z and other persons. Here, as A made a false document in order to induce Z to part with property, A has committed forgery.*

*(k) A without B's authority writes a letter and signs it in B's name certifying to A's character, intending thereby to obtain employment under Z. A has committed forgery in as much as he intended to deceive Z by the forged certificate, and thereby to induce Z to enter into an express or implied contract for service.*

#### *Explanation 1*

*A man's signature of his own name may amount to forgery.*

#### *Illustrations*

*(a) A signs his own name to a bill of exchange, intending that it may be believed that the bill was drawn by another person of the same name. A has committed forgery.*



*(b) A writes the word "accepted" on a piece of paper and signs it with Z's name, in order that B may afterwards write on the paper a bill of exchange drawn by B upon Z, and negotiate the bill as though it had been accepted by Z. A is guilty of forgery; and if B, knowing the fact, draws the bill upon the paper pursuant to A's intention, B is also guilty of forgery.*

*(c) A picks up a bill of exchange payable to the order of a different person of the same name. A endorses the bill in his own name, intending to cause it to be believed that it was endorsed by the person to whose order it was payable; here A has committed forgery.*

*(d) A purchases an estate sold under execution of a decree against B. B, after the seizure of the estate, in collusion with Z, executes a lease of the estate, to Z at a nominal rent and for a long period and dates the lease six months prior to the seizure, with intent to defraud A, and to cause it to be believed that the lease was granted before the seizure. B, though he executes the lease in his own name, commits forgery by antedating it.*

*(e) A, a trader, in anticipation of insolvency, lodges effects with B for A's benefit, and with intent to defraud his creditors; and in order to give a colour to the transaction, writes a promissory note binding himself to pay to B a sum for value received, and antedates the note, intending that it may be believed to have been made before A was on the point of insolvency. A has committed forgery under the first head of the definition.*

#### *Explanation 2*

*The making of a false document in the name of a fictitious person, intending it to be believed that the document was made by a real person, or in the name of a deceased person, intending it to be believed that the document was made by the person in his lifetime, may amount to forgery.*

#### *Illustration*

*A draws a bill of exchange upon a fictitious person, and fraudulently accepts the bill in the name of such fictitious person with intent to negotiate it. A commits forgery.*

#### *Explanation 3*

*For the purposes of this section, the expression "affixing electronic signature" shall have the meaning assigned to it in clause (d) of sub-section (1) of section 2 of the Information Technology Act, 2000.*

**Simple Explanation: A person creates a false document or electronic record if they dishonestly or fraudulently make, sign, seal, or execute a document or electronic record in a way that falsely appears to be authorized by someone else. This includes forging electronic signatures or making marks that falsely indicate authenticity. It also applies to altering an existing document or electronic record in a significant way without lawful authority. This law ensures protection against forgery and unauthorized tampering of documents and electronic records.**

**Forgery happens when someone dishonestly or fraudulently makes, signs, alters, or executes a document or electronic record to deceive others into believing it is genuine. This includes forging electronic signatures, altering documents without authority, or tricking someone into signing a document when they don't understand its contents. Even signing one's own name can be forgery if done to mislead others. The law also considers creating false documents in the name of a fictitious or deceased person as forgery. These rules protect individuals and institutions from fraud and ensure the authenticity of important records.**

#### *Section 336:*

*(1) Whoever makes any false document or false electronic record or part of a document or electronic record, with intent to cause damage or injury, to the public or to any person, or to support any claim or title, or to cause any person to part with property, or to enter into any express or implied contract, or with intent to commit fraud or that fraud may be committed, commits forgery.*

*(2) Whoever commits forgery shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

*(3) Whoever commits forgery, intending that the document or electronic record forged shall be used for the purpose of cheating, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

*(4) Whoever commits forgery, intending that the document or electronic record forged shall harm the reputation of any party, or knowing that it is likely to be used for that purpose, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.*

**Simple Explanation:** Forgery occurs when a person creates a false document or electronic record with the intent to cause harm, support a false claim, deceive someone into parting with property, or commit fraud. The punishment for forgery varies based on intent—basic forgery can lead to imprisonment of up to two years or a fine, or both. If the forged document is intended for cheating, the punishment may extend to seven years with a fine. If it is meant to harm someone's reputation, imprisonment may extend to three years, along with a fine. These provisions ensure that fraudulent manipulation of documents is strictly penalized.

#### Section 337:

*Whoever forges a document or an electronic record, purporting to be a record or proceeding of or in a Court or an identity document issued by Government including voter identity card or Aadhaar Card, or a register of birth, marriage or burial, or a register kept by a public servant as such, or a certificate or document purporting to be made by a public servant in his official capacity, or an authority to institute or defend a suit, or to take any proceedings therein, or to confess judgment, or a power of attorney, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

#### Explanation

*For the purposes of this section, "register" includes any list, data or record of any entries maintained in the electronic form as defined in clause (r) of sub-section (1) of section 2 of the Information Technology Act, 2000.*

**Simple Explanation:** If a person forges a document or electronic record that appears to be an official court record, government-issued identity document (such as a voter ID or Aadhaar card), a birth, marriage, or death register, or any certificate made by a public servant, they can face up to seven years of imprisonment along with a fine. This also applies to forging documents like power of attorney or any authority to represent someone in legal proceedings. The law ensures strict punishment for such forgeries to protect public trust in official records. Additionally, electronic registers are included under this provision as per the Information Technology Act, 2000.

#### Section 338:

*Whoever forges a document which purports to be a valuable security or a will, or an authority to adopt a son, or which purports to give authority to any person to make or transfer any valuable security, or to receive the principal, interest or dividends thereon, or to receive or deliver any money, movable property, or valuable security, or any document purporting to be an acquittance or receipt acknowledging the payment of money, or an acquittance or receipt for the delivery of any movable property or valuable security, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.*

**Simple Explanation:** If a person forges a document that appears to be a valuable security, a will, an authority to adopt a child, or a document granting someone the power to transfer securities, receive payments, or deliver property, they can face imprisonment for life or up to ten years, along with a fine. This also applies to forged receipts or acquittances acknowledging payments or deliveries. The law treats such forgery as a serious offense due to its potential impact on financial and legal transactions.

#### Section 339:

*Whoever has in his possession any document or electronic record, knowing the same to be forged and intending that the same shall fraudulently or dishonestly be used as genuine, shall, if the document or electronic record is one of the description mentioned in section 337 of this Sanhita, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine; and if the document is one of the description mentioned in section 338, shall be punished with imprisonment for life, or with imprisonment of either description, for a term which may extend to seven years, and shall also be liable to fine.*

**Simple Explanation:** Anyone who knowingly possesses a forged document or electronic record with the intent to use it fraudulently or dishonestly as genuine can face severe punishment. If the forged document falls under Section

**337, the person may be imprisoned for up to seven years and fined. If it falls under Section 338, the punishment increases to life imprisonment or up to seven years, along with a fine. This law ensures that even possessing forged documents with wrongful intent is treated as a serious crime.**

**Section 340:**

*(1) A false document or electronic record made wholly or in part by forgery is designated a forged document or electronic record.*

*(2) Whoever fraudulently or dishonestly uses as genuine any document or electronic record which he knows or has reason to believe to be a forged document or electronic record, shall be punished in the same manner as if he had forged such document or electronic record.*

**Simple Explanation: A forged document or electronic record refers to any document or record that has been wholly or partially created through forgery. Anyone who fraudulently or dishonestly uses such a document or electronic record, knowing or believing it to be forged, will face the same punishment as the person who forged it. This provision ensures that both the creator and the user of forged documents are held equally accountable.**

**Section 341:**

*(1) Whoever makes or counterfeits any seal, plate or other instrument for making an impression, intending that the same shall be used for the purpose of committing any forgery which would be punishable under section 338 of this Sanhita, or, with such intent, has in his possession any such seal, plate or other instrument, knowing the same to be counterfeit, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

*(2) Whoever makes or counterfeits any seal, plate or other instrument for making an impression, intending that the same shall be used for the purpose of committing any forgery which would be punishable under any section of this Chapter other than section 338, or, with such intent, has in his possession any such seal, plate or other instrument, knowing the same to be counterfeit, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

*(3) Whoever possesses any seal, plate or other instrument knowing the same to be counterfeit, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.*

*(4) Whoever fraudulently or dishonestly uses as genuine any seal, plate or other instrument knowing or having reason to believe the same to be counterfeit, shall be punished in the same manner as if he had made or counterfeited such seal, plate or other instrument.*

**Simple Explanation: Anyone who makes or counterfeits a seal, plate, or similar instrument for forgery punishable under Section 338 or possesses such a counterfeit item with that intent can face life imprisonment or up to seven years in prison along with a fine. If the forgery relates to other sections of this Chapter, the punishment is up to seven years of imprisonment and a fine. Simply possessing a counterfeit seal, plate, or instrument knowing it to be fake can lead to up to three years in prison and a fine. Additionally, anyone who fraudulently or dishonestly uses such counterfeit items as genuine will face the same punishment as the one who made or counterfeited them.**

**Section 342:**

*(1) Whoever counterfeits upon, or in the substance of, any material, any device or mark used for the purpose of authenticating any document described in section 338, intending that such device or mark shall be used for the purpose of giving the appearance of authenticity to any document then forged or thereafter to be forged on such material, or who, with such intent, has in his possession any material upon or in the substance of which any such device or mark has been counterfeited, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

*(2) Whoever counterfeits upon, or in the substance of, any material, any device or mark used for the purpose of authenticating any document or electronic record other than the documents described in section 338, intending that such device or mark shall be used for the purpose of giving the appearance of authenticity to any document then forged or*

*thereafter to be forged on such material, or who with such intent, has in his possession any material upon or in the substance of which any such device or mark has been counterfeited, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

**Simple Explanation:** Anyone who counterfeits a device or mark used to authenticate documents under Section 338 or possesses such counterfeit material intending to use it for forgery can face life imprisonment or up to seven years in prison along with a fine. If the counterfeiting involves authentication marks for documents or electronic records other than those under Section 338, the punishment is up to seven years of imprisonment and a fine.

#### Section 343:

*Whoever fraudulently or dishonestly, or with intent to cause damage or injury to the public or to any person, cancels, destroys or defaces, or attempts to cancel, destroy or deface, or secretes or attempts to secrete any document which is or purports to be a will, or an authority to adopt a son, or any valuable security, or commits mischief in respect of such document, shall be punished with imprisonment for life, or with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*

**Simple Explanation:** Anyone who fraudulently or dishonestly cancels, destroys, defaces, or attempts to do so, or hides any will, authority to adopt, or valuable security, intending to cause harm or loss, can face life imprisonment or up to seven years in prison along with a fine. The same applies if someone commits mischief concerning such documents.

#### Section 344:

*Whoever, being a clerk, officer or servant, or employed or acting in the capacity of a clerk, officer or servant, wilfully, and with intent to defraud, destroys, alters, mutilates or falsifies any book, electronic record, paper, writing, valuable security or account which belongs to or is in the possession of his employer, or has been received by him for or on behalf of his employer, or wilfully, and with intent to defraud, makes or abets the making of any false entry in, or omits or alters or abets the omission or alteration of any material particular from or in, any such book, electronic record, paper, writing, valuable security or account, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.*

#### Explanation

*It shall be sufficient in any charge under this section to allege a general intent to defraud without naming any particular person intended to be defrauded or specifying any particular sum of money intended to be the subject of the fraud, or any particular day on which the offence was committed.*

**Simple Explanation:** Any clerk, officer, or employee who intentionally destroys, alters, falsifies, or omits details from any book, electronic record, valuable security, or account belonging to their employer, with the intent to defraud, can face up to seven years in prison, a fine, or both. The law does not require specifying a particular victim or amount of fraud.

#### Section 345:

*(1) A mark used for denoting that movable property belongs to a particular person is called a property mark.*

*(2) Whoever marks any movable property or goods or any case, package or other receptacle containing movable property or goods, or uses any case, package or other receptacle having any mark thereon, in a manner reasonably calculated to cause it to be believed that the property or goods so marked, or any property or goods contained in any such receptacle so marked, belong to a person to whom they do not belong, is said to use a false property mark.*

*(3) Whoever uses any false property mark shall, unless he proves that he acted without intent to defraud, be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.*

#### Simple Explanation: Understanding False Property Marks

**1. A property mark is a symbol or mark used to indicate ownership of movable property by a particular person.**

2. If someone marks goods, packages, or containers falsely to make others believe they belong to someone else, they are said to use a false property mark.
3. Using a false property mark is punishable by up to one year in prison, a fine, or both, unless the person can prove they had no intent to defraud.

*Section 346:*

*Whoever removes, destroys, defaces or adds to any property mark, intending or knowing it to be likely that he may thereby cause injury to any person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.*

**Simple Explanation:** Whoever removes, destroys, defaces, or alters any property mark with the intention of causing injury to someone or knowing that it is likely to cause injury shall be punished with imprisonment of either description for a term which may extend to one year, or with a fine, or with both. This law is in place to prevent tampering with ownership marks on property to deceive or harm others.

*Section 347:*

*(1) Whoever counterfeits any property mark used by any other person shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

*(2) Whoever counterfeits any property mark used by a public servant, or any mark used by a public servant to denote that any property has been manufactured by a particular person or at a particular time or place, or that the property is of a particular quality or has passed through a particular office, or that it is entitled to any exemption, or uses as genuine any such mark knowing the same to be counterfeit, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.*

**Simple Explanation:** Whoever counterfeits any property mark used by another person shall be punished with imprisonment of either description for a term of up to two years, or with a fine, or with both. Additionally, if a person counterfeits a property mark used by a public servant or any official mark indicating manufacturing details, quality, office clearance, or exemption status, or knowingly uses such a counterfeit mark as genuine, they shall be punished with imprisonment of up to three years and shall also be liable to a fine.

*Section 348:*

*Whoever makes or has in his possession any die, plate or other instrument for the purpose of counterfeiting a property mark, or has in his possession a property mark for the purpose of denoting that any goods belong to a person to whom they do not belong, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.*

**Simple Explanation:** Whoever makes or possesses any die, plate, or other instrument for counterfeiting a property mark, or possesses a property mark intending to falsely indicate ownership of goods, shall be punished with imprisonment of either description for a term of up to three years, or with a fine, or with both.

*Section 349:*

*Whoever sells, or exposes, or has in possession for sale, any goods or things with a counterfeit property mark affixed to or impressed upon the same or to or upon any case, package or other receptacle in which such goods are contained, shall, unless he proves -*

*(a) that, having taken all reasonable precautions against committing an offence against this section, he had at the time of the commission of the alleged offence no reason to suspect the genuineness of the mark; and*

*(b) that, on demand made by or on behalf of the prosecutor, he gave all the information in his power with respect to the persons from whom he obtained such goods or things; or*

*(c) that otherwise he had acted innocently,*

*be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.*

**Simple Explanation:** Whoever sells, exposes, or possesses for sale any goods with a counterfeit property mark affixed to them, or to their packaging, shall be punished with imprisonment of up to one year, or with a fine, or with both, unless they can prove that they took all reasonable precautions to avoid the offence, had no reason to suspect the mark was counterfeit, provided all available information about the source of the goods upon request, or otherwise acted innocently.

Section 350:

*(1) Whoever makes any false mark upon any case, package or other receptacle containing goods, in a manner reasonably calculated to cause any public servant or any other person to believe that such receptacle contains goods which it does not contain or that it does not contain goods which it does contain, or that the goods contained in such receptacle are of a nature or quality different from the real nature or quality thereof, shall, unless he proves that he acted without intent to defraud, be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.*

*(2) Whoever makes use of any false mark in any manner prohibited under sub-section (1) shall, unless he proves that he acted without intent to defraud, be punished as if he had committed the offence under sub-section (1).*

**Simple Explanation:** Whoever falsely marks any package or container of goods in a way that misleads a public servant or any person about its contents, or the nature or quality of the goods inside, shall, unless they prove a lack of intent to defraud, be punished with imprisonment of up to three years, or with a fine, or with both. The same punishment applies to anyone who uses such a false mark in any prohibited manner.

Section 351:

*(1) Whoever threatens another by any means, with any injury to his person, reputation or property, or to the person or reputation of any one in whom that person is interested, with intent to cause alarm to that person, or to cause that person to do any act which he is not legally bound to do, or to omit to do any act which that person is legally entitled to do, as the means of avoiding the execution of such threat, commits criminal intimidation.*

*Explanation. - A threat to injure the reputation of any deceased person in whom the person threatened is interested, is within this section.*

*Illustration.*

*A, for the purpose of inducing B to resist from prosecuting a civil suit, threatens to burn B's house. A is guilty of criminal intimidation.*

*(2) Whoever commits the offence of criminal intimidation shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

*(3) Whoever commits the offence of criminal intimidation by threatening to cause death or grievous hurt, or to cause the destruction of any property by fire, or to cause an offence punishable with death or imprisonment for life, or with imprisonment for a term which may extend to seven years, or to impute unchastity to a woman, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.*

*(4) Whoever commits the offence of criminal intimidation by an anonymous communication, or having taken precaution to conceal the name or abode of the person from whom the threat comes, shall be punished with imprisonment of either description for a term which may extend to two years, in addition to the punishment provided for the offence under sub-section (1).*

**Simple Explanation:** Criminal intimidation occurs when someone threatens another person, by any means, with injury to their person, reputation, or property, or to someone they care about, intending to cause alarm or compel them to act against their will. This includes threats to harm the reputation of a deceased person of interest to the victim. For example, if A threatens to burn B's house to stop B from filing a lawsuit, A is guilty of criminal intimidation. The punishment for this offence is imprisonment of up to two years, a fine, or both. If the threat involves death, grievous hurt, destruction of property by fire, or an offence punishable by death, life imprisonment, or up to seven years, the punishment may extend to seven years, along with a fine. If the intimidation is done

**anonymously or with efforts to conceal the identity of the perpetrator, an additional punishment of up to two years applies.**

*Section 352:*

*Whoever intentionally insults in any manner, and thereby gives provocation to any person, intending or knowing it to be likely that such provocation will cause him to break the public peace, or to commit any other offence, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation: Anyone who intentionally insults another person in a way that provokes them, knowing or intending that such provocation is likely to cause a breach of public peace or lead to the commission of an offence, shall be punished with imprisonment of up to two years, a fine, or both.**

*Section 353:*

*(1) Whoever makes, publishes or circulates any statement, false information, rumour, or report, including through electronic means -*

*(a) with intent to cause, or which is likely to cause, any officer, soldier, sailor or airman in the Army, Navy or Air Force of India to mutiny or otherwise disregard or fail in his duty as such; or*

*(b) with intent to cause, or which is likely to cause, fear or alarm to the public, or to any section of the public whereby any person may be induced to commit an offence against the State or against the public tranquility; or*

*(c) with intent to incite, or which is likely to incite, any class or community of persons to commit any offence against any other class or community,*

*shall be punished with imprisonment which may extend to three years, or with fine, or with both.*

*(2) Whoever makes, publishes or circulates any statement or report containing false information, rumour or alarming news, including through electronic means, with intent to create or promote, or which is likely to create or promote, on grounds of religion, race, place of birth, residence, language, caste or community or any other ground whatsoever, feelings of enmity, hatred or ill will between different religious, racial, language or regional groups or castes or communities, shall be punished with imprisonment which may extend to three years, or with fine, or with both.*

*(3) Whoever commits an offence specified in sub-section (2) in any place of worship or in any assembly engaged in the performance of religious worship or religious ceremonies, shall be punished with imprisonment which may extend to five years and shall also be liable to fine.*

**Simple Explanation: Anyone who makes, publishes, or circulates any false statement, information, rumor, or report, including through electronic means, with the intent to cause or likely to cause military personnel to mutiny or neglect their duty, create fear or alarm leading to offenses against the State or public tranquility, or incite hostility between communities, shall be punished with imprisonment of up to three years, a fine, or both. Additionally, if such false information is spread to promote enmity or ill will between religious, racial, linguistic, or regional groups, the punishment remains the same. However, if the offense occurs in a place of worship or during religious ceremonies, the punishment may extend to five years, along with a fine.**

*Section 354:*

*Whoever voluntarily causes or attempts to cause any person to do anything which that person is not legally bound to do, or to omit to do anything which he is legally entitled to do, by inducing or attempting to induce that person to believe that he or any person in whom he is interested will become or will be rendered by some act of the offender an object of Divine displeasure if he does not do the thing which it is the object of the offender to cause him to do, or if he does the thing which it is the object of the offender to cause him to omit, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.*

*Illustrations*

*(a) A sits dharna at Z's door with the intention of causing it to be believed that, by so sitting, he renders Z an object of Divine displeasure. A has committed the offence defined in this section.*

*(b) A threatens Z that, unless Z performs a certain act, A will kill one of A's own children, under such circumstances that the killing would be believed to render Z an object of Divine displeasure. A has committed the offence defined in this section.*

**Simple Explanation:** Whoever intentionally causes or attempts to cause another person to act against their will or to refrain from an action they are legally entitled to perform, by inducing them to believe that they or someone they care about will face Divine displeasure due to the offender's actions, shall be punished with imprisonment of up to one year, a fine, or both. For instance, if someone sits at another's door to create fear of Divine displeasure or threatens to harm their own child to invoke such fear, they commit this offense.

#### Section 355:

*Whoever, in a state of intoxication, appears in any public place, or in any place which it is a trespass in him to enter, and there conducts himself in such a manner as to cause annoyance to any person, shall be punished with:*

- *Simple imprisonment for a term which may extend to twenty-four hours,*
- *Fine which may extend to one thousand rupees,*
- *Both imprisonment and fine, or*
- *Community service.*

**Simple Explanation:** Whoever, while intoxicated, appears in a public place or a place where they are not permitted to enter and behaves in a manner that causes annoyance to others shall be punished with simple imprisonment of up to twenty-four hours, a fine of up to one thousand rupees, both imprisonment and fine, or community service.

#### Section 356:

*(1) Whoever, by words either spoken or intended to be read, or by signs or by visible representations, makes or publishes in any manner, any imputation concerning any person intending to harm, or knowing or having reason to believe that such imputation will harm, the reputation of such person, is said, except in the cases hereinafter excepted, to defame that person.*

##### Explanation 1

*It may amount to defamation to impute anything to a deceased person, if the imputation would harm the reputation of that person if living, and is intended to be hurtful to the feelings of his family or other near relatives.*

##### Explanation 2

*It may amount to defamation to make an imputation concerning a company or an association or collection of persons as such.*

##### Explanation 3

*An imputation in the form of an alternative or expressed ironically, may amount to defamation.*

##### Explanation 4

*No imputation is said to harm a person's reputation, unless that imputation directly or indirectly, in the estimation of others, lowers the moral or intellectual character of that person, or lowers the character of that person in respect of his caste or of his calling, or lowers the credit of that person, or causes it to be believed that the body of that person is in a loathsome state, or in a state generally considered as disgraceful.*

##### Illustrations

*(a) A says-"Z is an honest man; he never stole B's watch"; intending to cause it to be believed that Z did steal B's watch. This is defamation, unless it falls within one of the exceptions.*



*(b) A is asked who stole B's watch. A points to Z, intending to cause it to be believed that Z stole B's watch. This is defamation, unless it falls within one of the exceptions.*

*(c) A draws a picture of Z running away with B's watch, intending it to be believed that Z stole B's watch. This is defamation, unless it falls within one of the exceptions.*

#### *Exception 1*

*It is not defamation to impute anything which is true concerning any person, if it be for the public good that the imputation should be made or published. Whether or not it is for the public good is a question of fact.*

#### *Exception 2*

*It is not defamation to express in good faith any opinion whatever respecting the conduct of a public servant in the discharge of his public functions, or respecting his character, so far as his character appears in that conduct, and no further.*

#### *Exception 3*

*It is not defamation to express in good faith any opinion whatever respecting the conduct of any person touching any public question, and respecting his character, so far as his character appears in that conduct, and no further.*

#### *Illustration*

*It is not defamation in A to express in good faith any opinion whatever respecting Z's conduct in petitioning Government on a public question, in signing a requisition for a meeting on a public question, in presiding or attending at such meeting, in forming or joining any society which invites the public support, in voting or canvassing for a particular candidate for any situation in the efficient discharge of the duties of which the public is interested.*

#### *Exception 4*

*It is not defamation to publish substantially true report of the proceedings of a Court, or of the result of any such proceedings.*

#### *Explanation*

*A Magistrate or other officer holding an inquiry in open Court preliminary to a trial in a Court, is a Court within the meaning of the above section.*

#### *Exception 5*

*It is not defamation to express in good faith any opinion whatever respecting the merits of any case, civil or criminal, which has been decided by a Court, or respecting the conduct of any person as a party, witness or agent, in any such case, or respecting the character of such person, as far as his character appears in that conduct, and no further.*

#### *Illustrations*

*(a) A says-"I think Z's evidence on that trial is so contradictory that he must be stupid or dishonest". A is within this exception if he says this in good faith, in as much as the opinion which he expresses respects Z's character as it appears in Z's conduct as a witness, and no further.*

*(b) But if A says-"I do not believe what Z asserted at that trial because I know him to be a man without veracity"; A is not within this exception, in as much as the opinion which expresses of Z's character, is an opinion not founded on Z's conduct as a witness.*

#### *Exception 6*

*It is not defamation to express in good faith any opinion respecting the merits of any performance which its author has submitted to the judgment of the public, or respecting the character of the author so far as his character appears in such performance, and no further.*

#### *Explanation*

*A performance may be submitted to the judgment of the public expressly or by acts on the part of the author which imply such submission to the judgment of the public.*

#### *Illustrations*

- (a) A person who publishes a book, submits that book to the judgment of the public.*
- (b) A person who makes a speech in public, submits that speech to the judgment of the public.*
- (c) An actor or singer who appears on a public stage, submits his acting or singing to the judgment of the public.*
- (d) A says of a book published by Z - "Z's book is foolish; Z must be a weak man. Z's book is indecent; Z must be a man of impure mind." A is within the exception, if he says this in good faith, in as much as the opinion which he expresses of Z respects Z's character only so far as it appears in Z's book, and no further.*
- (e) But if A says "I am not surprised that Z's book is foolish and indecent, for he is a weak man and a libertine." A is not within this exception, inasmuch as the opinion which he expresses of Z's character is an opinion not founded on Z's book.*

#### *Exception 7*

*It is not defamation in a person having over another any authority, either conferred by law or arising out of a lawful contract made with that other, to pass in good faith any censure on the conduct of that other in matters to which such lawful authority relates.*

#### *Illustration*

*A Judge censuring in good faith the conduct of a witness, or of an officer of the Court; a head of a department censuring in good faith those who are under his orders, a parent censuring in good faith a child in the presence of other children; a schoolmaster, whose authority is derived from a parent, censuring in good faith a pupil in the presence of other pupils; a master censuring a servant in good faith for remissness in service; a banker censuring in good faith the cashier of his bank for the conduct of such cashier as such cashier are within this exception.*

#### *Exception 8*

*It is not defamation to prefer in good faith an accusation against any person to any of those who have lawful authority over that person with respect to the subject-matter of accusation.*

#### *Illustration*

*If A in good faith accuses Z before a Magistrate; if A in good faith complains of the conduct of Z, a servant, to Z's master; if A in good faith complains of the conduct of Z, a child, to Z's father - A is within this exception.*

#### *Exception 9*

*It is not defamation to make an imputation on the character of another provided that the imputation be made in good faith for the protection of the interests of the person making it, or of any other person, or for the public good.*

#### *Illustrations*

- (a) A, a shopkeeper, says to B, who manages his business - "Sell nothing to Z unless he pays you ready money, for I have no opinion of his honesty." A is within the exception, if he has made this imputation on Z in good faith for the protection of his own interests.*
- (b) A, a Magistrate, in making a report to his own superior officer, casts an imputation on the character of Z. Here, if the imputation is made in good faith, and for the public good, A is within the exception.*

#### *Exception 10*

*It is not defamation to convey a caution, in good faith, to one person against another, provided that such caution be intended for the good of the person to whom it is conveyed, or of some person in whom that person is interested, or for the public good.*

#### *Penalties*

- (2) Whoever defames another shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both or with community service.*
- (3) Whoever prints or engraves any matter, knowing or having good reason to believe that such matter is defamatory of any person, shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both.*

*(4) Whoever sells or offers for sale any printed or engraved substance containing defamatory matter, knowing that it contains such matter, shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both.*

**Simple Explanation:** Defamation means making a statement (spoken, written, signs, or pictures) that harms a person's reputation, knowing or having reason to believe that it will cause such harm.

#### **Important Points**

- **Defamation of a Deceased Person:** If the statement would harm the person's reputation if they were alive and hurts their family's feelings, it is still defamation.
- **Defamation of Organizations:** It also applies to companies, associations, or groups.
- **Indirect or Ironical Defamation:** If an imputation is made indirectly, as an alternative, or in an ironic way, it can still be defamation.
- **What Counts as Reputation Damage?**  
A statement lowers a person's standing in society if it:
  - Harms their moral or intellectual image.
  - Affects their caste or profession.
  - Reduces their creditworthiness.
  - Suggests they have a disgraceful disease or condition.

#### **Examples**

- Saying "Z is an honest man; he never stole B's watch" (implying Z stole the watch) is defamation.
- Pointing at someone when asked who stole a watch can be defamation.
- Drawing a picture of someone stealing can also be defamation.

#### **Exceptions (When It Is NOT Defamation)**

1. **Truth for Public Good:** If a true statement is made in the public interest.
2. **Opinion on Public Servants:** Expressing a good faith opinion on a public servant's official work.
3. **Opinion on Public Matters:** Expressing a good faith opinion on someone's actions related to public issues.
4. **Court Reports:** Publishing a truthful report of court proceedings.
5. **Opinions on Court Cases:** Expressing a fair opinion on a case or a witness's conduct.
6. **Criticism of Public Works:** Reviewing books, speeches, performances, etc., as long as criticism is about the work and not personal attacks.
7. **Authority-Based Criticism:** Criticism by someone in a position of authority (e.g., a judge, employer, teacher, or parent) made in good faith.
8. **Accusations to Authorities:** Complaints made in good faith to someone with authority (e.g., reporting an employee to their employer).
9. **Protection of Interests:** Making an imputation in good faith to protect personal, others', or public interest.
10. **Warnings in Good Faith:** Giving a caution to someone in good faith for their or public benefit.

#### **Punishments for Defamation**

1. **General Defamation:** Up to 2 years imprisonment, or fine, or both, or community service.
2. **Printing Defamatory Content:** Up to 2 years imprisonment, or fine, or both.
3. **Selling Defamatory Material:** Up to 2 years imprisonment, or fine, or both.

*Section 357:*

*Whoever, being bound by a lawful contract to attend on or to supply the wants of any person who, by reason of youth, or of unsoundness of mind, or of a disease or bodily weakness, is helpless or incapable of providing for his own safety or of supplying his own wants, voluntarily omits so to do, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to five thousand rupees, or with both.*

**Simple Explanation:** Any person who is legally bound by a contract to care for or provide necessities to someone who, due to youth, mental unsoundness, illness, or physical weakness, is unable to care for themselves, and who voluntarily neglects this duty, shall be punished with imprisonment of up to three months, a fine of up to five thousand rupees, or both.

*Section 358:*

*(1) The Indian Penal Code is hereby repealed.*

*(2) Notwithstanding the repeal of the Code referred to in sub-section (1), it shall not affect:*

- (a) the previous operation of the Code so repealed or anything duly done or suffered thereunder; or*
- (b) any right, privilege, obligation or liability acquired, accrued or incurred under the Code so repealed; or*
- (c) any penalty, or punishment incurred in respect of any offences committed against the Code so repealed; or*
- (d) any investigation or remedy in respect of any such penalty, or punishment; or*
- (e) any proceeding, investigation or remedy in respect of any such penalty or punishment as aforesaid, and any such proceeding or remedy may be instituted, continued or enforced, and any such penalty may be imposed as if that Code had not been repealed.*

*(3) Notwithstanding such repeal, anything done or any action taken under the said Code shall be deemed to have been done or taken under the corresponding provisions of this Sanhita.*

*(4) The mention of particular matters in sub-section (2) shall not be held to prejudice or affect the general application of section 6 of the General Clauses Act, 1897 with regard to the effect of the repeal.*

**Simple Explanation:** This provision repeals the Indian Penal Code (IPC) and replaces it with the Bharatiya Nyaya Sanhita (BNS). However, the repeal does not affect actions taken under the IPC before its repeal. Rights, obligations, liabilities, penalties, and punishments related to offenses committed under the IPC remain valid, and legal proceedings or investigations based on the IPC can continue as if the law had not been repealed. Additionally, any actions taken under the IPC will be considered valid under the corresponding provisions of the BNS. The section also ensures that the repeal does not override the general principles of legal continuity as provided in the General Clauses Act, 1897.